

UNITED STATES OF AMERICA
BEFORE THE NATIONAL LABOR RELATIONS BOARD
DIVISION OF JUDGES

STARBUCKS CORPORATION

and

Cases 19–CA–294708
28–CA–289622
28–CA–291044
28–CA–292106
28–CA–292326
28–CA–294010
28–CA–296535
28–CA–296858
28–CA–297257
28–CA–307797
28–CA–313214
28–CA–313426
28–CA–313432
28–CA–313458

WORKERS UNITED a/w SERVICE
EMPLOYEES INTERNATIONAL UNION

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Table of Contents

DECISION5
Statement of the Case.....5
Findings of Fact.....5
Jurisdiction5

Alleged Unfair Labor Practices	6
I. Rules Allegations.....	6
A. Relevant Background.....	6
B. Legal Standards—Section 8(a)(1) Workplace Rules	6
C. Partner Guide Rules Maintenance.....	7
1. Background.....	7
2. Threshold arguments.....	7
a. First Amendment.....	7
b. Savings Clause.....	8
3. Mission and Values	9
4. Prohibition Against Harassment.....	10
5. Respectful Workplace	13
6. Attendance and Punctuality.....	14
7. Dress Code and Personal Appearance.....	15
8. Personal Mobile Devices	18
9. Personal Telephone Calls and Mail.....	19
10. Social Media.....	19
11. Soliciting/Distributing Notices	22
12. Video Recording, Audio Recording and Photography	23
13. Acceptable Use of Starbucks Electronic Communications Systems...24	
14. Confidentiality.....	24
15. Conflicts of Interest.....	25
16. Media Inquiries.....	26
17. Mobile Computing.....	27
18. Requests for Partner Information.....	27
19. How We Communicate.....	28
20. Conflict Resolution.....	28
21. Corrective Action.....	29
22. Back cover.....	30
D. Mutual Arbitration Agreement.....	30
E. Store Operations Manual and Weekly Update Rules.....	31
1. Community Board Standards.....	31
2. Back of housepostings.....	33
3. Confidentiality provision.....	34
F. Standards of Business Conduct Rules.....	34
1. How We Treat One Another.....	35
2. Political Activities.....	35
G. Implied Promise of Benefits – Dress Code rules in 2023 Partner Guide and Weekly Update.....	36
H. Implied Threats to Withhold Benefits in 2023 Partner Guide Footnotes.....	39
I. Grant of Benefits in 2023 Partner Guide Footnotes.....	42
J. Other Statements in 2023 Partner Guide.....	42

II. Store Personnel and General Business Functions.....	43
III. General Legal Standards	44
A. Credibility.....	44
B. Sections 8(a)(1) and 8(c).....	45
C. Section 8(a)(3) and (1) mixed motive discrimination	45
D. Section 8(a)(1) discipline arising from protected conduct.....	47
E. Section 8(a)(4)	47
F. Discipline for Violating an Overly Broad Rule.....	47
IV. The Scottsdale & Mayo Store	48
A. Facts.....	48
1. Background.....	48
2. Early organizing	49
3. Laila Dalton background facts.....	49
4. January 21 meeting and further organizing efforts.....	52
5. Dalton’s January 25 written warning CAF.....	53
6. Further organizing efforts and Dalton’s off-duty visits.....	56
7. The Ethics and Compliance investigation into Dalton.....	60
8. March 11 Dalton documented coaching CAF for wearing earbuds.....	61
9. Van Boeckel’s arrival and Dalton’s March 18 CAF for not wearing facial covering.....	62
10. Dalton’s termination for violating recording policy.....	63
11. The election and related events.....	66
12. Tyler Gillette accommodation and promotion requests.....	67
13. Gillette July 1 CAF documented coaching.....	70
B. Analysis—Allegations Related to Laila Dalton.....	70
1. Dalton’s protected concerted activity, union activity; Respondent’s animus.....	70
2. The January 25 written warning CAF.....	71
a. Discipline.....	71
b. Related 8(a)(1) allegations.....	73
3. Investigation into store visits on January 27 and 31, final written warning CAF for not wearing a face covering on January 31, and interrogation.....	73
a. Investigation and discipline.....	73
b. Interrogation.....	75
4. March 11 documented coaching CAF.....	76
5. Ethics and Compliance investigation.....	76
6. May 2 interrogation.....	77
7. Dalton’s termination.....	78
C. Alleged Threat of Unspecified Reprisals.....	79
D. Surveillance/Increased Supervision Allegations.....	80
1. Legal standards.....	80

2. Diller.....	81
3. Van Boeckel.....	81
4. Other store managers.....	82
E. Tyler Gillette Allegations.....	82
1. Grant of benefits.....	82
2. Allegations related to the reasonable accommodation process.....	83
3. Gillette’s July 1 documented coaching CAF.....	84
V. The Subpoena Allegations.....	85
A. Facts.....	85
B. Analysis.....	85
VI. The Indian School & 107th Store.....	87
A. Facts.....	87
1. Background and early organizing.....	87
2. Store Manager Johnson’s meetings with employees.....	88
3. Millyana Romero background facts.....	91
4. The Union prevails in the election.....	93
5. Romero’s discharge.....	93
B. Analysis.....	94
1. Alleged interrogation.....	94
2. Alleged promise of benefits.....	94
3. Alleged threats.....	95
a. Unspecified reprisals.....	95
b. Loss of benefits.....	95
c. Futility of organizing.....	96
d. Termination.....	96
4. Alleged promulgation of rule.....	97
5. Alleged disparagement or denigration.....	97
6. Alleged directive and threat.....	98
7. Romero’s termination.....	98
8. Failure to bargain over Romero’s termination.....	100
VII. The Power & Baseline Store.....	100
A. Facts.....	100
B. Analysis.....	103
1. Stricter rules enforcement.....	103
2. Brennan’s final written warning.....	104
VIII. The Southern & McClintock Store.....	105
A. Facts.....	105
B. Analysis.....	110
1. Enforcement of dress code policy.....	110
2. Enforcement of overly broad How We Communicate policy.....	110
3. Schmitt’s termination.....	111
a. Protected concerted activity.....	111

b. Wright Line analysis.....	113
Conclusions of Law.....	114
Remedy.....	116
Order.....	120
APPENDIX A	
APPENDIX B	
APPENDIX C	

DECISION

STATEMENT OF THE CASE

Eleanor Laws, Administrative Law Judge. This case was tried in Phoenix, Arizona, on 17 dates between July 26, 2022, and November 15, 2023. Workers United (the Charging Party or Union) filed various charges, resulting in the original consolidated complaint as well as several subsequent amended complaints. The Charging Party filed numerous charges while the hearing was pending, resulting in requests to consolidate, some of which I granted, some of which I denied, as reflected in the final consolidated complaint, issued on July 21, 2023. Finally, on November 15, 2023, I severed complaint 28–CA–313460 from the instant case.¹

The complaint alleges numerous violations of Sections 8(a)(1), (3), (4), and (5) of the National Labor Relations Act (the Act), as detailed herein. Broadly, the complaint alleges that around 33 rules, which apply to all corporate-owned U.S. stores, violate Section 8(a)(1), and that the Respondent’s conduct, including surveillance, threats, promises, interrogations, and discipline, including the termination of three employees, at four stores in the Phoenix metro area in various stages of organizing activity, violated the Act.

On the entire record, including my observation of the demeanor of the witnesses, and after considering the briefs filed by the General Counsel, Respondent, and Charging Party, I make the following²

FINDINGS OF FACT

JURISDICTION

The Respondent is a Washington State corporation with facilities located in Phoenix, Arizona, and the surrounding cities comprising the Phoenix Metro Area. At all relevant times, the Respondent annually derived gross revenues in excess of \$500,000 and purchased and received goods valued at more than \$5,000 from points outside the State of Arizona. The Respondent admits, and I find, that it is an employer engaged in commerce within the meaning

¹ These allegations are reflected in paragraph 11 of the final consolidated complaint. All dates are in 2022 unless otherwise indicated.

² I hereby grant the General Counsel’s motion to strike Part V the Respondent’s post-hearing brief, filed on February 27, 2024. The arguments in Part V of the Respondent’s brief concern affirmative defenses not raised in its answer to the final complaint.

of Section 2(2), (6), and (7) of the Act and that the Union is a labor organization within the meaning of Section 2(5) of the Act.

ALLEGED UNFAIR LABOR PRACTICES

I. Rules Allegations

The complaint alleges the Respondent violated Section 8(a)(1) of the Act through its maintenance of 33 overly broad rules.

A. Relevant Background

Starbucks is a household name at this point, operating over 9,000 retail stores selling beverages (most notably coffee) and food items. Starbucks maintains an employee handbook called the Partner Guide, which it distributes to employees upon onboarding. Employees are also required to sign a Mutual Arbitration Agreement and adhere to policies in the Store Operations Manual. Starbucks provides Weekly Updates to communicate changes in the store and provide guidance on various policies and practices. Finally, employees at Starbucks must abide by its Standards of Business Conduct.

Starbucks employees began efforts to organize workers with the Union in the fall of 2021. In response to the union organizing efforts, Starbucks created the Starbucks One website, <https://one.starbucks.com/>, that provides information about the unionization process, Starbucks' benefits and protections, and explains why Starbucks believes voting "no" to unionization is best.

B. Legal Standards—Section 8(a)(1) Workplace Rules

Under Section 8(a)(1) of the Act, it is an unfair labor practice for an employer to interfere with, restrain, or coerce employees in the exercise of the rights guaranteed in Section 7 of the Act. The rights guaranteed in Section 7 include the right "to form, join or assist labor organizations, to bargain collectively through representatives of their own choosing, and to engage in other concerted activities for the purpose of collective bargaining or other mutual aid or protection. . . ." The basic test for a violation of Section 8(a)(1) is whether under all the circumstances the employer's conduct reasonably tended to restrain, coerce, or interfere with employees' rights guaranteed by Section 7. *Mediplex of Danbury*, 314 NLRB 470, 472 (1994); *Sunnyside Home Care Project*, 308 NLRB 346 fn. 1 (1992), citing *American Freightways Co.*, 124 NLRB 146, 147 (1959).

An employer violates Section 8(a)(1) when it maintains workplace rules or policies that would reasonably tend to chill employees in the exercise of their Section 7 rights. See *Lafayette Park Hotel*, 326 NLRB 824, 825 (1998), *enfd.* 203 F.3d 52 (D.C. Cir. 1999). With respect to facially neutral work rules that may be reasonably interpreted to restrict Section 7 activity, the Board interprets these rules from the perspective of an employee who is economically dependent on the employer, and who contemplates engaging in protected concerted activity. *Stericycle, Inc.*, 372 NLRB No. 113, slip op. at 9 (2023). If the General Counsel carries her burden to show such an employee could reasonably interpret the rule to have a coercive meaning, the rule is presumptively unlawful, even if the rule could also be reasonably interpreted not to restrict

Section 7 rights and even if the employer did not intend for its rule to restrict Section 7 rights. *Id.* at 9–10. The employer may rebut this presumption by proving that the rule advances a legitimate and substantial business interest, and the employer is unable to advance that interest with a more narrowly tailored rule. *Id.* at 10. The Board must give the rule under consideration a reasonable reading and ambiguities are construed against its promulgator. *Lutheran Heritage Village-Livonia*, 343 NLRB 646, 647 (2004); *Lafayette Park Hotel*, 326 NLRB at 828; and *Cintas Corp. v. NLRB*, 482 F.3d 463, 467–470 (D.C. Cir. 2007).

If a rule is not facially unlawful, it may still violate Section 8(a)(1) if the General Counsel can prove it was promulgated in response to union or other protected activity, or has been enforced or applied to restrict the exercise of Section 7 rights. *Lutheran Heritage*, above at 647.

C. Partner Guide Rules Maintenance

Complaint paragraphs 5(a) and 5(j) allege that 24 rules maintained in the Respondent’s U.S. Partner Guide (2020 and 2023 versions) are overly broad in violation of Section 8(a)(1).³

1. Background

At all relevant times, the Respondent has maintained a Partner Guide, which sets forth various rules related to working at Starbucks. Employees received a printed version of the 2020 Partner Guide when they were hired, and it was also available on the “Partner Hub,” a proprietary intranet site Respondent uses to communicate with its employees. The 2023 Partner Guide was distributed electronically in January 2023, and employees signed the acknowledgement of receipt electronically. (Tr. 2178.)⁴

2. Threshold arguments

a. First Amendment

The Respondent asserts that the Board’s *Stericycle* decision constitutes an impermissible restriction on free speech. The First Amendment of the U.S. Constitution states:

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of

³ Complaint paragraph 5(j) alleges the reissuance of these same rules violated the Act. If I have found a rule to be unlawful in the 2020 guide, the same rule is obviously also unlawful in the 2023 guide, and vice-versa.

⁴ Abbreviations used in this decision are as follows: “Tr.” for transcript; “R Exh.” for the Respondent’s exhibit; “GC Exh.” for the General Counsel’s exhibit; “USDC1” for United States District Court exhibit 1; “USDC2” for United States District Court exhibit 2; “USDC 3” for United States District Court exhibit 3, and “Dep.” for a deposition within USDC3; “R Br.” for Respondent’s brief, “GC Br.” for General Counsel’s brief and “CP Br.” for Charging Party’s brief. Although I have included several citations to the record to highlight particular testimony or exhibits, I emphasize that my findings and conclusions are based not solely on the evidence specifically cited but rather are based my review and consideration of the entire record.

the people peaceably to assemble, and to petition the Government for a redress of grievances.

Of course, the Act does not itself abridge free speech, and therefore does not facially run afoul of the First Amendment. Nonetheless, “otherwise valid laws may become invalidated in their application when they invade constitutional guarantees.” *Newspaper Guild of Greater Philadelphia, Loc. 10 v. NLRB*, 636 F.2d 550, 558 (D.C. Cir. 1980). The language of Section 8(c), which “merely implements the First Amendment” (*NLRB. v. Gissel Packing Co.*, 395 U.S. 575, 617 (1969)), prescribes parameters for such application, stating:

The expressing of any views, argument, or opinion, or the dissemination thereof, whether in written, printed, graphic, or visual form, shall not constitute or be evidence of an unfair labor practice under any of the provisions of this Act [subchapter] if such expression contains no threat of reprisal or force or promise of benefit.

The Supreme Court, in balancing First Amendment and Section 7 rights, stated:

Any assessment of the precise scope of employer expression, of course, must be made in the context of its labor relations setting. Thus, an employer’s rights cannot outweigh the equal rights of the employees to associate freely, as those rights are embodied in § 7 and protected by § 8(a)(1) and the proviso to § 8(c). And any balancing of those rights must take into account the economic dependence of the employees on their employers, and the necessary tendency of the former, because of that relationship, to pick up intended implications of the latter that might be more readily dismissed by a more disinterested ear.

NLRB v. Gissel Packing, above.

I am bound to follow *Stericycle*, as it is extant Board precedent. Any argument that it should be overruled, for whatever reason, is for the Board to address.

b. Savings Clause

Both the 2020 and 2023 versions of the Partner Guide contain a savings clause at the beginning. The 2020 Partner Guide is 76 pages excluding the cover pages on the front and back. The 2023 Partner Guide is 73 pages excluding the front and back covers. As discussed more fully below, the back cover of the 2023 Partner Guide contains text.

The Respondent asserts that the savings clause provides a lawful context for the rules in the handbook. The General Counsel argues that the Partner Guide’s savings clause does not mitigate the coercive effect of the challenged workplace rules. The identical language in both versions states:⁵

⁵ In the 2020 version, the language appears on the first page in the third and fourth paragraphs on the first page, right after the cover, under the heading “Important Notice.” In the 2020 version, the language appears in the same paragraphs on page 5, just after the table of contents. (US Dist. Ct. 2, Exh. 107: GC Exh. 64.)

The policies contained in this guide have been adopted with the intent to comply fully with all applicable laws governing employment practices and procedures in each of the various states where Starbucks does business. Nonetheless, if any policy contained in this guide conflicts in any way with federal, state or local law, it is Starbucks intent to comply fully with the applicable law.

Nothing in this guide should be interpreted to interfere with, restrain or prevent partner communications regarding wages, hours or other terms and conditions of employment. Partners have the right to engage in or refrain from such activities in exercise of their rights under the National Labor Relations Act.

In *First Transit, Inc.*, 360 NLRB 619, 621–622 (2014), the Board held that, while a notice advising employees of their rights might, in some cases, clarify the scope of a rule, for a “savings clause” or “safe harbor” provision to be effective, it must address the “broad panoply” of Section 7 rights. In *First Transit*, the provision at issue was inadequate because it only addressed union organizational rights but did not mention other activity protected under the Act. Here, the provision only addresses protected communications about wages, hours or other employment terms and conditions, and is silent about union organizational activity. As such, the savings clause alone does not shield the Respondent from liability for handbook rules otherwise found to be overly broad.⁶

3. Mission and Values

Complaint paragraph 5(a)(1) concerns maintenance of Starbuck’s Mission and Values rule, which states:

Our Mission

To inspire and nurture the human spirit – one person, one cup, and one neighborhood at a time.

Our Values

With our partners, our coffee and our customers at our core, we live these values:

Creating a culture of warmth and belonging, where everyone is welcome.

Acting with courage, challenging the status quo and finding new ways to grow our company and each other.

Being present, connecting with transparency, dignity and respect.

⁶ The Board also considers the savings clause’s placement in the handbook. As savings clause is inadequate based on its failure to address organizing activity, I need not address this factor. I note, however, that with the exception of the Social Media policy, the savings clause is not proximate to the rules. Moreover, the rules do not expressly reference the savings clause language or vice-versa.

Delivering our best in all we do, holding ourselves accountable for results.

We are performance driven, through the lens of humanity.

The General Counsel’s closing brief states, “CGC does not allege this rule to be facially unlawful, but instead is included in this list because it was applied in a way that restricted protected activity. . . .” (GC Br. 69). The Charging Party does not offer argument that this rule was unlawfully maintained. As such, any maintenance allegation is dismissed, and I will only rule on its application, which is discussed in context below.

4. Prohibition Against Harassment

Complaint paragraphs 5(a)(2) and (3) concern the Prohibition Against Harassment rule, which contains a “bullying” provision. The complaint alleges the following parts of the rule violate Section 8(a)(1):

Harassment includes conduct that creates an intimidating, disrespectful, degrading, offensive, or hostile working environment. Starbucks prohibits harassment based on race, color, religion and religious creed, national origin or place of origin, sex (including pregnancy, childbirth, breastfeeding or related medical conditions), physical or mental disability, age, protected military or veteran status, sexual orientation, gender identity, gender expression, transgender status, genetic information, legally protected medical condition, marital or domestic partner status, status as a victim of domestic violence (including sexual assault or stalking), or any other basis protected by applicable law.

The prohibition against harassment, including sexual harassment and bullying, applies to our partners. Starbucks also prohibits harassment against a job applicant, or harassment against a partner by non-partners, including vendors, suppliers or customers. Any partner who engages in harassment, including sexual harassment and bullying, in violation of this policy will be subject to disciplinary action, up to and including separation from employment. Detailed information about harassment follows.

Harassing conduct can take many forms and may include, but is not limited to, the following:

- Physical harassment such as touching, kissing, or groping
- Verbal harassment such as threats, degrading comments, epithets, slurs, sexual teasing, and requests for sexual favors
- Nonverbal harassment such as obscene gestures or leering
- Written communications, including but not limited to letters, emails, text messages, or social media posts that could offend individuals in a particular group, such as references to racial or ethnic stereotypes or caricatures
- Derogatory posters, electronic images, photographs, cartoons, drawings or gestures, or pornographic materials
- The improper use of authority to endanger or undermine a partner’s job, job performance or career at Starbucks

- Harassment involving workplace violence or a threat of violence (refer to Workplace Violence section in this guide for additional information).

...

5 ***Bullying:*** Bullying is a form of prohibited harassment that involves unwanted aggressive or abusive behavior characterized by verbal, physical, social or psychological intimidation that is typically repetitive and involves an imbalance of power. Bullying does not have to be based on a protected classification to violate this policy.

10 Examples of bullying include:

- Verbal abuse, such as the use of patently offensive, demeaning and harmful derogatory remarks, insults or epithets
- Verbal or physical conduct that is threatening, intimidating or obscene

15 Though not included in the complaint, two other bullet points immediately follow the two bullet point examples of bullying directly above, which state:

- Pushing, shoving, kicking, poking, tripping, assaulting or threatening physical assault, or intentionally damaging a person’s work area or property
- Sabotaging or deliberately subverting, obstructing or disrupting another person’s work performance

25 Also not included in the complaint, in the space between the examples of harassing conduct and bullying, the Prohibition Against Harassment rule contains a definition and bullet-point examples of sexual harassment.

30 Taking first the language in the harassment section generally, the General Counsel asserts that the words “harassment,” “intimidating,” “disrespectful,” “offensive,” and “derogatory” are not sufficiently defined in the policy and could reasonably be construed to include protected activity touching on unionization or working conditions. Except for “derogatory,” these terms appear in the initial sentence describing harassment. This sentence is immediately followed by explicitly stating the forms of harassment the Respondent prohibits, which relate to Starbucks’ obligations under antidiscrimination laws. The term “derogatory” in the harassment section is immediately described in reference to derogatory posters and other physical materials, including

35 pornography. A reasonable employee, who by virtue of their reasonableness presumably possesses common sense, would interpret this section as prohibiting unlawful harassment at

work.⁷ It would certainly be a stretch for a reasonable employee to construe these terms in their specific context as even speaking to, much less prohibiting, Section 7 activity.⁸

5 The General Counsel also asserts that an employee could reasonably interpret the phrase
that describes one form of harassing conduct as “written communications . . . that could offend
individuals in a particular group” to cover Section 7 materials that might upset a group of pro-
company employees in the context of an organizing drive. The phrase is immediately followed
by examples, “such as references to racial or ethnic stereotypes or caricatures.” Given the
context, I find a reasonable employee’s plain and logical understanding would not simply ignore
10 the protected groups identified in the very same rule as the rule’s objective, particularly
considering the racial and ethnic examples immediately following the language at issue. The
General Counsel likewise faults the language in the example of bullet points stating that the
listed examples do not include all types of conduct that may be considered harassing. It would be
impossible to list every single behavior that could potentially give rise to liability for harassment
15 under various local, state, and federal antidiscrimination laws, and therefore it would be
unworkable to impose such a requirement. In any event, reading the rule in context, I find
employees “would recognize the legitimate business reasons for which such a rule was
promulgated, and would not reasonably believe that it reaches Section 7 activity.” *Lafayette Park
Hotel*, 326 NLRB at 827.

20 Turning to the “bullying” provision of the Prohibition Against Harassment rule, this part
of the rule states that “[b]ullying does not have to be based on a protected classification to violate
this policy.” The language of the bullying policy prohibits abusive, repetitive behavior, that
represents an imbalance of power, “verbal abuse,” and conduct that is “threatening, intimidating
or obscene.” As the Board has found prohibitions against “abusive and profane language,”
25 “harassment,” and “verbal, mental and physical abuse” are lawful, I find the bullying provision
herein likewise does not violate the Act. *Lutheran Heritage*, above, at 646.

30 The General Counsel asserts that without a proximately placed adequate savings clause,
The rule violates the Act. While I agree, as explained above, that the savings clause is
insufficient alone to bar liability for an otherwise overly broad rule, I do not find the rule at issue
to be overly broad.⁹

⁷ The language in *Stericycle* articulates the standard for determining the lawfulness of a rule that is not facially restrictive as whether an employee *could* reasonably interpret a rule to restrict Section 7 activity, as opposed to *Lutheran Heritage*’s standard as whether an employee *would* reasonably construe the language to prohibit Section 7 activity. Interpretations of how rules could be applied are as varied as the individuals reading them and the particular lens they view the world through, for infinite reasons. I therefore construe the “reasonable employee” standard to encompass longstanding tenets of ordinary interpretation, such as giving the rule a reasonable reading, refraining from reading phrases in isolation, and not presuming improper interference with employee rights.

⁸ The rules in the cases the General Counsel cites concerned rules about “insubordination or other disrespectful conduct” and “negative conversations about associates and/or managers” were not in the context of an antidiscrimination/antiharassment policy. (R Br. 69.)

⁹ The savings clause does not come into play until it purports to “save” an otherwise invalid rule. There is no requirement for a handbook (or other document) to even contain a savings clause for the Board to find a rule contained therein does not violate the Act.

Assuming the General Counsel established her initial burden, the Respondent has advanced legitimate business reasons for its policy against harassment, including its undisputed legal requirement to maintain an environment free from unlawful harassment. The General Counsel argues that the same could be accomplished with a more narrowly drawn rule. I suppose a rule within a handbook could always be more narrowly drawn by explicitly stating after every conceivable ambiguous term or phrase that the term or phrase does not infringe on specifically referenced broad Section 7 rights. Such an approach, however, would be impracticable and therefore inconsistent with a reasonable interpretation.¹⁰

Of course, if the Prohibition Against Harassment rule was used to restrict the exercise of Section 7 activity, such action would violate the Act. Based on the foregoing, however, I find the General Counsel has not met her burden to prove maintenance of the Respondent's Prohibition Against Harassment rule violates the Act, and I recommend dismissal of complaint paragraphs 5(a)(2) and (3).

5. Respectful Workplace

Complaint paragraph 5(a)(4) concerns the Respondent's Respectful Workplace rule, which states:

A Respectful Workplace Is Everyone's Responsibility

- Refrain from any conduct that could be construed as discrimination, harassment, bullying or retaliation.
- Treat others with respect and dignity. Everyone at Starbucks, including partners and customers, should feel welcomed and safe.
- Keep the workplace professional at all times.
- Draw early attention to unwelcome or offensive conduct by informing the offending person to stop, if comfortable doing so.
- If experiencing or becoming aware of conduct that violates the respectful workplace policies, immediately report concerns to a store manager, district manager, the Partner Resources Support Center, or to Ethics & Compliance.

The General Counsel contends that the use of ambiguous terms like “harassment,” “unwelcome,” and “offensive,” are ambiguous and an employee could reasonably understand them to restrict Section 7 activity. The Respondent asserts that, when read in context, this rule is a necessary part of Starbucks' lawful anti-harassment, discrimination, and retaliation policies.

The rule is contained in a distinctive green box rather than as regular text in a broader rule, and it appears between the handbook section entitled “Reporting and Investigation Process” (which encompasses any company policy violation, not just discrimination/harassment) and the

¹⁰ In the context of an antitrust case, the Supreme Court, when discussing whether the lawfulness of conduct could turn upon judgements of degrees of efficiency, stated, “That would be a recipe for disaster, for a ‘skilled lawyer’ will ‘have little difficulty imagining possible less restrictive alternatives to most joint arrangements.’” *Nat’l Collegiate Athletic Ass’n v. Alston*, 594 U.S. 69, 98 (2021), quoting *Areeda & H. Hovenkamp*, *Antitrust Law* ¶1913b, p. 398 (2018). Though this case is obviously not an antitrust case, the logic would apply absent application of a reasonableness standard.

handbook section entitled, “Accommodating our Partners,” which outlines the process for disability or other workplace accommodations.

5 I find the General Counsel has established that a reasonable employee could construe the
 Respectful Workplace rule as interfering with Section 7 activity. As the General Counsel notes,
 an employee who is not inclined to organize or concertedly complain about working conditions
 will likely not welcome a coworker’s efforts to engage them in an attempt to organize or improve
 working conditions. An employee who has strong personal antiunion sentiment may very well
 10 view attempts to organize as offensive to their views.¹¹ I also agree that the reporting aspect of
 the rule would encourage employees to immediately inform supervisors about nascent union
 organizing.

15 I disagree with the Respondent that when read in context this rule would be seen as a
 necessary part of lawful antidiscrimination policies. This rule is situated in a colored box that
 stands out from the other rules, and it does not expressly relate back to these policies. The
 business justifications behind the antidiscrimination policies, therefore, do not legitimize the
 rule. Accordingly, I find the General Counsel has met her burden to prove the Respectful
 Workplace rule violates Section 8(a)(1).

20 6. Attendance and Punctuality

Complaint paragraph 5(a)(5) concerns the Respondent’s Attendance and Punctuality
 policy, which states:

25 **Attendance and Punctuality**

A partner’s reliability in reporting to work when scheduled and on time is essential to a
 store’s efficient operations and in providing customers with the Starbucks Experience.

30 If a partner cannot report to work as scheduled or will be late to work, the partner must
 call and speak directly with the store manager or assistant store manager with as much
 advance notice as possible prior to the beginning of the shift. If a manager is not in the
 store, the partner should notify the partner leading the shift. Leaving a message or note
 without first making reasonable attempts to directly contact a manager or the partner
 35 leading the shift is not acceptable. Sending an email or a text message is not an
 acceptable form of providing notice.¹²

40 ***Responsibility for Finding a Substitute:*** Planned time off, such as for a vacation day,
 must be approved in advance by the manager. If a partner will be unable to report to work
 for a scheduled shift and knows in advance, it is the partner’s responsibility to notify the
 store manager or assistant store manager and for the partner to arrange for another partner
 to substitute.

¹¹ The term “harassment” without more does not in my view render the rule unlawful. Harassment in the employment context is widely known to mean conduct that crosses the line of acceptable workplace behavior.

¹² There is nothing preventing an employee from memorializing their verbal notice in a text.

The General Counsel asserts that the requirement that partners call and speak directly with a member of management if they will be late or unable to come into work, and the prohibition against providing notice through email or text message, could chill a reasonable employee from exercising their right to walk out or go on strike. The General Counsel also asserts that the requirement for a partner to arrange for a substitute if the partner knows in advance they will not be able to come to work could chill a reasonable employee from striking.

The Respondent contends that the policy is necessary to ensure enough partners are working to efficiently serve the customers. The requirement to contact the store manager or assistant store manager about an absence is so that Starbucks “can adjust the schedule and make arrangements for other partners or determine how they’re going to respond if someone can’t work their shift.” As to the requirement to try to contact the manager directly rather than leaving a message, the Respondent stated, “We want the manager or partner leading the shift to be contacted directly. A note could get lost, overlooked.” (Tr. 2039–2043.)

I find the Respondent’s Attendance and Punctuality policy is not overly broad. The rule concerns what it purports to: attendance and punctuality. The General Counsel has not explained how the requirement for employees who will miss or be late for a scheduled shift to speak directly with the store manager or the assistant store manager, the people in charge of ensuring the store is staffed, would chill an employee from a lawful walkout or strike. Likewise, it is unclear how finding a substitute for a shift the employee knows in advance they will miss would chill an employee’s exercise of their right to strike. These are ordinary, commonplace practices in most workplaces, and are very different from policies that call attention to protected activities and arguably prohibit them. Compare *2 Sisters Food Group*, 357 NLRB 1816, 1817–1819 (2011) (rule prohibiting employees from “walking off” reasonably interferes with protected activity given the common use of the term “walkout” as a synonym for a strike); and *Heartland Catfish Co.*, 358 NLRB 1117, 1118 (2012) (reasonable employee would read rules prohibiting employees from leaving their workstations to prohibit only unauthorized leaves or breaks, not to prohibit conduct protected by Section 7).

Based on the foregoing, I recommend dismissal of complaint paragraph 5(a)(5).

7. Dress Code and Personal Appearance

Complaint paragraphs 5(a)(6) and (7) concern aspects of the Respondent’s Dress Code and Personal Appearance policy. The provision regarding shirts, sweaters, and jackets states:

Shirts, Sweaters and Jackets

[...]

Shirts may have a small manufacturer’s logo, but must not have other logos, writings or graphics. The base shirt color must be within the color palette (black, gray, navy blue, brown, khaki or white). These same colors may be the base color for a subdued, muted pattern. Starbucks®-issued promotional shirts may be worn for events or when still relevant for product marketing.

[...]

Solid-color sweaters or jackets within the color palette may be worn. Other than a small manufacturer’s logo, outerwear must not have logos or writings.

This rule will be referred to as the “shirt rule.”

The provision regarding pins states:

Pins

Partners may only wear buttons or pins issued to the partner by Starbucks for special recognition or for advertising a Starbucks-sponsored event or promotion; and one reasonably sized and placed button or pin that identifies a particular labor organization or a partner’s support for that organization, except if it interferes with safety or threatens to harm customer relations or otherwise unreasonably interferes with Starbucks public image. Pins must be securely fastened.

Partners are not permitted to wear buttons or pins that advocate a political, religious or personal issue.

The issue regarding pins was decided in *Starbucks Corp.*, 355 NLRB 636 (2010), adopting a two-member decision at 354 NLRB 876, 894 (2009). The Board adopted the administrative law judge’s decision that the Respondent failed to establish special circumstances to justify the “one-pin rule,” and the rule therefore violated Section 8(a)(1). As the Board has ruled on the very issue before me, in a case involving the same parties, I find the doctrine of collateral estoppel precludes relitigating the issue.

I note that at least a couple of other administrative law judge decisions currently pending before the Board have addressed the pin issue. On December 6, 2023, Judge Silverstein issued his decision in *Starbucks Rsrv. Roastery*, Case 02–CA–305984, 2023 WL 8468529 (2023). His factual findings established that though the Roastery stores have a different and far more detailed dress code than the ordinary stores, the one-pin rule is the same.¹³ Noting that the Court of Appeals for the Second Circuit had reversed the Board’s decision cited above, *NLRB v. Starbucks Corp.*, 679 F.3d 70, 78 (2d Cir. 2012), he dismissed the allegation, applying collateral estoppel based on the Court’s decision.

Judge Amchan issued a decision on February 29, 2024, based on a complaint alleging maintenance of the same one-pin provision violates Section 8(a)(1). *Starbucks Corp.*, Case 02–CA–308848, 2024 WL 893559 (2024). He expressed uncertainty as to whether the Board had acquiesced to the Second Circuit’s decision but concluded that the permission to wear the one pin established sufficient special circumstances.

The Board generally applies a “non-acquiescence policy” to court decisions that conflict with Board law. See, e.g., *Minnesota Timberwolves Basketball*, 365 NLRB No. 124 fn. 13 (2017); *Nielsen Lithographing Co. v. NLRB*, 854 F.2d 1063, 1066–1067 (7th Cir. 1988). Administrative law judges are instructed to follow Board precedent, not court of appeals precedent, unless and until reversed by the Supreme Court or a subsequent Board decision. Importantly, on February 21, 2024, the Board stated, “We respectfully disagree with the

¹³ For this reason, any factual or legal findings regarding other dress code violations in Judge Silverstein’s decision are not instructive here.

decision[] in *NLRB v. Starbucks Corp.*, 679 F.3d 70 (2d Cir. 2012) (employer entitled to limit employees to one union button to avoid the distraction from its own buttons that multiple employee buttons would entail) . . . to the extent that [it is] inconsistent with the Board’s decisions in th[at] case[] and the principles stated herein.” *Home Depot USA Inc.*, 373 NLRB No. 25 fn. 28 (2024). For these reasons, I find *Starbucks Corp.*, 355 NLRB 636 (2010), still applies based on collateral estoppel, considering the Board’s recent and explicit disagreement with the Second Circuit’s decision.

Turning to the shirt rule, I find the General Counsel has established it is overly broad.¹⁴

In *Republic Aviation Corp v. NLRB*, 324 U.S. 793, 801–803 (1945), the Supreme Court held that employees have a protected right to wear union insignia at work. This right is balanced against the employer’s right to maintain order, productivity, and discipline. The Board has struck this balance by permitting employers to prohibit employees from wearing union insignia where the employer proves that “special circumstances” exist. *Id.* at 797–798; see also *Boch Honda*, 362 NLRB No. 83, slip op. at 2 (2015); *Sam’s Club*, 349 NLRB 1007, 1010 (2007); *Control Services*, 303 NLRB 481 (1991). Special circumstances may justify restrictions on union insignia “when their display may jeopardize employee safety, damage machinery or products, exacerbate employee dissension, or unreasonably interfere with a public image that the employer has established, or when necessary to maintain decorum and discipline among employees.” *Komatsu America Corp.*, 342 NLRB 649, 650 (2004); see also *United Parcel Service, Inc.*, 195 NLRB 441 (1972).

The special circumstances exception is narrow and “a rule that curtails an employee’s right to wear union insignia at work is presumptively invalid.” *E & L Transport Co.*, 331 NLRB 640 fn. 3 (2000). The burden of establishing the existence of special circumstances rests with the employer. *Pathmark Stores*, 342 NLRB 378, 379 (2004). Any rule impinging on the employees’ Section 7 right to wear union insignia must be narrowly tailored to the special circumstances justifying its maintenance. Mere employee contact with customers does not, by itself, justify employer prohibition of union buttons or insignia. *Virginia Electric & Power Co.*, 260 NLRB 408 (1982), citing *Floridan Hotel of Tampa, Inc.*, 137 NLRB 1484 (1962), *enfd.* as modified on other grounds 318 F.2d 545 (5th Cir. 1963).

Special circumstances can be found “when the prohibition against union insignia or apparel . . . ‘unreasonably interfere[s] with a public image that the employer has established.’” *Smithfield Packing Co.*, 344 NLRB 1 fn 20 (2004); quoting *Nordstrom, Inc.*, 264 NLRB 698, 700 (1982); See also *Bell-Atlantic-Pennsylvania, Inc.*, 339 NLRB 1084, 1086 (2003). The Board has held, “An employer’s concern about the ‘public image’ presented by the apparel of its employees is . . . a legitimate component of the ‘special circumstances’ standard.” *W San Diego*, 348 NLRB 372, 380 (2006).

The shirt rule, on its face, restricts union insignia on shirts, sweaters, and jackets, permitting only a manufacturer’s logo. It is therefore presumptively invalid and the Respondent must establish special circumstances. I appreciate and duly consider the plethora of evidence

¹⁴ The complaint underlying Judge Amchan’s decision also contained an allegation regarding the shirt rule. His was issued after the evidence in this case was presented, however, and does not specifically analyze the shirt rule apart from the overall dress code.

regarding Starbucks' public image as a "welcoming third place" and its mission and values, including "[c]reating a culture of warmth and belonging, where everyone is welcome." The company also asserted as a business justification that they want the green apron, which represents the Starbucks brand, to be the focal point and don't want large logos or writings or graphics with customers trying to read what is on the partner's shirt. Starbucks also does not want partners advertising a competitor's coffee on their shirts. As the General Counsel points out, however, the rule at issue prevents partners from wearing shirts with union insignia hidden beneath their green apron, or from wearing shirts with a logo the same size as a manufacturer's logo. (GC Br. 76; Tr. 2154–2155.) To argue a small union insignia detracts from Starbucks' public image displays an inherent bias by assuming customers are somehow distracted by or dislike a particular union's logo more than they are distracted by or dislike, for example, the company Nike's logo.¹⁵ No such evidence exists.

Based on the foregoing, I find the General Counsel has established the shirt rule is overly broad to the extent that it prohibits union insignia that is hidden beneath the employee's uniform, and to the extent that it treats a manufacturer's logo more favorably than comparably sized union insignia.¹⁶

8. Personal Mobile Devices

Complaint paragraph 5(a)(8) concerns the Respondent's Personal Mobile Devices rule and alleges the following provisions violate Section 8(a)(1):

Partners are not permitted to send or receive text messages using personal mobile devices while working. In addition, if a partner needs to contact the manager during nonworking

¹⁵ The Respondent points to *NLRB v. Starbucks Corp.*, 679 F.3d 70, 78 (2d Cir. 2012), to argue that special circumstances have been shown. Putting aside the Board's stated disagreement with this holding, that decision turned on facts and analysis not applicable here, stating:

Starbucks is clearly entitled to oblige its employees to wear buttons promoting its products, and the information contained on those buttons is just as much a part of Starbucks's public image as any other aspect of its dress code. But the company is also entitled to avoid the distraction from its messages that a number of union buttons would risk. The record reveals that one employee attempted to display eight union pins on her pants, shirts, hat, and apron. Wearing such a large number of union buttons would risk serious dilution of the information contained on Starbucks's buttons, and the company has a "legitimate, recognized managerial interest[]" in preventing its employees from doing so. *District Lodge 91*, 814 F.2d at 880.

Aside from the fact that the decision was focused on buttons, there is no threat of undue distraction in this case if union insignia is subject to the same parameters as permitted logos.

Like many companies, Nike has faced public backlash, including boycotts, for a variety of reasons. See <https://www.msn.com/en-us/news/world/nike-faces-furious-boycott-calls/ar-BB1khH5V>; <https://www.foxnews.com/sports/nike-responds-to-backlash-over-dylan-mulvaney-partnership-instructs-customers-to-be-kind-be-inclusive>; <https://www.cbsnews.com/news/colin-kaepernick-nike-ad-just-do-it-shares-ad-boycott/>.

¹⁶ I note a number of Starbucks ALJ decisions have found this provision has been disparately enforced. See 2023 WL 5506933 August 25, 2023; 2024 WL 466552 February 6, 2024; 2023 WL 6194147 September 21, 2023; 2024 WL 68035 January 4, 2024; 2023 WL 2327467 March 1, 2023. Though a technicality, I also construe the term "manufacturer's logo" to mean "brand logo" as many companies do not actually manufacture their own clothing.

hours (e.g., partner is unable to report for work), the partner must call the manager rather than send a text message.

The latter sentence of this rule is covered by my analysis of the attendance policy, and I find it is lawfully maintained. Regarding the prohibition from sending or receiving text messages, the General Counsel first argues that this is a restriction on solicitation and distribution, pointing to caselaw finding restrictions “during working hours” overly broad. But the rule on its face here states, “while working,” not “during working hours.” A reasonable employee as defined in *Stericycle* would read this provision as prohibiting texting while working, i.e. while performing their job. The General Counsel also argues that the prohibition on “receiving” a text message (as opposed to “reading” a text message) is overly broad because employees may not know whether their coworkers are on work time. This is a highly strained reading of the rule. The very same rule, in an uncontested section, provides that personal mobile devices “must be locked, remain on silent mode, and out of sight” unless the partner is checking the time or accessing a Starbucks resource. No reasonable reading of this policy prohibits lawful solicitation or distribution or other protected activity. I therefore recommend dismissal of complaint allegation 5(a)(8.)

9. Personal Telephone Calls and Mail

Complaint paragraph 5(a)(9) concerns the Respondent’s Personal Telephone Calls policy, alleging the following provisions violate Section 8(a)(1):

Partners are not permitted to receive personal telephone calls at the store unless the nature of the call is an emergency. Personal telephone calls may be made only while on break, from the store’s back room or office, and only if absolutely necessary and without disrupting store operations.

The sentence immediately following this section, which when combined with it comprises the whole rule contained in a single paragraph, states:

Making a personal long-distance telephone call or accepting a collect personal call using the store telephone is strictly prohibited. A partner must not use a Starbucks address as a personal mailing address.

The General Counsel argues this language is overly broad because it prohibits an employee from making or receiving Section 7-related calls during nonwork time other than in the back room or office. I agree that the rule, as written, could reasonably be construed as prohibiting Section 7 activity in nonwork areas, such as the parking lot, on breaks or otherwise during nonwork time. *See Meijer, Inc.*, 344 NLRB 916, 923–924 (2005). The Respondent asserts that the express use of the term “store telephone” shows that the rule only applies to the store telephone. The store phone is only specifically referenced for long distance calls. This distinguishes it from, rather than merges it with, the rest of the rule. The rule could be drawn more narrowly to prohibit personal calls only in work areas. As such, the General Counsel has established this rule violates Section 8(a)(1).

10. Social Media

Complaint paragraphs 5(a)(10) and (11) concern the Respondent’s Social Media policy. The contested provisions state:

Generally, Partners must: [. . .]

- Respect the privacy of personal information; partners must not share sensitive or personal information about customers or other partners.

- Only distribute Starbucks information that has been made public. Partners must not distribute internal, confidential or private company information, including future promotional activities, trade secrets, store performance, internal reports, policies, procedures, suppliers or licensees.

[. . .]

- Be open about working for Starbucks and not represent themselves as a Starbucks spokesperson. Use statements such as, “I’m a Starbucks partner and these are my personal opinions, not necessarily the view of the company...” or “The postings on this site are my own and do not necessarily reflect the views of Starbucks.”¹⁷

- Not respond to media requests. Partners must direct contact from the media to Starbucks Media Relations at press@starbucks.com.

This Social Media policy is immediately followed by the second paragraph of the aforementioned savings clause as follows:

Nothing in this guide should be interpreted to interfere with, restrain or prevent partner communications regarding wages, hours or other terms and conditions of employment. Partners have the right to engage in or refrain from such activities in exercise of their rights under the National Labor Relations Act.

I find the first two provisions regarding sharing personal information and distributing only public information are overly broad. “[E]mployees are entitled to use for organizational purposes information and knowledge that comes to their attention in the normal course of their work activity but are not entitled to their employer’s private or confidential records.” *Ridgeley Mfg. Co.*, 207 NLRB 193, 196–197 (1973), *enfd.* 510 F.2d 185 (D.C. Cir. 1975); see also *W.R. Grace & Co.*, 240 NLRB 813, 820 (1979). Partners clearly learn personal information about their coworkers through their work, and indeed the record establishes they are expected to personally contact coworkers to cover their shifts when they need to find a replacement for an anticipated absence. The provision prohibiting sharing of personal information about partners could be read to prohibit sharing of employees’ personal telephone numbers via a platform such as Facebook Messenger or other non-public facing social media direct communication methods, for

¹⁷ The General Counsel does not specially argue that the language in this bullet point violates the Act. Instead, the General Counsel focuses on media inquiries, while this provision concerns social media postings. As no argument has been submitted about disclaimer language in social media posts, I decline to address this particular part of complaint allegation 5(a)(11).

organizational purposes.¹⁸ As to the provision regarding distribution, this is reasonably interpreted to prohibit providing a union with internal policies and procedures (both specifically referenced in the rule) that relate to employment for organizational purposes or other union activities. See *Rio All-Suites Hotel & Casino*, 362 NLRB 1690, 1691 (2015) (rule that expressly covers “policy and procedures manuals” overly broad);¹⁹ *Quicken Loans*, 361 NLRB 904 (2014), reaffirming as modified and incorporating 359 NLRB 1201 (2013)(handbooks).

The Respondent argues the specifically delineated lawful provisions, such as “future promotional activities,” “trade secrets,” “store performance,” internal reports,” and the illogically lumped together “procedures, suppliers or licensees,” render the provision unambiguous. (R Br. 143.) The terms “policies” and “procedures” are both separately referenced in the list of examples, without qualification. Employment policies inaccessible to the public are not excluded. The other lawful restrictions do not, in context, negate unlawful restrictions plainly and specifically cited amidst the examples.

The Respondent further argues that the policy is clarified by the language that appears in the bullet point directly above these two provisions, which states partners must:

- Not use an image, statement or anything else that’s protected by copyright laws.

This argument is unavailing, and reasonably appears to address copyright protected material separately from personal information about partners or non-public policies and procedures.

Turning to the prohibition on responding to media requests and the requirement to refer contact from the media to Starbucks Media Relations, the General Counsel argues that this is overly broad because it extends to their personal views concerning working conditions. The context is somewhat confusing, as it is contained in the Social Media policy yet its language broadly refers to media requests. Regardless, I find the language is overly broad as it reasonably could be interpreted to prevent a partner from communicating with the media on a closed platform such as Facebook Messenger or other social media direct communication methods, about organizational activities at the Respondent’s locations.

The Respondent argues that a reasonable employee would understand the prohibition only applies to communications on behalf of Starbucks by virtue of the language above telling partners not to represent themselves as a Starbucks spokesperson. This language appears in the first of nine bullet points in the rule, while the directive not to respond to the media appears in the ninth. This does not sufficiently clarify that responding to media requests only where the partner is looking to present themselves as Starbucks’ spokesperson is the prohibited behavior.

As a business justification, Starbucks argues that, as a publicly traded company, it must control the formal communications made on behalf of the company because it can impact things like stock value. While I don’t doubt the legitimate business justifications for controlling formal communications made on behalf of the corporation, the rule could be more narrowly drawn to

¹⁸ The policy does not distinguish between public or broader facing social media and communications among individuals or closed groups via social media.

¹⁹ Though *Rio Hotel*, like others cited herein, was overruled by *Boeing Co.*, 365 NLRB No. 154 (2017), *Boeing* was overruled as it pertains to this rule by *Stericycle*, and therefore its reasoning applies.

separate out personal protected activities, such as communicating with the media about union organization efforts, from corporate speech.

Finally, for the reasons detailed above, the savings clause is deficient under the Board’s standards and does not “save” the overly broad language in these provisions of the Social Media policy. Accordingly, I find the General Counsel has established the complaint allegations in paragraphs 5(a)(10) and (11) violate Section 8(a)(1).

11. Soliciting/Distributing Notices

Complaint 5(a)(12) concerns the Respondent’s Soliciting/Distributing Notices policy, and alleges the following provisions violate Section 8(a)(1):

Partners are prohibited from distributing or posting in any work areas any printed materials such as notices, posters or leaflets. Partners are further prohibited from soliciting other partners or non-partners in stores or on company premises during working time or the working time of the partner being solicited. The only exception that may apply is when a partner is engaged in distribution or solicitation related to a Starbucks-sponsored event or activity.

Persons not employed by Starbucks are at all times prohibited from selling, soliciting, distributing or posting written materials on company premises. If inappropriate solicitation occurs in a store by a non-partner, a partner should politely ask the nonpartner to stop or leave the store.

The General Counsel’s argument concerns only the solicitation provisions of this rule and asserts that solicitation bans cannot extend to work areas during nonwork time. Citing to *Food Services of America, Inc.*, 360 NLRB 1012, 1016–1017 (2014), and *Dish Network, LLC*, 363 NLRB 1307, 1318 (2016), the General Counsel more specifically, and erroneously, argues that a solicitation rule cannot bar an employee not on work time from soliciting an employee who is on work time.²⁰ Consistent with Supreme Court precedent, the Board has long held that solicitation during work time can be lawfully prohibited when either the employee soliciting or the employee being solicited is on the clock. See *Our Way, Inc.*, 268 NLRB 394 (1983) (“The governing principle is that a rule is presumptively invalid if it prohibits solicitation on the *employees’* own time”; citing *Republic Aviation*, above)²¹ (Emphasis added).

The General Counsel also argues that the discrimination standard in *Register Guard*, 351 NLRB 1110, 1119 (2007) enfd. in relevant part and remanded sub nom. *Guard Publishing v. NLRB*, 571 F.3d 53 (D.C. Cir. 2009), should be reversed. As I am bound to apply extant Board law, any change in this regard must come from the Board or Supreme Court.

²⁰ The rule at issue in *Dish Network* prohibited both solicitation and distribution “during work time or in work areas.” 363 NLRB at 1315, emphasis added. The rule in *Food Services of America* likewise does not stand for the proposition that one of the employees involved can be on work time. The General Counsel’s reliance on *W.D. Manor*, 357 NLRB 1526, 1526 n.1 (2011), likewise fails because that case did not involve a finding that the rule at issue was facially overly broad.

²¹ The Board also clarified in *Our Way* that “working time” is lawful language, as opposed to “working hours.”

For the reasons articulated above, I recommend dismissal of complaint paragraph 5(a)(12).

5 12. Video Recording, Audio Recording and Photography

Complaint paragraph 5(a)(13) concerns the Respondent’s Video Recording, Audio Recording and Photography policy (the “recording policy”) and alleges the following provision violates Section 8(a)(1):

10

Personal video recording, audio recording or photographing of other partners or customers in the store without their consent is not allowed except as protected under federal labor laws.

15 The rule, in its entirety, contains a second paragraph immediately beneath this sentence, which states:

20

Starbucks installs security cameras in the stores for partner and customer safety and to monitor activities involving cash. Partners should be aware that these security cameras will capture video and/or audio recordings.

25

The General Counsel asserts that this rule is overly broad because the consent provision only applies in some states, and the phrase “except as protected under federal labor laws” is too vague. The Respondent points to pre-*Stericycle* decisions regarding recordings in the workplace and asserts the rule is narrowly tailored to avoid infringing on Section 7 rights while preserving the Respondent’s interest in keeping the workplace safe and free of recordings to which customers and partners do not consent.

30

Under Board law, an employee who makes an audio or video recording in the workplace may be engaged in activity protected by Section 7 of the Act, depending on the facts and circumstances of a particular case. In *Rio All Suites Hotel*, supra at 1693, the Board stated:

35

Employee photographing and videotaping is protected by Section 7 when employees are acting in concert for their mutual aid and protection and no overriding employer interest is present. Such protected conduct may include, for example, employees recording images of employee picketing, documenting unsafe workplace equipment or hazardous working conditions, documenting and publicizing discussions about terms and conditions of employment, or documenting inconsistent application of employer rules.

40

(Footnote omitted.) I find the instant rule could reasonably be read to restrict these and other protected activities. The Respondent asserts that the rule is necessary to keep the workplace free from recordings to which customers and partners do not consent. Yet the same rule states that Starbucks records partners and customers for their safety. The concern about recording is therefore not a safety concern. The Respondent did not provide evidence that it informs their customers that entering a Starbucks store with a surveillance system constitutes consent to be recorded, so this justification is insufficient to establish an overriding interest.

45

The Respondent further argues that an employee embarking on Section 7 activity would be familiar with Section 7 rights and would realize the rule does not restrict these rights because of the exception for activity protected by federal labor laws. I don't read *Stericycle* to require that the reasonable employee knows "federal labor laws" (including Section 7) as a prerequisite to contemplating protected activity. For example, the employee contemplating recording a group safety meeting because they believe their employer is telling employees to engage in unsafe work activity, would reasonably be chilled by this rule. This employee may or may not know such activity is protected, and the law does not require them to possess such knowledge for protection to attach. Assuming the Respondent established a legitimate business justification, I find the rule could be more narrowly tailored by describing the types of recording/photography activities permitted by federal labor law.²²

Based on the foregoing, I find the General Counsel has established the recording policy is overly broad in violation of the Act.

13. Acceptable Use of Starbucks Electronic Communications Systems

Complaint paragraph 5(a)(14) concerns the Respondent's Acceptable Use of Starbucks Electronic Communications Systems policy, and alleges the following provisions violate the Act:

Starbucks electronic communications systems are provided to users at Starbucks expense to assist them in carrying out the company's business. At all times, a partner's electronic communications should be consistent with business use and professional use. Under no circumstances should a partner access, download or send on Starbucks equipment any information that contains illegal, defamatory, obscene, offensive or pornographic material, or material that would violate Starbucks equal opportunity or anti-harassment policies or infringe on another person's intellectual property rights.

Pursuant to current Board law, the Act does not restrict an employer's right to restrict the use of its equipment. *Caesar's Entertainment*, 368 NLRB No. 143 (2019). The General Counsel argues that *Caesar's Entertainment* should be overruled. As I lack authority to overrule or modify Board precedent, this argument fails. Accordingly, I recommend dismissal of this complaint allegation.

14. Confidentiality

Complaint paragraph 5(a)(15) concerns the Respondent's Confidentiality policy, and alleges the following provision violates the Act:

During employment with Starbucks, partners may have access to information such as drink recipes, product specifications, systems, other partner records and financial data, as well as new product innovations and ideas. All information is confidential during the course of employment and after separation, and it is imperative that any information

²² It is clear throughout the record that most witnesses, including managers, asked about the federal labor law provision had no idea what it meant. This is not surprising, as it involves a complex area of law with nuances that wouldn't likely be top of mind even for most labor lawyers. It's also indicative of the rule's overbreadth.

gained during a partner’s employment with the company is not disclosed to anyone outside the company, including a future employer, friends or family, or anyone within the company who is not authorized to receive such information. Partners may not under any circumstances take any records, training materials or manuals when they leave.

The General Counsel argues that the rule is overly broad and could be construed to prohibit Section 7 activity because it states, “all information is confidential” and “any information gained during a partner’s employment” must not be disclosed. The Respondent contends that a reasonable employee would not interpret the provisions as concerning partner records or non-public financial data as applying to them because they do not have access to either during their employment.

I find the provision stating that “other partner records and financial data” cannot be disclosed could reasonably be read as prohibiting partners from discussing wage data with a union or other third party. The Respondent has articulated legitimate business interests in maintaining the rule, such as preventing partners from harming Starbucks’ competitive advantage by disclosing proprietary drink recipes and other product specifications and systems, and the policy prevents insider trading because the premature disclosure of non-public financial information could violate criminal law. These are certainly legitimate reasons, but the rule could be more narrowly drawn to exclude information about partner wages.

The General counsel also asserts that the language prohibiting employees from taking “records, training materials, or manuals” when they end their employment could reasonably be interpreted to apply to manuals acquired in the course of their employment, such as a copy of the employee handbook, to pursue Section 7 activity. I agree and find the provision could be narrowed to specifically exclude the handbook and other documents that address wages or working conditions. *Quicken Loans*, supra. I find the General Counsel has established the confidentiality provision is overly broad.

15. Conflicts of Interest

Complaint paragraph 5(a)(16) concerns the Respondent’s Conflicts of Interest policy, alleging the following provisions violate the Act:

Conflicts of Interest

Partners are prohibited from engaging in any transaction or activity that may constitute a conflict of interest. A conflict of interest exists when a personal interest or activity interferes or appears to interfere with the duties that a partner performs at Starbucks. A conflict of interest may influence even the most honest person, and the mere appearance of a conflict may cause a partner’s act to be questioned. Partners must avoid situations that affect or appear to affect the ability to act in the best interests of Starbucks.

Some situations in which a conflict of interest may arise, and therefore must be avoided, are:

- Being employed by, consulting for or operating a business that does or desires to do business with Starbucks or that competes with Starbucks (e.g., working in a management

capacity for a company that could be considered a competitor, a Starbucks manager working for a company that could be considered a competitor, or working in any capacity for a competitor without disclosing it to Starbucks).

- Making a substantial direct investment in such a business, either by a partner or a partner’s immediate family member.
- Developing competing products or businesses while employed at Starbucks.
- Diverting potential or actual business opportunities away from Starbucks for personal gain.
- Engaging a family member to perform services for Starbucks.
- Acting on behalf of anyone besides Starbucks in any transaction with Starbucks (e.g., helping someone sell products and/or services to Starbucks).
- Personally engaging in real estate or other transactions in which Starbucks has an interest.

The General Counsel argues that the rule’s sweeping language goes beyond the list of the examples it provides and includes “any transaction or activity” that “may” constitute a conflict of interest, and activities that merely “appear” to be a conflict, and such language could be interpreted to prohibit activity such as striking, picketing, or economic pressure. The Respondent contends the rule, read as a whole with the examples, makes clear the rule does not speak to protected conduct.

I find the language stating that, “[a] conflict of interest exists when a personal interest or activity interferes or appears to interfere with the duties that a partner performs at Starbucks,” and “[p]artners must avoid situations that affect or appear to affect the ability to act in the best interests of Starbucks,” even when read within the context of the rule, could reasonably be construed as prohibiting protected activities such as striking, picketing, and other economic pressure.

The Respondent has put forth legitimate business justifications for the Conflicts of Interest policy, including protecting Starbucks from anticompetitive behavior by developing competing products or businesses, and to protect the brand against the appearance of nepotism or improper employee preferential treatment. While I agree that these are legitimate concerns, I find the rule could be more narrowly drawn to make clear that protected activity will not be construed to “interfere with duties a partner performs at Starbucks” or to be against the “best interests of Starbucks.” Accordingly, I find the General Counsel has established the Conflicts of Interest rule is overly broad.

16. Media Inquiries

Complaint paragraph 5(a)(17) concerns the Respondent’s Media Inquiries policy, which states:

Starbucks partners may receive requests from the media for an interview or filming in a Starbucks store or other Starbucks support locations. Please note that, without exception, only approved Starbucks Corporation spokespeople are authorized to talk to the media. This includes local or international news, trade publications, school newspapers and other media outlets. Partners must refer all media inquiries to the Starbucks Media Hotline at (888) 997-8628.

Both the General Counsel and the Respondent argue the Media Inquiries policy in conjunction with the media inquiry provision in the Social Media policy discussed above. Under the same rationale as detailed in that section, I find the Media Inquiries rule is overly broad. In addition, this rule does not contain language attempting to limit communications with the media with disclaimer language, and it does not purport to be confined to social media. I find the General Counsel has established this complaint allegation.

17. Mobile Computing

Complaint paragraph 5(a)(18) concerns the following provisions of the Respondent's Mobile Computing policy:

Company-provided laptops and other mobile devices are intended for business use only. As authorized, users of personal mobile devices may request access to company information on their personal mobile device through the approved request process. Accessing company information on a personal mobile device is a choice, not an obligation. Costs are not reimbursed unless required by law. Users who want to access company information on a personal mobile device are required to install or implement Starbucks-required security, control or monitoring technology on the device.

As with the Acceptable Use of Starbucks Electronic Communications Systems rule, the General Counsel argues *Caesar's Entertainment*, supra, should be overruled. As I lack authority to overrule or modify Board precedent, this argument fails. Accordingly, I recommend dismissal of this complaint allegation.

18. Requests for Partner Information

Complaint paragraph 5(a)(19) concerns the following provisions of the Respondent's Requests for Partner Information policy:

From time to time, Starbucks receives inquiries from outside parties requesting personnel information or an employment reference regarding a partner or former partner. At all times, partners are expected to keep confidential any information about another partner and are strictly prohibited from responding to any requests. A partner should refer any such inquiry to the Partner Contact Center. (*Refer to the "Leaving Starbucks" section for more information about how a partner's current or former employment can be verified.*)

The General Counsel contends the phrase "[a]t all times, partners are expected to keep confidential any information about another partner and are strictly prohibited from responding to any requests," could reasonably be read to include inquiries from a labor organization, the media, or a government agency regarding protected activities or wages or terms and conditions of employment. The Respondent contends that the policy does not reasonably tend to chill Section 7 activity because it expressly refers to inquiries directed at Starbucks. In addition, it instructs the partners on what to do if they receive such a request.

When read in context, most employees would construe this provision to be limited to job references or similar inquiries that are, particularly in this day and age at large companies,

handled centrally by management. Nonetheless, a reasonable employee could construe it as prohibiting disclosure of protected wage or other working condition information. The argument that it applies only to Starbucks management is diminished by the language instructing “partners” not to respond to “any requests.”

The Respondent has established legitimate business interests for this rule. First and foremost are legal considerations on how they can respond to employment verification inquiries. In addition, Starbucks’ centralized process ensures the inquiries it receives are legitimate, rather than phishing expedition or scams. The rule could be more narrowly drawn, however, to exclude protected inquiries and responses concerning wages and other working conditions. Accordingly, I find the General Counsel has established the Requests for Partner Information policy is overly broad.

19. How We Communicate

Complain paragraph 5(a)(20) concerns the following provisions of the Respondent’s How We Communicate policy:

Partners are expected to communicate with other partners and customers in a professional and respectful manner at all times. The use of vulgar or profane language is not acceptable.

The facial validity of the How We Communicate policy was decided under current legal standards on August 10, 2023, in *Starbucks Corp.*, Case Case 04–CA–294636, 2023 WL 5140070 (2023). To conserve resources and avoid relitigating the matter, I informed the parties that I will adopt and rely on the prior findings and conclusions, which is that the provision is overly broad under the standards set forth in *Stericycle*.²³ See *Wynn Las Vegas, LLC*, 358 NLRB 690, 693 (2012). Any argument regarding the rule’s application is addressed in context.

20. Conflict Resolution

Complaint paragraph 5(a)(21) concerns the following provisions of the Respondent’s Conflict Resolution policy:

Starbucks endorses an atmosphere of mutual respect and support. If a partner experiences a disagreement or conflict with another partner, the partner should first discuss the problem with the other partner and make every effort to resolve it in a respectful manner. If unsuccessful, the partner should seek manager assistance in resolving the matter respectfully and professionally.

The General Counsel argues that the provision instructing employees to seek manager assistance could be construed to require employees to raise disagreements over protected issues such as pay, scheduling, or unionization exclusively with management, foreclosing discussion

²³ Tr. 1983–1985.

with other third parties.²⁴ The Respondent asserts that nothing about the policy forecloses other channels of reporting if the partner deems it necessary.²⁵

I find the rule could reasonably be construed as requiring employees to raise disagreements with coworkers about protected activity with management. Although the rule says employees “should” rather than “must” take this action, a reasonable employee would interpret it as a requirement. If a manager says, “You should clean the drains before clocking out,” no reasonable employee would view this as an option. For this reason, the Respondent’s defense that the policy does not foreclose other options is unpersuasive, and in fact suggests the rule could be drawn more narrowly to suggest alternative options. I find the General Counsel has established this complaint allegation.

21. Corrective Action

Complaint paragraph 5(a)(22) concerns the Respondent’s Corrective Action policy, which states:

In cases of serious misconduct, immediate separation from employment may be warranted. Examples of serious misconduct include, but are not limited to:

- Violation of safety and/or security rules.
- Theft or misuse of company property or assets
- Falsification or misrepresentation of any company document.
- Violation of Starbucks drug and alcohol policy.
- Possession of or use of firearms or other weapons on company property.
- Harassment or abusive behavior toward partners, customers or vendors.
- Violence or threatened violence.
- Insubordination (refusal or repeated failure to follow directions).
- Violation of any other company policy.

The General Counsel asserts that because “harassment” is not sufficiently defined in the Prohibition of Harassment policy, a reasonable employee could construe the “harassment” bullet point as prohibiting Section 7 activity. As I have found “harassment” is sufficiently defined, this argument fails. The General Counsel also asserts that the prohibition against “misrepresentation of any company document” is overly broad because false statements only lose the Act’s protection if they are “knowingly false or made with reckless disregard for their truth or falsity.” *Valley Hospital Medical Center*, 351 NLRB 1250, 1252 (2007), *enfd. sub nom. Nevada SEIU, Local 1107*, 358 F. App’x 783 (9th Cir. 2009). I agree, and even with a legitimate business justification, the language could be easily narrowed by including “knowing or reckless” or similar language at the provision’s outset. See *Newark Grubb Knight Frank*, 369 NLRB No. 121 (2020).²⁶ Finally, the General Counsel asserts the “violation of any other company policy” is overly broad considering other handbook policies found to have violated the Act.

²⁴ The General Counsel erroneously refers to this provision in her closing brief as another Conflict of Interest policy. (R Br. 157.)

²⁵ The Respondent offered business justifications for the mutual respect language, but the General Counsel only argues the chain-of-command provision is overly broad. (GC Br.92–93; R Br. 156–157.)

²⁶ This case was decided applying the more stringent *Boeing* standards.

The Respondent argues the examples of misconduct negatively impact job performance, morale, and retention, and Starbucks cannot offer the “third safe place” or encourage human connection when partners are unhappy because of uncorrected misconduct. While I agree these are legitimate concerns, the rule’s “falsification and misrepresentation” language could be more narrowly drawn as detailed above, and the “catchall” provision could be rectified by narrowing it to exclude the policies found to be overly broad, or by revising those policies to make them compliant. Accordingly, I find the General Counsel has established this complaint allegation.

22. Back cover

Complaint paragraph 5(a)(23) concerns the language on the back cover of the Partner Guide, which states:

This material is the property of Starbucks Corporation, and contains internal information about Starbucks, much of which is confidential. Unauthorized distribution or use of this material is strictly prohibited. This material should not be photocopied and should not be distributed to anyone other than a Starbucks partner, and should be kept secured when not in use.

For the reasons articulated regarding the last sentence of the Confidentiality policy set forth in complaint paragraph 5(a)(15), I find the General Counsel has established the language in the back cover is overly broad. It reasonably encompasses the Partner Guide and would prevent an employee from sharing it or its terms and conditions with outside parties such as unions. As the Board noted in *Newark Grub*, supra, “[W]e cannot imagine any justification for generally designating an employee handbook confidential that would outweigh the adverse impact on NLRA rights.” The General Counsel has established this complaint allegation.

D. Mutual Arbitration Agreement

Complaint paragraph 5(b) concerns the Respondent’s Mutual Arbitration Agreement, and asserts the following language violates Section 8(a)(1):

Claims Not Covered by this Agreement.

Claims excluded from this Agreement are: [a] claim or charge filed with a federal, state, or local administrative agency such as the Equal Employment Opportunity Commission, National Labor Relations Board, Department of Labor, Department of Fair Employment and Housing, the California Labor Commissioner, or other similar agency, though I am giving up the opportunity to recover monetary amounts from any such governmental agency related claim and instead am able to pursue a claim for monetary amounts through arbitration under this Agreement.

The above language is in the first paragraph in the “claims not covered” section of the arbitration agreement. The second paragraph says:

I understand that under the National Labor Relations Act I may be entitled to act concertedly or cooperate with others to challenge this Agreement in any forum. I

understand Starbucks will not retaliate against me if I act concertedly or cooperate with others to challenge this Agreement.

In *Kelly Services, Inc.*, 368 NLRB No. 130, slip op. at 4 (2019), the full Board found that restricting employees from receiving monetary compensation through Board proceedings violated Section 8(a)(1). This agreement does just that right on its face. It therefore violates Section 8(a)(1).

E. Store Operations Manual and Weekly Update Rules

1. Community Board Standards

Complaint paragraphs 5(c) and (d) allege that since April 25, 2022, Respondent has maintained the following overly broad and discriminatory Community Board Standards rule at its U.S. Stores. The Store Operations Manual states:

Community Board Standards

There are three categories of content that may be displayed on Starbucks Community Boards:

- Starbucks enterprise community programs and initiatives – post information about non-profit organizations and community events sponsored by Starbucks or disaster response initiatives at a national level.
- Starbucks local community programs and initiatives – post photos and other materials that demonstrate how we make a difference in local neighborhoods.
- Neighborhood community programs and initiatives – post events shared by customers regarding upcoming community programs.

Content should be refreshed at least on a weekly basis. Store managers are empowered to remove items that are not part of the Approved Content List. Items under the Unapproved Content list are examples of things that can be removed by the store manager, but it is not a complete or comprehensive list.

APPROVED CONTENT

Starbucks content

Starbucks may provide details on community programs and initiatives with promotional signage as indicated in the Siren's Eye, such as displaying the Third Place Policy or through specific Action items, such as disaster response posters.

Store-specific content

Details about community programs and initiatives, including photos from service projects; thank you letters from nonprofit organizations with whom your store has partnered; awards and recognition from the community or details about upcoming community events can be communicated on the community board.

Neighborhood content

Information about nonprofit neighborhood community programs and initiatives, such as notices for needed volunteers or announcements about community events can be shared.

UNAPPROVED CONTENT

The Community Board may not be used to post the following:

- For Rent or For Sale notices
- Solicitations
- Advertisements
- Business Cards
- Personal Ads
- Notices or Announcements that are political or religious in nature
- Notices that disparage Starbucks
- Any material that could be deemed offensive, insulting or derogatory

(GC Exh. 65.) The April 25, 2022, Weekly Updates to the Community Board Standards provided:

- Solicitations now included on the list of Unapproved Content
- Clarification has been added to empower the store managers to remove items that are not part of the Approved Content list.

(GC Exh. 66.)²⁷

Although not without limitations, the Board and the Supreme Court have long recognized the rights of employees to share union literature. See *Eastex, Inc. v. NLRB*, 437 U.S. 556, 570–572 (1978) (holding that employees have the right to distribute union literature in nonwork areas of the employer’s premises during nonworking periods and employers may not interfere with this right except to the extent necessary to maintain production or discipline); *Republic Aviation Corp. v. NLRB*, 324 U.S. 793, 801–805 (1945).

The Board has held, “[I]t is not unlawful for an employer to reserve to itself the exclusive use of its bulletin boards and to bar any postings by employees.” *Mid-Mountain Foods, Inc.*, 332 NLRB 229, 233 (2000), quoting *Sprint/United Management Co.*, 326 NLRB 397, 399 (1998). Where an employer has ceded its community board space to the public to use for posting notices of a similar nature to union content, i.e., “book clubs, art fairs and volunteer requests,” however, it cannot discriminate against the use of its board for posting union content. *Starbucks Corp.*, 373 NLRB No. 44 (2024); See also *Arden Post Acute Rehab*, 365 NLRB No. 109, slip op. at 1 fn. 3 (2017) enfd. in part 571 F.3d 53 (D.C. Cir. 2009). The Board appears not to strictly limit this rule to “solicitations,” having ruled on multiple occasions that if the employer regularly permits personal and other “non-work” related messages, be they “solicitations” or not, it must also

²⁷ The General Counsel does not argue that the Weekly Update was promulgated in response to Section 7 activity. (GC Br. 93–95.)

permit messages protected by Section 7, such as union-related messages. See, e.g. *Vons Grocery Co.*, 320 NLRB 53, 55 (1995); *Amelio’s*, 307 NLRB 182, 189–190 (1991).

The Community Board Standards explicitly prohibit solicitation and make no exception for union-related messages. Aside from this, other parts are ambiguous. For example, it is unclear whether a community member or off-duty employee’s posting of a local union picket or rally would be considered a permissible community “event” or “initiative,” permitted under the standards, or an expressly prohibited solicitation.²⁸ Likewise, the prohibitions on notices that are “political” creates some ambiguity, as unions, in addition to other organizations, are often politicized. While the policy permits postings about nonprofit neighborhood initiatives, which would presumably permit, for example, an event to support a food bank, would such a rule restrict a neighborhood union rally or a rally for the nonprofit Planned Parenthood to protect reproductive rights?²⁹ As these ambiguities must be construed against the Respondent, they weigh in favor of protection.

The Respondent argues its property interests and Fifth Amendment rights outweigh employees’ Section 7 rights. As I must adhere to Board law, and the Board has carved out the exceptions detailed above, I find this argument unavailing. As such, I find the General Counsel has established complaint allegations 5(c) and (d).

2. Back of house postings

Complaint paragraphs 5(f)(1) and (h) concern rules about postings in the back of the house (BOH). Paragraph 5(f)(1) alleges:

About August 22, 2022, Respondent, through its August 22-28 Weekly Update issued to employees at its U.S. Stores:

(1) promulgated and/or has since maintained an overly-broad and discriminatory work rule titled “Clarifying Our Back of House (BOH) Posting Standards”

Paragraph 5(h) alleges:

About September 19, 2022, Respondent, through its “Store Operations Manual,” dated September 19, 2022, promulgated and/or has since maintained an overly-broad and discriminatory work rule regarding Back of House (BOH) Posting Standards.

The August 22 Weekly Update notified leaders about the standards for posting in the BOH, and stated they would appear in the September 19 Store Operations Manual. The BOH Standards in the Store Operations Manual limit postings to job-related information. They direct store managers to remove content that does not fall into one of these categories. The first is postings and notices required under government statutes and regulations, such as the

²⁸ I note the the SEIU has nonprofit status. <https://apps.irs.gov/app/eos/> but the same illustration would hold true for any labor organization that sponsored a “community program or initiative” whether nonprofit or not, as the “community programs and initiatives” section in the store-specific content section is not limited to nonprofits.

²⁹ Just because other entities may be swept up by a rule does not mean it is lawful under the Act.

FLSA/minimum wage, OSHA, FMLA, EEO, and other rights. The second is Starbucks and job-related content, including schedules and store emergency procedures, Starbucks-provided communications (including a specified flier), Starbucks-sponsored events, “job related messages to and from partners regarding shifts (e.g shift coverage, shift changeover, etc.),” and Starbucks-provided partner and team celebration and recognition content. (GC Exhs. 65, 67.)

The Weekly Update message regarding BOH postings concludes with the following:

NOTE: In stores with union representation, a reminder that dedicated space for union content in the BOH is an item that may be proposed as part of collective bargaining. Until such a time as we are required to adjust per a finalized contract, our policies remain in place as they were on the date union organizing activity began.

The back of the house, at least at some stores, is a mixed-use area, where employees perform certain work tasks but also take their breaks.³⁰ An employer bears the burden of establishing “special circumstances warranting an exception to the rule that employees not on working time have the right to distribute union literature to other such employees in a mixed use area.” *Mercedes-Benz U.S. International, Inc.*, 361 NLRB 1018, 1028 (2014); See also *Transcon Lines*, 235 NLRB 1163 (1978), *aff’d* in relevant part, 599 F.2d 719 (5th Cir.1979); *United Parcel Service, Inc. v. NLRB*, 228 F.3d 772, 776 (6th Cir. 2000).

The Respondent’s arguments about the BOH postings are the same as those for the Community Board postings and are not sufficient to establish an exception. Accordingly, I find the General Counsel has established the allegations in paragraphs 5(f)(1) and (h).

3. Confidentiality provision

Complaint paragraph 5(i)(2) alleges the following language in a January 16, 2023, Weekly Update is an overly broad confidentiality provision:

Like with all internal resources, these guides are **confidential**, for partner eyes only, and should not be shared externally.

(GC Exh. 69, emphasis in original.) “[T]hese guides” refers to the Partner Guide and Dress Code Guide.

For the reasons in the sections regarding the Social Media and Confidentiality provisions of the Partner Guide, I find this provision is overly broad in violation of Section 8(a)(1).³¹

F. Standards of Business Conduct Rules

³⁰ As discussed below, employees take their breaks in the BOH at the Scottsdale & Mayo and Indian School & 107th stores.

³¹ The Respondent’s argues a separate “promulgation” allegation requires that it occur in response to protected activity. While this is one way a new rule can be found unlawful, promulgation and maintenance of a new rule, such as a rule explicitly banning union efforts, can also itself be unlawful.

The complaint alleges that two rules in the Respondent’s Standards of Business Conduct violate Section 8(a)(1). The Standards of Business Conduct are described in the Partner Guide as follows:

Starbucks reputation for integrity flows from our steadfast commitment to our core values — values that require compliance with the law as well as ethical conduct. Starbucks depends on its partners to follow the law and to make appropriate decisions. We recognize, however, that Starbucks operates in a complex and dynamic world and that what’s “right” may not always be obvious. Starbucks Standards of Business Conduct provide practical overviews of some of the legal and ethical standards that must be followed on a day-to-day basis.

For more information, including asking for guidance and voicing concerns, please refer to Starbucks Standards of Business Conduct.

(GC Exh. 107.)

1. How We Treat One Another

Complaint paragraph 5(g)(1) concerns the following provisions of the Respondent’s How We Treat One Another rule:

All partners are entitled to work in an environment that is free of harassment, bullying and discrimination. Harassment, bullying and discrimination take many forms, including:

- Unwelcome remarks...
- [...]
- Offensive ... comments (explicit or by innuendo)
- Verbal ... abuse...

(GC Exh. 68.)

For the reasons set forth above, I find the language prohibiting verbal abuse is not unlawful. For the reasons set forth in the Respectful Workplace rule analysis, I find that in this context, unlike in the very detailed context of the antiharassment provision, the terms “unwelcome remarks” and “offensive comments” could be interpreted to prevent Section 7 activity and the rule could be more narrowly drawn. I find, therefore, that the How We Treat One Another rule is overly broad as alleged.

2. Political Activities

Complaint paragraph 5(g)(2) concerns the Political Activities rule, which states:

Political Activities must be conducted on your own time and using your own resources. You must not promote any political or personal views or beliefs (including by posting or distributing notices or other materials) on or around Starbucks premises, and you may not indicate or suggest that you speak for Starbucks or that the company supports your views.

Employees are protected by the Act when they seek to “improve their lot as employees through channels outside the immediate employee-employer relationship.” *Eastex, Inc.*, 437 U.S. at 565. In *Eastex*, the Board held that a union-sponsored newsletter “criticizing a Presidential veto of an increase in the federal minimum wage and urging employees to register to vote to ‘defeat our enemies and elect our friends,’” that employees sought to distribute in nonwork areas during nonwork time violated the Act. The Court agreed, holding:

The Board was entitled to note the widely recognized impact that a rise in the minimum wage may have on the level of negotiated wages generally, a phenomenon that would not have been lost on petitioner’s employees. The union’s call, in the circumstances of this case, for these employees to back persons who support an increase in the minimum wage, and to oppose those who oppose it, fairly is characterized as concerted activity for the “mutual aid or protection” of petitioner’s employees and of employees generally.

Id. at 569–570 (footnote omitted).

The Respondent’s broad prohibition against promoting “political or personal views or beliefs “on or around Starbucks’ premises” would clearly encompass the activity described in *Eastex*, above, as protected and is therefore overly broad.

G. Implied Promise of Benefits – Dress Code rules in 2023 Partner Guide and Weekly Update

Two complaint paragraphs allege that the Respondent impliedly promised to improve working terms and conditions for represented employees if they decertified their elected collective-bargaining representative. Paragraph 5(k)(3) alleges the following rule in the 2023 Partner Guide, at footnote 5, issued shortly before the Weekly Update, implicitly promised benefits to represented employees if they decertified:

Certain dress code changes announced on August 29, 2022 (enhanced color palette and allowing jeggings, crewneck sweatshirts and white shoes) do not apply to partners in certified union stores or stores undergoing organizing activity on or before May 3, 2022, except if the store subsequently is certified as not being represented by a union after an election, or a union withdraws a petition to represent partners at the store. Starbucks will negotiate over any changes to the terms and conditions of employment in good faith with any union representing partners at such stores and will implement changes subject to such bargaining.³²

(GC Exh. 64.) Paragraph 5(i)(1) alleges the Respondent impliedly promised benefits to represented employees if they decertified by the following language in the January 16, 2023, Weekly Update:

³² The provision stating Starbucks will negotiate in good faith with “any union representing partners” certainly reflects an odd choice of language, particularly considering similar footnotes in the 2023 Partner Guide are not as discerning about this aspect of negotiations.

Note: A prior dress code may be in effect for certified union stores or stores undergoing organizing activity on or before May 3, 2022. For details, see your store manager.³³

(GC Exh. 69.)

The General Counsel argues the new handbook language, “except if the store subsequently is certified as not being represented by a union after an election, or a union withdraws a petition to represent partners at the store,” appears designed to promise a benefit to employees who decertify their union. (GC Br. 127.) The complaint allegations specifically reference represented employees, though the alleged unlawful language in these allegations also includes stores undergoing organizational activity. It is not clear whether the handbook footnote’s language “subsequently is certified as not being represented by a union after an election” is meant to encompass represented stores who may later vote to decertify the union, but the provision is written broadly and does not exclude these stores. I therefore construe the footnote as including them. Because, as detailed below, the law varies depending on the employees’ status, I will analyze these allegations as applied to both represented and organizing stores.

“[T]he action of employees with respect to the choice of their bargaining agents may be induced by favors bestowed by the employer as well as by his threats or domination.” *Medo Photo Supply Corp. v. NLRB*, 321 U.S. 678, 686, (1944). A promise of benefits or favors violates the Act if it states or implies that it is conditioned upon abandoning union support. See *NLRB v. Exch. Parts Co.*, 375 U.S. 405, 409 (1964) (Act prohibits “intrusive threats and promises”). To determine whether a statement is an implied promise of benefits, the Board considers whether, in light of the surrounding circumstances, employees would reasonably interpret the statement as a promise. See *Viacom Cablevision*, 267 NLRB 1141 (1983)(“the question is, was there a promise, either express or implied from the surrounding circumstances”); *G & K Services, Inc.*, 357 NLRB 1314, 1315 (2011)(“Determining whether a statement is an implied promise of benefit involves consideration of the surrounding circumstances and whether, in light of those circumstances, employees would reasonably interpret the statement as a promise.”). An otherwise permissible statement may be unlawfully coercive if uttered in a context of other unfair labor practices that “impart a coercive overtone” to the statements. *Reno Hilton Resorts Corp.*, 319 NLRB 1154, 1155 (1995). Unlike most independent 8(a)(1) allegations, the determination of whether a promise (or implied promise) violates the Act is motive-based, and the Board will find an employer to have violated the Act where it is found to have acted in an effort to curtail unionization.

The Board considers context a crucial factor, as its caselaw highlights the need to focus on the surrounding circumstances. I therefore cannot make my decision in a vacuum. As of January 2023, at least one decertification petition had been filed, numerous petitions for representation had been filed, and the Union had been certified as the employees’ representative

³³ Complaint paragraph 5(i)(1), standing alone, does not promise any improved working conditions because it does not contain enough information to decipher which dress code is superior. It does not, by itself, give rise to a violation. When read in conjunction with paragraph 5(k)(3), however, it is clear the new dress code is more relaxed and employee-friendly than the old one. These allegations, which cover the same time period of January 2023, are therefore analyzed together.

at many stores. Activity has since continued during the 2023 Partner Guide’s continued maintenance.³⁴ I also consider the factual findings of Judge Anzalone in *Starbucks Corp.*, Case 19-CA-294579, 2023 WL 6379600 (2023).³⁵ *Wynn Las Vegas, LLC*, 358 NLRB 690, 693 (2012). Judge Anzalone’s findings provide highly relevant background information about the environment leading up to the 2023 Partner Guide’s implementation and the allegations before me.

The Respondent argues that the disclaimers about the dress code’s application are necessary to avoid an allegation of unlawful direct dealing with the Union. (R Br. 181–182.) I find this argument unavailing for the reasons discussed below.

The law governing what promises can be made about benefits of course relates to the law regarding when an employer can and cannot legally grant benefits. When organizing efforts are underway, “the Board has repeatedly held that due to the coercive effect of withholding benefits from eligible voters while granting them to others, an employer is required to proceed in the same manner as it would absent the presence of the union.” *Woodcrest Health Care Ctr.*, 366 NLRB No. 70, slip op. at 6 (2018), citing *Care One at Madison Avenue*, 361 NLRB 1462, 1474 (2014), enf’d. 832 F.3d 351 (D.C. Cir. 2016). Companywide or systemwide changes, such as the relaxed dress code for the U.S. stores here, are considered “‘normal’ or free from improper considerations without inquiry as to their historical pattern” and the Board has found withholding a systemwide benefit during a preelection campaign violates the Act. *Woodcrest*, slip op. at 7. The Board in *Woodcrest* explained as follows:

[T]he Respondent here could have avoided influencing the election and exposing itself to potential unfair labor practice charges by granting the benefit improvements to all of its employees, including those subject to the petition. Alternatively, it could have deferred the announcement and implementation of the improvements until after the election.

...

³⁴ I take administrative notice of the decertification petition filed on October 18, 2022, in Nichols Hills, OK. <https://www.nlr.gov/case/14-RD-305461>, and of unionelections.org, which tracks all NLRB elections. The Respondent also tracks decertification petitions and provides links to them at <https://one.starbucks.com/negotiations/what-does-decertification-mean/>. As of August 8, 2023, Starbucks reported that 8 stores had petitioned for election. A blurb on the same one.starbucks.com website, dated February 24, 2024, states:

Why are Workers United and the National Labor Relations Board seeking to deprive partners of their right to choose representation?

Starbucks has been informed by the National Labor Relations Board (NLRB) that partners at a total of 27 stores have filed petitions for decertification. Recent petitions have been filed by partners at stores located in La Quinta, California; Minneapolis, Minnesota; Denver, Colorado; Pittsburgh, Pennsylvania; Roanoke, Virginia; Cottonwood Heights, Utah; Greenville, South Carolina; Cleveland, Ohio; Bel Air, Maryland; Depew, New York; Philadelphia, Pennsylvania; Amherst, New York; Montclair, New Jersey; Grand Rapids, Michigan; Baltimore, Maryland; Jacksonville, Florida; Shavano Park, Texas; and Albany, New York.

³⁵ See CP Br. 23–26

The Board also permits an employer, if it is uncertain whether it can sustain its burden of proving that improvements in wages or benefits were given free from union considerations, to postpone the improvements so long as it makes clear that the improvements will be granted whether or not the employees select a union, and that the sole purpose of the postponement is to avoid the appearance of attempting to influence the election. *Kauai Coconut Beach Resort*, 317 NLRB 996, 997 (1995); *KMST-TV, Channel 46*, 302 NLRB at 382; *Atlantic Forest Products, Inc.*, 282 NLRB at 858; *Uarco Inc.*, 169 NLRB 1153, 1154 (1968).

Id. at 7 and fn. 11. See also *Gerry's I.G.A.*, 238 NLRB 1141, 1153 (1978), *enfd.* 602 F.2d 1021 (1st Cir. 1979).

Applying the legal standards to stores with organizing activity, I find the handbook provision is patently unlawful. It falsely and coercively informs organizing employees that the relaxed dress code announced in the Partner Guide does not, and cannot, readily apply to them unless they choose to vote against the Union.

Turning to unionized employees, the Respondent's defense is closer to the mark, but I still find that, considering the coercive context the Respondent itself created, its actions were unlawful. I understand that employers are often faced with competing legal parameters when deciding how to navigate changes with represented employees. In this case, however, the Respondent had available options. The Respondent could have simply asked the Union whether it would agree to implement its more relaxed dress code, See *Arc Bridges*, 362 NLRB 455, 459 fn. 18 (2015), *enf. denied* 861 F.3d 193 (D.C. Cir. 2017), and implemented it if the union agreed, and declined to implement it if not. *10 Roads Express, LLC*, 372 NLRB No. 105, slip op. at 2 (2023). The Respondent could easily have rolled out the 2023 Partner Guide to its nonunion stores and its organizing stores (which it was legally permitted to do) and simply not rolled it out to unionized stores. Instead, it chose a course of action that drove home to *all* of its employees, including its unionized employees, that the way to get the relaxed dress code as a sure thing was to get rid of the Union. As it stands, any time a represented employee consults the dress code in the 2023 Partner Guide, they see a message about the policy's benefits for nonunion stores and a reminder that the benefits do not apply to them (or partners attempting to unionize) unless their "store subsequently is certified as not being represented by a union after an election."³⁶

Based on the foregoing, I find the General Counsel established these complaint allegations.

H. Implied Threats to Withhold Benefits in 2023 Partner Guide Footnotes

Paragraph 5(k)(1) alleges that the Respondent implicitly threatened to withhold benefits from employees who engage in protected activity and/or who are represented by a collective-

³⁶ In *Wal-Mart Stores, Inc.*, 352 NLRB 815 (2008), a two-member Board determined that the administrative law judge applied the incorrect standard to an allegation about a threat to discontinue a wage increase at a store in the post certification period while waiting on a contract, when he applied the standard articulated herein for organizing stores. This decision is cited frequently, including in the *Developing Labor Law*, but I do not rely on it here both because it was decided by a two-member Board and because I would find a violation of Section 8(a)(1) given the context of this decision without it.

bargaining representative, including by language at the footnotes 1, 4, 6, 7, and 8 in the 2023 Partner Guide.

Footnote 1 at page 7 states:

At stores where workers have union representation, federal law requires good faith collective bargaining over wages, benefits and working conditions which prohibits Starbucks from making or announcing unilateral changes, including with respect to new benefits. At stores involved in union organizing (for example, where election petitions have been filed), Starbucks cannot lawfully announce new wages, benefits and changes because these might positively or negatively affect partner choices about unions. For these reasons, Starbucks cannot determine or predict whether any particular benefit will be implemented at stores that have union representation or are involved in union organizing. Where Starbucks is required to engage in collective bargaining, Starbucks will always negotiate in good faith. For more information, visit one.starbucks.com.

This footnote appears in the Welcome and Introduction section, and relates back to this language:

We reward our partners for their contributions with our Total Rewards package. This includes a competitive base salary and comprehensive benefits to eligible full- and part-time partners, including health coverage, full tuition coverage through the Starbucks College Achievement Plan, Bean Stock, a Future Roast 401(k) Savings Plan and more to support your overall well-being.

The next footnote at issue is footnote 4 at page 21, which states:

At stores where workers have union representation, federal law requires good faith collective bargaining over wages, benefits and working conditions which prohibits Starbucks from making or announcing unilateral changes, including to debit or credit card tipping options. At stores involved in union organizing on or before May 3, 2022 (for example, where election petitions have been filed), Starbucks could not lawfully announce new wages, benefits and changes because these might positively or negatively affect partner choices about unions. For these reasons, Starbucks cannot determine or predict whether any particular term of employment, including debit or credit card tipping options, will be implemented at stores that have union representation or are involved in union organizing. Where Starbucks is required to engage in collective bargaining, Starbucks will always negotiate in good faith. For more information, visit one.starbucks.com.

This footnote relates back to “tipping with a credit card.”

The next footnote at issue is footnote 6 at page 55, which states:

At stores where workers have union representation, federal law requires good faith collective bargaining over wages, benefits and working conditions which prohibits Starbucks from making or announcing unilateral changes, including to sick time accrual. At stores involved in union organizing on or before May 3, 2022 (for example, where

election petitions have been filed), Starbucks could not lawfully announce new wages, benefits and changes because these might positively or negatively affect partner choices about unions. For these reasons, Starbucks cannot determine or predict whether any particular term of employment, including sick time accrual, will be implemented at stores that have union representation or are involved in union organizing. Where Starbucks is required to engage in collective bargaining, Starbucks will always negotiate in good faith. For more information, visit one.starbucks.com.

This footnote relates back to the following sentence: “Partners accrue one (1) hour of sick time for every 25 hours of paid regular/overtime hours, including vacation, personal days, holidays and sick time used.”

The next footnote at issue is footnote 7 at page 65, which states:

At stores where workers have union representation, federal law requires good faith collective bargaining over wages, benefits and working conditions which prohibits Starbucks from making or announcing unilateral changes, including My Starbucks Savings benefits. At stores involved in union organizing on or before May 3, 2022 (for example, where election petitions have been filed), Starbucks could not lawfully announce new wages, benefits and changes because these might positively or negatively affect partner choices about unions. For these reasons, Starbucks cannot determine or predict whether any particular term of employment, including My Starbucks Savings benefits, will be implemented at stores that have union representation or are involved in union organizing. Where Starbucks is required to engage in collective bargaining, Starbucks will always negotiate in good faith. For more information, visit one.starbucks.com.

This footnote relates to the My Starbucks Savings program.

Finally, footnote 8 at page 66 states:

At stores where workers have union representation, federal law requires good faith collective bargaining over wages, benefits and working conditions which prohibits Starbucks from making or announcing unilateral changes, including My Starbucks Savings benefits. At stores involved in union organizing on or before May 3, 2022 (for example, where election petitions have been filed), Starbucks could not lawfully announce new wages, benefits and changes because these might positively or negatively affect partner choices about unions. For these reasons, Starbucks cannot determine or predict whether any particular term of employment, including My Starbucks Savings benefits, will be implemented at stores that have union representation or are involved in union organizing. Where Starbucks is required to engage in collective bargaining, Starbucks will always negotiate in good faith. For more information, visit one.starbucks.com.

This footnote refers back to Starbucks’ student loan management benefit.

In assessing whether a remark constitutes a threat, the appropriate test is “whether the remark can reasonably be interpreted by the employee as a threat.” *Smithers Tire and Automotive*

Testing of Texas, Inc., 308 NLRB 72 (1992). The actual intent of the speaker or the effect on the listener is immaterial. *Id.* The “threats in question need not be explicit if the language used by the employer or his representative can reasonably be construed as threatening.” *NLRB v. Ayer Lar Sanitarium*, 436 F.2d 45, 49 (9th Cir. 1970). The Board considers the totality of the circumstances in assessing the reasonable tendency of an ambiguous statement or a veiled threat to coerce. *KSM Industries*, 336 NLRB 133, 133 (2001).

For the reasons set forth above with regard to the disclaimer language in the Dress Code rules in the 2023 Partner Guide and Weekly Update, considering the “totality of the circumstances,” I find the footnotes are coercive as alleged.

I. Grant of Benefits in 2023 Partner Guide Footnotes

Complaint paragraph 5(k)(2) alleges the Respondent granted benefits to employees that have not engaged in protected activity and/or are not represented by a collective-bargaining representative, including by the language cited above in paragraph 5(k)(1).

The General Counsel does not offer any argument to meaningfully distinguish this complaint allegation from complaint paragraph 5(k)(1).³⁷ (GC Br.125–126.) Moreover, as the Respondent argues, Judge Anzalone’s decision disposes of this allegations, and its remedial provisions cover the substance of it. (R Br. 183–184; *Starbucks*, JD(SF)–29–23 above, at pp. 41–43.) Accordingly, I find it is duplicative and recommend dismissal of complaint paragraph 5(k)(2).

J. Other Statements in 2023 Partner Guide

Paragraph 5(k)(4) alleges that, through the following language in the preface of the 2023 Partner Guide, the Respondent implied it could make unilateral changes to the terms and conditions of employment regardless of whether its employees were represented by a collective-bargaining representative:

This guide is not a contract of employment or a guarantee of employment for any fixed period of time. Starbucks reserves the right to make changes, additions or deletions to the guide at any time, with or without notice. Additionally, nothing in this guide should be construed as a promise or guarantee of employment or specific treatment in a specific situation. At all times, Starbucks reserves the right to alter or change the terms and conditions of employment. Starbucks reserves the right to separate a partner from employment at any time, with or without notice.

This provision states clearly on its face that the Respondent can change the Partner Guide at any time without notice and that it can alter employees’ terms and conditions of employment. The 2023 Partner Guide was disseminated to all employees, regardless of representational status. More than implying the Respondent can make unilateral changes, the language tells employees it can do so, without any attempt at clarification.

³⁷ The Charging Party also did not meaningfully distinguish this complaint allegation.

Paragraph 5(k)(5) alleges that, by the following language, contained in boxes at the beginning of the section entitled, “Time Away from Work and Total Rewards: Starbucks Benefits Overview,” the Respondent implied it will refuse to bargain with the Union:

5 While the intent is to maintain these benefits, Starbucks reserves the right to modify or terminate these benefits at any time. Therefore, the information provided in this section is subject to change.

10 Finally, paragraph 5(a)(6) alleges that the above provisions implicitly threatened that it would be futile for its employees to be represented by a collective-bargaining representative.

15 For the same reason as articulated regarding the preface language, I find this language states the Respondent can make changes at will, even for represented employees, and this of course implies it need not bargain. If the Respondent need not bargain, it follows that choosing a representative to collectively bargain with the Respondent would be futile. I therefore find the General Counsel has established these complaint allegations.

II. Store Personnel and General Business Functions

20 Starbucks’ organizational hierarchy includes district managers, store managers, assistant store managers, shift supervisors, and baristas. Employees who work in Starbucks’ stores are called “partners.” Each store has a store manager (SM). Among other duties, store managers build the schedule, approve time off, hire employees, and resolve issues partners bring to them. Assistant store managers (ASMs) perform store manager duties when the store manager is
25 unavailable and assist the store manager with their tasks. Shift supervisors (SSVs) assign tasks to other partners, handle cash, and basically run the shift. One shift supervisor per shift, designated as the “keyholder,” oversees each shift.³⁸ (R Exh. 15.) Each store is part of a cluster of stores comprising a district, managed by a district manager (DM).

30 Managers at Starbucks are expected to “manage in the moment,” which means to provide contemporaneous feedback. This includes coaching about policy violations the manager observes. (Tr. 289.) The ACT (Assess, Consider, Take action) model, which is included in training for shift supervisors as well as managers, helps managers to make decisions in the moment. Diller gave an example of how shift supervisors can use the ACT model:

35 So one example would be if a partner is not able to come into work, the shift supervisor can assess what’s going on and how that will impact the schedule or the business. They consider any other additional factors, and then they would take action, so they would reach out to their 7 other partners, see if other people that are currently there can stay
40 later, come in earlier, see if they can cover that time off.

(USDC3 Diller Dep. 15.) A tool called the “virtual coach” assists managers with consistency when applying policies. (Tr. 228.)

³⁸ Other shift supervisors may also be assigned to the shift, but if they are not the keyholder for the shift, they work as baristas. The keyholder is sometimes referred to as the play caller. Shift supervisors are not considered statutory supervisors.

The Respondent’s human resources department is called “partner relations.” Employees and managers can call partner relations on a variety of subjects, including performance management, guidance on a policy, and accommodation requests. Alyona Colyar was a senior partner relations associate during the relevant time period. In this role she supported field leaders with investigations into partner concerns, policy violations, performance issues, and provided guidance and recommendations. Starbucks utilizes an information system called “roast” to manage human resources and track activity. When an employee, regardless of job position, calls into the partner contact center, a representative creates a case in roast. A line in the roast system identifies stores with petitions for representation. (Tr. 285–291.)

Employees can also contact the Ethics and Compliance support center to report concerns and ask for them to be investigated.

“Workplace live” is a weekly communication platform for store managers and above, as well as shift supervisors enrolled in Starbucks’ college achievement plan. Discussions and presentations on workplace live involve a variety of topics. Workplace live discussions include results of union elections. (Tr. 59, 72.)

Starbucks uses corrective action forms (CAFs) to issue discipline. CAFs have three levels of progression: documented coaching, written warning, and final written warning.

III. General Legal Standards

The following are some of the basic legal standards that will apply throughout this decision. More specific legal standards will be explained and applied in context.

A. Credibility

A credibility determination may rest on various factors, including the context of the witness’ testimony, the witness’ demeanor, the weight of the respective evidence, established or admitted facts, inherent probabilities and reasonable inferences that may be drawn from the record as a whole. See *Double D Construction Group*, 339 NLRB 303, 305 (2003); *Daikichi Sushi*, 335 NLRB 622, 623 (2001). In making credibility resolutions, it is well established that the trier of fact may believe some, but not all, of a witness’s testimony. *NLRB v. Universal Camera Corp.*, 179 F.2d 749 (2d Cir. 1950). Testimony from current employees tends to be particularly reliable because it goes against their pecuniary interests. *Gold Standard Enterprises*, 234 NLRB 618, 619 (1978); *Georgia Rug Mill*, 131 NLRB 1304, 1304 fn. 2 (1961); *Gateway Transportation Co.*, 193 NLRB 47, 48 (1971).

General or blanket denials will not, without more, suffice to refute more detailed and specific testimony from an opposing side’s witnesses. See, e.g., *Williamson Memorial Hospital*, 284 NLRB 37, 39 (1987)(manager merely denying allegation in response to a leading question leaves employees’ more specific and detailed testimony “essentially unrefuted”); *Mercedes Benz of Orlando Park*, 333 NLRB 1017, 1035 (2001) enfd. 309 F.3d 452 (7th Cir. 2002)(“It is settled that general or ‘blanket’ denials by witnesses are insufficient to refute specific and detailed testimony advanced by the opposing side’s witness.”). Likewise, testimony from leading questions on direct examination is entitled to little weight in the absence of testimony in the witness’ own words. *H.C. Thompson, Inc.*, 230 NLRB 808, 809 fn. 2 (1977). Specific testimony

about the factual issue at hand is more reliable than vague or generalized testimony, as “general testimony does not address the factual situation in issue.” *Emergency One, Inc.*, 306 NLRB 800 (1992). Similarly, indefinite testimony such as lack of recollection, does not refute positive testimony so as to create an issue of fact. *Indian Hills Care Center*, 321 NLRB 144, 150 (1996);
 5 *Roadway Exp., Inc. v NLRB*, 647 F.2d 415, 425–426 (1981).

I have fully reviewed the entire record and carefully observed the demeanor of all the witnesses. I have considered the apparent interests of the witnesses; the inherent probabilities in light of other events; corroboration or the lack of it; consistencies or inconsistencies within the
 10 testimony of each witness, and between witnesses with similar apparent interests. See, e.g. *NLRB v. Walton Mfg. Co.*, 369 U.S. 404, 408 (1962). Testimony or other evidence in contradiction to my factual findings has been carefully considered but discredited. Specific credibility findings on material disputes appear in context below.

15 B. Sections 8(a)(1) and 8(c)

Under Section 8(a)(1) of the Act, it is an unfair labor practice for an employer to interfere with, restrain, or coerce employees in the exercise of the rights guaranteed in Section 7 of the Act. The rights guaranteed in Section 7 include the right “to form, join or assist labor
 20 organizations, to bargain collectively through representatives of their own choosing, and to engage in other concerted activities for the purpose of collective bargaining or other mutual aid or protection . . .”

The Board’s longstanding test to determine if there has been a violation of Section 8(a)(1)
 25 of the Act is whether the employer engaged in conduct which might reasonably tend to interfere with the free exercise of employee rights under Section 7. *American Freightways Co.*, 124 NLRB 146 (1959). “It is well settled that the test of interference, restraint, and coercion under Section 8(a)(1) of the Act does not turn on the employer’s motive or on whether the coercion succeeded or failed.” *American Tissue Corp.*, 336 NLRB 435, 441 (2001) (citing *NLRB v. Illinois Tool Works*, 153 F.2d 811, 814 (7th Cir. 1946)). It is the General Counsel’s burden to
 30 prove an 8(a)(1) violation by a preponderance of the evidence.

Under Section 8(c) of the Act:

35 The expressing of any views, argument, or opinion, or the dissemination thereof, whether in written, printed, graphic, or visual form, shall not constitute or be evidence of an unfair labor practice under any of the provisions of this Act [subchapter], if such expression contains no threat of reprisal or force or promise of benefit.

40 During an ongoing organizing campaign, employers may permissibly engage in legitimate campaign propaganda about the merits of union membership, as long as the campaign propaganda is not linked to comments that cross the line set by Section 8(a)(1) and become coercive from the objective standpoint of employees, over whom the employer has a measure of economic power. See *Mesker Door, Inc.*, 357 NLRB 591, 595 (2011).

45 C. Section 8(a)(3) and (1) mixed motive discrimination

Section 8(a)(1) is summarized above. Under Section 8(a)(3), it is an unfair labor practice to discriminate “in regard to hire or tenure of employment or any term or condition of employment to encourage or discourage membership in any labor organization.”

5 The Board’s framework in *Wright Line*, 251 NLRB 1083 (1980), enfd. 662 F.2d 899 (1st Cir. 1981), cert. denied 455 U.S. 989 (1982), applies to discrimination allegations when mixed motives are presented, whether the alleged discrimination was because of protected concerted activity or union activity.³⁹ Under *Wright Line*, the General Counsel must first make a prima facie showing sufficient to support the inference that protected conduct was a motivating factor in the employer’s decision. The elements commonly required to support the General Counsel’s initial burden are: (1) union or other protected activity by the employee, (2) employer knowledge of that activity, and (3) antiunion animus, or animus against protected activity, on the employer’s part. See *Intertape Polymer Corp.*, 372 NLRB No. 133 (2023).

15 To be considered protected concerted activity under Section 8(a)(1), the “employee conduct must be both ‘concerted’ and engaged in for the purpose of ‘mutual aid or protection.’” *Fresh & Easy Neighborhood Market*, 361 NLRB 151, 153 (2014). The Board has held that activity is concerted if it is “engaged in with or on the authority of other employees, and not solely by and on behalf of the employee himself.” *Meyers Industries (Meyers I)*, 268 NLRB 493 (1984), revd. sub nom *Prill v. NLRB*, 755 F. 2d 941 (D.C. Cir. 1985), cert. denied 474 U.S. 948 (1985), on remand *Meyers Industries (Meyers II)*, 281 NLRB 882 (1986), affd. sub nom *Prill v. NLRB*, 835 F.2d 1481 (D.C. Cir. 1987), cert. denied 487 U.S. 1205 (1988).

25 A discriminatory motive may be established by circumstantial evidence, which can include, among other factors: the timing of the employer’s adverse action in relationship to the employee’s protected activity; the presence of other unfair labor practices; statements and actions showing the employer’s general and specific animus; the disparate treatment of the discriminatee(s); departure from past practice; shifting, false or exaggerated reasons offered for the action; and failure to conduct a meaningful investigation. See *Intertape Polymer Corp.*, above,, slip op. at 6 (2023); *Safety System, LLC*, 370 NLRB No. 90, slip op. at 1 (2021). The Board will infer an unlawful motive or animus where the employer’s action is “‘baseless, unreasonable, or so contrived as to raise a presumption of unlawful motive.’” *J. S. Troup Electric*, 344 NLRB 1009 (2005) (citing *Montgomery Ward*, 316 NLRB 1248, 1253 (1995)); See also *ADS Electric Co.*, 339 NLRB 1020, 1023 (2003); *Shattuck Denn Mining Corp. v. NLRB*, 362 F.2d 466, 470 (9th Cir. 1966).

40 If the General Counsel meets this prima facie burden, the burden of proof shifts to the employer to demonstrate it would have acted the same had protected conduct not occurred. The employer cannot carry this burden merely by showing that it also had a legitimate reason for the action, but must persuade, by a preponderance of the evidence, that the action would have taken place absent the protected activity. *Dentech Corp.*, 294 NLRB 924, 956 (1989).

³⁹ As there is no formal hiring process for the barista trainer position, and it is within the store manager’s discretion to select barista trainers, I do not apply the additional factors set forth in FES, 331 NLRB 9 (2000). See *Webasto Sunroofs*, 342 NLRB 1222 (2004)(*Wright Line*, without additional application of FES, applies to hiring process where formal job openings are not a meaningful consideration).

D. Section 8(a)(1) discipline arising from protected conduct

The Supreme Court in *NLRB v. Burnup & Sims, Inc.*, 379 U.S. 21 (1964), held, “§ 8(a)(1) is violated if an employee is discharged for misconduct arising out of a protected activity, despite the employer’s good faith, when it is shown that the misconduct never occurred.” Under the *Burnup & Sims* analysis, the General Counsel has the initial burden to prove the employee was subjected to an adverse employment action for conduct occurring during the course of protected activity. The Respondent must then show it had an honest belief that the employee engaged in serious misconduct. The burden then shifts to the General Counsel to prove by a preponderance of the evidence that the employee did not, in fact, engage in that misconduct.⁴⁰ *Aqua-Aston Hospitality, LLC*, 365 NLRB No. 53, slip op. at 5 (2017); *Akal Security, Inc.*, 354 NLRB 122, 124–125 (2009), reaff’d. 355 NLRB 584 (2010); *Taylor Motors*, 365 NLRB No. 21 (2017). “Thus, an employer who disciplines an employee for misconduct within the course of otherwise protected activity will be found to have violated the Act where the evidence discloses that: (a) it did not honestly believe the serious conduct occurred; or (b) even if it did so believe, it was mistaken.” *Aqua-Aston Hospitality, LLC*, above, slip op. at 6. The Board will apply site-specific criteria to determine whether the protected concerted activity for which the employee was disciplined loses the Act’s protection. See *Lion Elastomers*, 372 NLRB No. 83 (2023).

E. Section 8(a)(4)

Under Section 8(a)(4), it is an unfair labor practice “to discharge or otherwise discriminate against an employee because he has filed charges or given testimony under this Act.” The phrase “otherwise discriminate” is broadly construed in order “to prevent the Board’s channels of information from being dried up by employer intimidation of prospective complainants and witnesses.” *NLRB v. Scrivener*, 405 U.S. 117, 122 (1972), quoting *John Hancock Mutual Life Insurance v. NLRB*, 191 F.2d 483, 485 (D.C. Cir. 1951). Section 8(a)(4) allegations concerning dual motivation discipline are analyzed under *Wright Line*, above. See *Freightway Corp.*, 299 NLRB 531, 532 (1990).

F. Discipline for Violating an Overly Broad Rule

Discipline imposed pursuant to an overly broad policy violates the Act when an employee violates the policy by: (1) engaging in protected conduct, or (2) engaging in conduct that otherwise implicates the concerns underlying Section 7 of the Act. See *Continental Group, Inc.*, 357 NLRB 409 (2011); *Double Eagle Hotel & Casino*, 341 NLRB 112 fn. 3 (2004). The employer will avoid liability if it can establish that the employee’s conduct interfered with the employee’s own work or that of other employees or otherwise interfered with the employer’s operations, and that the interference, rather than the violation of the rule, was the reason for the discipline. *Continental Group*, 357 NLRB at 412. It is the employer’s burden to establish that the employee’s interference with production or operations was the actual reason for the discipline, and the mere citation of the overbroad rule as the basis for the discipline will not suffice to meet its burden. The employer must demonstrate that it cited the employee’s interference with production and not simply the violation of the overbroad rule. *Id.*

⁴⁰ This approach protects against indulging the notion that there could be true mixed motives for punishing protected concerted activity that does not, by any reasonable construction, rise to the level of genuine misconduct.

IV. The Scottsdale & Mayo Store

A. Facts

1. Background

The Starbucks at Scottsdale & Mayo opened in September 2020. The store has a café for serving customers, but only the drive-through was open during the relevant time period. The back of the house (BOH) is separated from the café by a swinging door. It contains a partner desk, manager’s desk, sinks, refrigerators, supply cabinets, janitorial supplies, and a prep station for inventory. Partners can take their breaks in the BOH. The manager’s desk is in the right back corner and houses a computer the employees sometimes use for training or to print. The manager’s desk area is partially separated from the rest of the BOH by a wall, but it does not have a door. Partners sometimes took breaks and charged their phones at the manager’s desk during the relevant time period.⁴¹ Work tasks performed in the BOH include inventory, retrieving items like syrups, food, ice and supplies, using the sink, and doing dishes. Shift supervisors are in and out of the back room about 30 times over the course of an 8-hour shift. (Tr. 96–97, 402–407; USDC3 Olson Dep. 88.)

During the relevant period, Nichell Olson was the store manager. She began as a store manager in training on August 9, 2021. The previous store manager, Tiffany Allen, trained Olson for 8 weeks before moving to another store. Olson reported to Megan Diller, the district manager, who in turn reported to Stacia Durree, the regional director (RD). Durree oversaw area 58, which included 121 stores in Arizona. Durree supported a team of 12 district managers. From March 14–April 25, 2022, Maria Van Boeckel, a support store manager, also managed the store with Olson.⁴² Shift supervisors during the relevant time period included Laila Dalton, Delaney Alonso, Brian Malley, Kristan Frisone, and Bill Whitmire.⁴³

During much of the relevant time period, employees, including managers and supervisors, were required to undergo a Covid check-in process before working. This entailed answering questions on an iPad and receiving a green checkmark from a manager or the supervisor. Employees who received red checkmarks were sent home. Consistent with CDC guidelines, sometimes masks and temperature checks were required. (Tr. 76.)

Laila Dalton worked for Starbucks from August 2019 until her termination in April 2022. She started as a teenager at the Scottsdale & Mayo store after it opened. Dalton was a barista, then a barista trainer, then a shift supervisor. Her promotion to shift supervisor was on

⁴¹ As of the time of the hearing, this practice had stopped.

⁴² Olson, Van Boeckel, Diller, and Durree were at times evasive regarding discussions about the Union and the Respondent’s view of the Union, as is apparent from the hearing transcript. See, e.g., Tr. 63–64, 170–173, 239, 273–274, 329–331, 339–341. There is no question they were highly aware of the union activity at the store and that the Respondent encouraged partners to vote “no” in elections. I find this harms their overall credibility, but it does not render testimony on all matters unreliable. Durree was evasive throughout her testimony, but I did not ever turn to it to decide any particular allegation.

⁴³ I found Whitmire to be a highly credible witness. His demeanor was steady and he appeared to give thoughtful responses during his testimony. While his testimony was largely supportive of the Union, he gave testimony that was harmful to certain allegations as discussed herein.

September 9, 2021. Dalton generally worked the closing shift. (Tr. 631.) William Whitmire worked at Starbucks' Scottsdale & Mayo store from May 2020 until August 2022. He was promoted to shift supervisor in December 2021.

5 2. Early organizing

10 In late 2021/early 2022 the Scottsdale & Mayo store was understaffed. The café was closed, the store sometimes closed early, and mobile orders were sometimes shut off due to understaffing. SSV Dalton had attempted to address these issues with management, along with concerns about scheduling, communication, and lack of training, without satisfactory results. (Tr. 360–351, 501–502; USDC1 Exh. 42.)

15 SSV Whitmire supported the Union and contacted the union representative in Buffalo, New York, in mid-December 2021 to see about organizing the store. (Tr. 360.) The week of January 10, Whitmire approached around 10 partners to gauge interest in a union. The partners he approached, including Dalton, did not express much interest. On January 20, 2022, Whitmire and Dalton discussed the problems in the store, and the fact that despite raising concerns with SM Olson, nothing was being addressed. Whitmire suggested they organize the store, and this time Dalton said she was interested. (Tr. 360–361, 499, 501–502.) As discussed below, Whitmire and Dalton formed an organizing committee with coworkers Alyssa Sanchez and Tyler Gillette. They talked about the Union with coworkers and solicited authorization cards.

25 SM Olson learned of organizing in Buffalo in late 2021 or early 2022, including through corporate calls about it. (Tr. 58–59.) DM Diller learned of organizing at the end of 2021 from the news. (Tr. 232.) Workplace live also discussed it in late 2021 or early 2022. (USDC3, Diller Dep. 16.) Senior Partner Relations Associate Colyar learned of Workers United organizing in the fall of 2021, stating, “It was on the news everywhere.” (Tr. 290.)

30 3. Laila Dalton background facts

35 Back on November 22, 2021, SSV Dalton had forgotten about a shift and was a no-call/no-show. She texted DM Diller that evening to apologize for missing the shift. (USDC1 Exh. 42.) On November 28, 2021, SM Olson had asked Dalton to come in and work a food handler training shift on her day off. When Dalton realized she'd been scheduled, she texted Olson that she had school and therefore could not come in. Diller and Dalton met to discuss this as well as some concerns Dalton had raised about Olson's communication. Diller suggested that Dalton work extra hours for the shifts she had missed. Dalton thought that was the end of the matter. Dalton, Olson and Diller also met in the store in early December 2021 to discuss ways to improve communication. (USDC2 Exhs. 100, 101.)

40 On January 5, 2022, Dalton was 9 minutes late. She acknowledged being late and observed that as long as it was not a pattern, it was usually overlooked. Olson talked to Dalton about the importance of showing up to work on time.

45 The daily record book (DRB) is a communications platform for the store managers and shift supervisors to plan out their day. The top of the DRB provides the following instructions for use:

Store Manager: Share details about the plan and capture feedback from Play Callers.

Play Caller: Review this page as you check in and share back as you check out.

5 The DRB contains sections for “staffing and scheduling,” “teaching and training,” “sales and inventory,” a “store walk,” and “key happenings and items to celebrate.” The DRB form asks if unusual events were captured, and it contains a section of duties for the shift supervisor to check off on at specified times of day.⁴⁴ (USDC1 Exh. 41.)

10 On January 6, Dalton wrote in the DRB in the “staffing and scheduling” section that Sophia had called out and had been told to find coverage. She wrote that it was a hard day with a 2-person floor, and that Bill and Tyler did amazing. She also noted great work from Celeste and Tyler, it was an exhausting day, and wrote “great team work.” (USDC1 Exh. 41.) At 3:38 p.m.,⁴⁵ Dalton texted Olson about the staffing problems she experienced that day, stating that she had called everyone she could think of but had no luck. She noted she had to skip her breaks to
15 maintain the Starbucks experience for customers. At 10:59 p.m. that night, Dalton texted SM Olson:

20 sorry for texting you this late, but i have a lot of concerns. i would like to sit down and discuss if this store is the best fit for me. i believed that after our last talk with megan things would change and that we had found some common ground, but i left today feeling very unsupported and taken advantage of. the lack of communication between you and all the supervisors has been blatantly disrespectful. like not even being informed that you had asked celeste to come in early, for example. i can’t do everything by myself, and i really needed your help today. i need your support and guidance, instead i got silence and
25 more disrespect. i shouldn’t have to reach out to megan for the help that i need. tyler shouldn’t have to be soloing the entire floor while trying to get us on track for close every single shift. bill shouldn’t have to stay extra three hours to help us get caught up. my coworkers are my family, and i love this store very much, but it’s becoming increasingly difficult to put in 100%. everyone, especially the closing crew, work so hard; and none of
30 us deserve the treatment we’re getting. i can’t continue to watch a place that I cherish so much suffer like it is.

(USDC1 Exh. 15.) Gillette helped Dalton prepare the text. (Tr. 533.)

35 On January 8, Dalton wrote in the DRB that both openers had shown up late and that Marisa was out, so they were down a person. She noted that Celeste had a car accident and had switched shifts with Tyler, who came in early. Dalton wrote it was a 2-person floor “basically all day long” and it was a “hard close” (with a frown face) with Bill, Tyler, and herself, and “great work” with a heart next to it. (USDC1 Exh. 41.)

⁴⁴ DM Diller testified, “The daily record book is where we keep important communications regarding temperatures, food safety, cleanliness of the store, paid out, so what we’re using our store purchasing card for, the store ops assessment, which is a safety assessment, and then the store manager communicates their plan.” (USDC3, Diller depo. 37–38.) The requirement to document these items is not apparent from the form itself, and there is no example of a DRB form documenting these items in the record.

⁴⁵ The times in the texts in USDC1 Exh. 42 are in UTC time and have been converted to Phoenix time using <https://www.worldtimebuddy.com/>. (Tr. 79–80.) Where the dates in this summary appear inconsistent with the document, it is because the adjusted time reflects a different date.

On January 9, Dalton came to the store because SSV Whitmire was struggling with his shift. He had not done inventory before, so Dalton agreed to come in to show him how to do it. DM Diller and SM Olson counseled Dalton not to come in when she was not scheduled. (Tr. 521–522, 698; USDC2 Exh. 100.)

On January 13, at 4:04 a.m., Dalton texted the following message to Olson:

I’m sorry to text you so late, but I’m not going to make it in today. I woke up 2 hours ago with sharp pain in my side. It’s similar to the problem that I was hospitalized for a couple of months ago. I am going to call my gastroenterologist to see if I should go in. Once again, I’m so sorry.

Olson responded at 6:56 a.m., “I hope you feel better soon. Please keep me updated.”

Dalton went to the emergency room on January 13 and received medication. On January 14, Dalton texted SM Olson that she had received medication and needed to have additional tests, but she should be able to work her next shift. Later that day Dalton texted Olson that her doctor scheduled her for a colonoscopy the following day. Olson told Dalton that she needed to cover her shift if she would not be in for work. Dalton called more than 10 supervisors and was not able to get her shift covered. She informed Olson of this and said it was essential she receive the colonoscopy to ensure she did not have a blockage.⁴⁶ Dalton did not show for her shift on January 16. She testified that she was still in the hospital and that she was recovering from her colonoscopy. (USDC1 Exh. 42; Tr. 524, 702, 705.)

In consultation with DM Diller, Olson opened a case with partner relations about Dalton on January 18. Alonya Colyar, senior partner relations manager, received it on January 19. Colyar scheduled a call with Olson and Diller for January 20, but it did not occur until January 24. (USDC3, Diller Dep. 10; USDC2 Exh. 103.)

On January 19, the store was short-staffed so Olson told Dalton she could close the store at 5 p.m. rather than 9 p.m.⁴⁷ This was last minute, so she had not done the tasks that would have allowed her to leave as early as normal, and she had also been assigned to do inventory that day. SSV Whitmire had been there since 11 a.m., and Sanchez was scheduled until 5:30 p.m., but had to leave at 6. Dalton conveyed this to Olson and asked what she should do because she could not be alone in the store. Dalton called Olson at 6:05 p.m. and told her she and Whitmire were not done with closing tasks. Olson instructed Dalton to prioritize tasks and check out. Dalton and Whitmire clocked out at 8:00 p.m.⁴⁸ On January 22, the store was short-staffed, so Dalton was told to close it at 6:00, and she clocked out at 6:45 p.m.

⁴⁶ The next text in the text string is on January 26, 2022.

⁴⁷ The CAF states Olson asked Dalton to close the store at 5:00, as does Diller’s declaration, but Dalton believed she was to close the store by 5:30. (See USDC3, Dalton Dep. 66; USDC2 Exh. 101; Tr. 714–715.) It is immaterial.

⁴⁸ Olson did not testify that she asked Dalton to clock out at any particular time that day. Dalton testified that generally the timeframe to clock out is 30 minutes after closing, but nobody, even when they were fully staffed, completed closing tasks by 30 minutes on the dot. (Tr. 715.) This is unrefuted, and it is

4. January 21 meeting and further organizing efforts

SM Olson and DM Diller conducted an all-staff meeting on January 21. It was planned 2 weeks in advance, all staff were required to be there, and the store closed for it. Diller reviewed benefit options and asked if there was anything the staff wanted management to work on. (USDC3, Diller Dep. 31.) SSV Whitmire raised concerns about scheduling, and the stress from being so short staffed. (Tr. 363.) Other partners spoke up, mainly concerning how difficult it was to get time off. Partners had previously discussed these concerns among themselves. Dalton said she was having problems with time off requests not being granted and remaining in pending status until the week of the request. She said she had a funeral coming up and she didn't know if her request for time off would be granted.⁴⁹ (Tr. 505.)

After the all-store meeting, Whitmire, Dalton, and Gillette met to talk about union organizing. They decided to approach Alyssa Sanchez and Kristan Frisone to join them. Sanchez agreed to join them, but SSV Frisone was not receptive. The next day, January 22, Whitmire, Dalton, Gillette, and Sanchez had a Zoom meeting with a union representative. He instructed them to talk to partners to gauge interest and to explore voluntarily collecting authorization cards. Whitmire printed up cards and they started talking to partners about organizing. (Tr. 365–366.) Dalton collected cards after work on January 22 and went to other coworkers' houses on January 23. According to Dalton, SSV Alonso signed a card but then asked that it be shredded on January 24, because she did not want to lose her Arizona State University (ASU) benefits and her mom feared losing health insurance.⁵⁰ (Tr. 572.) Others expressed similar concerns. The organizers collected most cards between January 21 and 25.

SSV Frisone told SM Olson about the union organizing activity on January 23. (Tr. 88.) Olson informed DM Diller, who in turn called RD Durree. Durree told Diller to keep things "business as usual." (Tr. 234–235; USDC3 Diller Dep. 17–19.). At Durree's request, on January 23, Diller sent her an email, cc'ing Keira Bailey, partner relations manager, stating that Dalton, Whitmire, and others were calling partners at home and asking them about unionizing. Diller also alerted Durree and Bailey to concerns about Dalton's "inappropriate behavior" as reported by Frisone.⁵¹ (Tr. 243–244; USDC1 Exh. 44.)

On January 24, Diller, Olson, and Colyar discussed issuing Dalton a CAF for her attendance and other behavior. Based on a pattern of behavior that started in November 2021, they decided to issue a CAF written warning.

also a matter of common sense that when a store is understaffed, there will be less time to start on closing tasks until after the shift.

⁴⁹ Dalton recalled that Olson was supposed to leave so employees could raise concerns with just Diller. There was a group chat on Snapchat where everyone was waiting for Olson to leave so they could tell Diller their feelings. (Tr. 506.).

⁵⁰ During the relevant time period, one benefit Starbucks provided to partners was tuition for ASU online.

⁵¹ Olson did not know if she discussed these latter concerns during her consult with partner relations. (Tr. 244.)

Diller looked at social media accounts of employees organizing in Memphis, the Starbucks United Twitter page, and Dalton and Whitmire’s accounts. (Tr. 238.) Olson looked at social media accounts of Dalton and Whitmire and forwarded screen shots to Diller.⁵² Certain employees, including Frisone, Alonso, and SSV Brian Malley, informed Olson of union activity at the store. (Tr. 73–75.)

5. Dalton’s January 25 written warning CAF

DM Diller attended a January 25, 2022, shift supervisor meeting, which was unusual. (Tr. 369–370, 514.) That same day, Diller and SM Olson presented Dalton with the written warning corrective action form (CAF) prepared on January 24.

The CAF stated Dalton had violated the Respondent’s Time and Attendance policy and How We Communicate policy, and had failed to solve problems in the moment. The CAF faulted Dalton for texting her supervisor about missing shifts because under Starbucks’ time and attendance policy “texting is not an appropriate form of communication.” The following specific incidents were listed as violations of the Time and Attendance policy:

- 11/22/2021 - No call no show – Laila did not show up for her 1p-930p shift, she agreed to pick up this shift on 11/2/2021, when contacted by Delaney, SSV, she said that she could not come, she forgot about the shift
- 11/28/2022 (sic) – Laila texted Nichell the night before her scheduled training shift, stated she would not be working that day
- 1/05/2022 – Late (9 minutes) Laila was late for her 1p-930p shift
- 1/09/2022 – Un Authorized Shift – Laila clocked in and worked 7p-935p, this was not approved by Nichell the store manager
- 1/13/2022 – Improper Call Out – Laila texted Nichell at 4:04a to let her know she would not be in for her shift, Laila did not call per the store policy
- 1/16/2022 – No call no show – Laila texted Nichell that she would not be able to work her scheduled shift on 1/16/22, Nichell reminded Laila that it was her responsibility to cover her shift, she did not find coverage and was un-responsive when Bill, SSV, reached out to her. Laila did not respond until Megan, DM, reached out to her. Laila said she was not working her scheduled shift.

With regard to the How We Communicate policy, Dalton was again disciplined for texting instead of calling the manager, and for her inappropriate negative DRB communications:

- 11/28/2022 (sic) – Laila texted Nichell stating she would not be coming in for her training shift, inappropriate communication
- 1/6/2022 – Laila texted Nichell at 10:59p about her concerns, inappropriate communication through text message–Inappropriate, negative, documentation in DRB to communicate with team
- 1/8/2022 –Inappropriate, negative documentation in DRB to communicate with team

The CAF faulted Dalton for not solving problems in the moment and not using the ACT decision making model or other resources to take appropriate action. Specifically, the discipline noted:

⁵² After Van Boeckel became the second store manager, Olson forwarded screen shots to her as well.

- 1/6/2022 – Laila called at 1:04p and demanded [the type-written word “demanded” was crossed out and “asked” was hand-written above it] that Nichell cover a barista shift, did not problem solve to find coverage, Nichell reminded Laila that she needed to call partners for coverage and this was part of Laila’s responsibility. Around 3p Laila called Nichell three more times, Nichell was unavailable, so Laila called Megan, DM, to walk her through how to run the shift. Laila left 1 barista on the floor while she worked the BOH with Bill, SSV.
- 1/19/22 – Laila called Nichell at 1:15p about two call outs, she was directed by Nichell to close the store at 5p and leave the store at 5:30p due to lack of coverage. Laila called Nichell at 6:05p and let her know they were not finished and she was sending partners home. She asked to bring her brother in to help her close,⁵³ Nichell told Laila that she could not bring her brother in and that she needed to prioritize her work with Bill, SSV, and finish the shift. Laila and Bill clocked out at 8p.
- 1/22/2022 – Nichell called Laila and communicated to close the store at 6pm and leave at 6:30p due to coverage. Laila did not clock out until 6:45p.

(USDC2, Exh. 101a.) Dalton began recording the January 25 meeting in progress.⁵⁴ Dalton disagreed with the discipline and expressed that it was unfair and disrespectful. She explained she could not call the morning of January 13 because she was too sick. She also said she did not “demand” Olson cover a shift, and Diller said it was a poor word choice and they could change it. Dalton also said she did not leave one barista on the floor. Diller read the time and attendance policy to Dalton. (USDC2, Exhs. 113, 114.) This was Dalton’s first discipline. (Tr. 88.) Dalton shared this discipline with SSV Whitmire, who contacted union representatives. (Tr. 372.) The following day, the Union filed a charge.

SSV Whitmire was not aware of a policy regarding what was appropriate or inappropriate to write in the DRB. Dalton was never told about a policy regarding what is inappropriate or negative documentation. Prior to the discipline, management never talked to Dalton about these or other DRB entries. (Tr. 531–532.)

The following is a summary of text exchanges between Olson and Dalton from September 20, 2021, through January 26, 2022:⁵⁵

9/20/21: Olson texts Dalton asking for her email to forward the Teams meeting today. Olson says she’ll announce Dalton’s promotion.
 9/27/21: Olson texts Dalton telling her she needs to finish her training modules.
 10/4/21: Olson texts Dalton about a shift meeting later that day, Dalton responds that she’ll probably be at the airport but will try to find a quiet spot. Later Olson updates Dalton that the meeting is canceled.

⁵³ Dalton’s brother worked for Starbucks.

⁵⁴ The audio reflects that Dalton is crying at times and is agitated throughout the meeting. “Female Speaker 1” on the transcript is Diller and “Female Speaker 2” is Olson. Dalton took a break during the meeting to call her mom and Whitmire. She did not record the meeting after she came back from this break. (Tr. 716–717.)

⁵⁵ The times listed on the text are in UTC time. Where the dates in this summary appear inconsistent with the document, it is because the adjusted time reflects a different date.

10/18/21: Olson texts Dalton asking if she can work Sunday 11/7, she is having a hard time covering Sunday nights. Dalton texts her back the next day saying no problem. Olson tells Dalton she's awesome.

5 10/29/21: Dalton texts Olson asking what to do because there is no more room in the deposit book. Olson responds that a new one is arriving, and meanwhile she should use the back of the last page and thanks her for asking.

10/21/21: Dalton texts Olson that she was not able to finish both department counts.

10 10/22/21: Olson asks Dalton if she can drop off her key for Zeak to close the store. Olson texts Dalton and says never mind, Hayes is heading in, which Dalton "likes."

10/25/21: Olson says she can't get ahold of Tommy and asks Dalton if she can close. Dalton responds that she cannot because she has an exam. Olson wishes her luck. Dalton says she will try reaching out to borrowed partners, and Olson says she appreciates her. Olson asks if Dalton can plan on closing the next day in case she can't reach Tommy. Dalton says yes.

15 10/26/21: Dalton said she saw the new schedule and tells Olson she cannot work Sundays. An Exchange ensues.

10/27/21: Olson asks Dalton for her alarm code and Dalton responds with it. Olson asked if Hayes dropped off the key last night, and Dalton responded that he did not.

20 11/2/21: Olson asks Dalton if she can still work 11/13 and Dalton says she can. Dalton tells Olson it is a 2-person floor, she is trying to find coverage and Celeste did not show. Olson says she just spoke to Celeste who forgot about her shift and could not come in, and they may need to close early. Olson says she turned off mobile ordering and told Dalton to close at 6:30. After more exchange, Olson thanks Dalton and says she's awesome.

25 11/3/21: Olson asks if Dalton got the key back, she responds yes. Olson asks if Dalton can work Monday 11/22, and Dalton responds yes.

30 11/4/21: Dalton tells Olson Sophia's dad called and said she will not be able to close starting today except for Fridays and Saturdays. Olson says she'll call Sophia. Dalton tells Olson Celeste is going to be late and asked if Bill could stay a couple minutes later. Olson asks Dalton if Sophia came in, she responds yes. Dalton sends text about a display problem a customer raised.

11/6/21: Olson texts Dalton and asks her to call. Later, Dalton texts that it's still busy and Celeste has to leave at 5. Olson turned off mobile ordering.

35 11/14/21: Olson texts Dalton that Delaney called out for tomorrow and asks if Dalton can close. Dalton responds that she has too much homework, Olson says ok thank you.

11/16/21: Olson asks Dalton to put up some signs and Dalton hits the like button and texts pictures.

40 11/17/21: Dalton tells Olson that Kevin keeps selling the mango drinks even though she has told him not to. Olson says thanks and asks if they can send any breakfast sandwiches to another store, Dalton responds. Olson later asks if they got the food delivery yet, and asks Dalton to make sure the fridge is empty.

45 11/17/21: Dalton lets Olson know Tyler is available to close next Thursday. They discuss this and a slow-draining sink. That evening, Dalton texts Olson about a family emergency, that aunt is having emergency heart surgery and she can't come to work.

11/19/21: Olson texts Dalton asking if she can work at another store Thursday. Dalton says she can't. Olson asks about Dalton's aunt, and Dalton lets her know she's in recovery.

11/20/21: Olson asks Dalton to change signs from 9a-9p. They discuss the sign and how the day is going.

11/22/21: Dalton texts apologizing for missing work that day.

12/19/21: Dalton asks about hours for Christmas day. Olson responds.

12/20/21: Dalton asks to switch Wednesday shift for another day because she has an MRI. Olson tells her to check with coworkers. Dalton asks if a barista from another store can cover her 1/8 shift and tells Olson she did not find coverage for the following day.

1/6/22: Dalton tells Olson about the difficulties that day due to short staffing. Dalton said she wants to sit down and talk about whether the store is a good fit for her, tells Olson she's been disrespectful. (This text is recited in full above).

1/7/22: Olson tells Dalton she can meet with her and Diller on Wednesday.

1/13/22: Dalton texts Olson apologizing for texting so late and saying she is having sharp pains in her side and will not make it for her shift. Later Dalton texts Olson saying she got some medication and is planning to have some more tests done and thanks Olson for understanding.

1/14/22: Dalton tells Olson about her colonoscopy the next day. Olson tells her she needs to cover her shift if she's not coming in, Dalton says she's still waiting for responses and has reached out to 10 supervisors from other stores. She said she is still waiting on replies but she needs to have the procedure.

1/26/22, Dalton said she talked to her mom and will not be resigning, Olson thanks her for letting her know.

(USDC1, Exh. 42.) Diller also communicated by text with DM Dalton. (USDC3, Diller Dep. 35–36.) From January–May 2022, Barista Tyler Gillette and Olson communicated by text, including communications about Gillette calling out and being late. These texts also show Olson informing Gillette of her efforts to find shift coverage for employees who had called out. (USDC3, Gillette Dep. Exh. 2.)

On February 3, the recording of Dalton's January 25 corrective action meeting was posted on the Union's Twitter account. (GC Exh. 5.)

6. Further organizing efforts and Dalton's off-duty visits

On January 27, 2022. Dalton came to the store on her day off to get her headphones and congratulate SSV Whitmire, who was the keyholder that day, on being named partner of the quarter. She let herself in the store with her key, which she had done in the past when she visited the store off duty.⁵⁶ SM Olson told Dalton she could go in back and have a cupcake or cookie. (Tr. 394, 538–539.) Olson did not tell Dalton to leave the store. (Tr. 92.) After Gillette finished their shift, they left with Dalton. Olson did not do a Covid check-in with Dalton, nor did Whitmire. Olson told DM Diller that Dalton had visited the store. Diller came in and worked on the floor for 2 hours that day, which was unusual. (Tr. 247, 373, 393–394.)

⁵⁶ Dalton had not been told not to use her key when she let herself in while off duty in the past. (Tr. 540.)

The organizing effort at Scottsdale & Mayo was posted on the Union’s public Twitter account on January 31, 2022. A letter was posted describing the reasons for organizing and describing the organizing effort. It was signed by Dalton, Whitmire, Gillette, Alyssa Sanchez, Sofia Lugo, and Malia Nelson. (USDC1 Exh. 21.)

Dalton visited the store on her day off on January 31. (Tr. 92.) She wanted to get union pins from Whitmire and sign her Board affidavit. Dalton waited for Whitmire to go on break and he and Gillette helped her sign her affidavit. (Tr. 540–541.) On that day, Frisone was the mid-day keyholder and Whitmire was the closing keyholder. Neither Whitmire nor Frisone did a Covid check-in for Dalton. (Tr. 391; GC Exh. 24.)

On February 1, 2022, SM Olson texted DM Diller, “Brian just called me to let me know that Laila was in the store on her day off ‘organizing’ yesterday. Kristen let him know and she was extremely uncomfortable.” Diller responded, “OK was she talking directly to partners and interrupting bluestones? And did she let herself in the store again? And did she check in?” Olson asked if Diller wanted her to call Frisone and find out details. Diller responded, “Yeah just ask those questions.” Olson reported back, “Laila was in the BOH making calls and handing out pins talking to partners on the floor.”⁵⁷ Kristen said she let herself in and was there for about 40 minutes. She did not check in.” Diller thanked Olson. (USDC1, Exh. 38.)

Frisone provided a statement to Diller on February 18 regarding Dalton’s visit to the store on January 31. Frisone stated, in relevant part:

She was sitting in the back for approximately 40 min making phone calls relating to union discussion and partaking in discussion regarding the union with fellow workers while they were on their shift. I believe she had a face mask on that day. She had not filled out the Covid coach upon entering the store and it was to (sic) late by the time I noticed she was in the back.

(GC Exh. 24.) SSV Malley testified he learned about Dalton’s presence in the store on January 31 from Frisone, who asked Malley to report Dalton’s presence to Olson because she had only been at the store for a couple weeks.⁵⁸ (Tr. 1198–1199.) Malley reported to Olson that Dalton was having discussions about the Union.⁵⁹ (Tr. 1228.)

Dalton believed that unless she was working, she did not need to wear a facial covering when in the store. Dalton was not aware of anyone disciplined for not wearing a face covering. (Tr. 577–578.) Whitmire never saw a Covid check-in done when an off-duty partner came to the store. If an employee from another store stopped by to pick up product, they did not do a Covid

⁵⁷ Diller claimed not to know this was a reference to union pins, which strains credibility. (USDC3 Diller Dep. 47–48.)

⁵⁸ The Respondent cites to pages 1198–1199 of the transcript in reliance of its argument that Malley reported Dalton’s violation of the face mask policy to Olson. (R Br. 53.) The relied upon transcript pages say no such thing, and indeed the written evidence at GC Exh. 24 shows that Frisone believed Dalton was wearing a mask.

⁵⁹ At the hearing, Olson could not recall whether Malley reported Dalton’s January 31 store visit to her. (Tr. 93.)

coach on them. Whitmire was not aware of any other employee being disciplined for not wearing a mask and observed that other employees were just told to wear it or pull it up over their noses. (Tr. 407–409, 542.)

5 DM Diller reviewed the store’s video footage from January 27 and 31.⁶⁰ She also interviewed employees about the incidents. Diller said she coached SM Olson that she could have acted in the moment and asked Dalton to leave, though she could not recall whether Olson had asked Dalton to perform a Covid check-in. This coaching was not documented.⁶¹ (Tr. 246–247, 250–252.)

10 On February 16, 2022, Dalton met with DM Diller and SM Olson before her shift. Dalton recorded the meeting. Diller asked Dalton her understanding of the Respondent’s Covid procedures, and Dalton responded. Diller then asked Dalton to tell her what happened when she came into the store on January 27. Dalton said she was barely there and was trying to find her
15 Air Pods. Diller further prompted, “I just want to, again, hear from you and, like, understand what went on, right?” Dalton told her nothing happened that she was aware of. Diller then asked how long Dalton was in the store, and Dalton replied, “not that long.” Diller then said, “So not a very long time, right? Is that what you’re sharing?” and Dalton agreed. Diller then asked how Dalton got into the store, and Dalton said she used her key (adding she had not been told not to
20 do that), and said, “But I don’t know what Thursday has to do with anything.” Diller said some “concerns” were brought to her attention.⁶² Dalton said, “I mean, like, what happened? What concerns?” Diller responded, “That’s what we’re talking through right now, right?” She again asked if Dalton had let herself in, and Dalton responded, “Everyone has done that,” and there had never been a rule against it. Diller asked, yet again, “When you came into the store that day, then
25 what happened?”⁶³ Dalton responded that she didn’t remember. Diller then said, “You just came back here and looked for your Air Pods is what you said?” Dalton responded that she said “hi” to Olson and congratulated Whitmire. Diller then asked if Dalton completed the Covid check-in process. Dalton responded that she was “pretty sure” she did, but she forgot to sign the log.

30 After some back and forth, Diller asked Dalton about her store visit on January 31. Dalton then said she didn’t remember, and she would like to talk to a lawyer. She also said she felt like she was being discriminated against because she was Black because she is the only person in the store to get written up for being late. After Dalton vented some more, Diller told her they had determined that she violated the Covid check-in policies on January 27 and 31.
35 Diller did not ask Dalton whether she had worn a face covering during her visits. Shortly after the meeting, Dalton asked to leave her shift early because she was not feeling well. (USDC2 Exhs. 115–118.)

40 The Union filed a petition for election on February 22, 2022.

⁶⁰ She testified she probably reviewed the footage with Colyar.

⁶¹ There is no record evidence that she coached SSVs Alonso or Whitmire, or that Diller asked Dalton to do a Covid check-in on January 31.

⁶² The record does not document any “concerns” being reported due to Dalton’s presence on January 27.

⁶³ At the hearing, Diller denied asking Dalton what she did in the store, and testified she asked her coworkers “where she was at in the store.” (Tr. 252.)

At SSV Whitmire’s request, he met with SM Olson and DM Diller on February 24. He raised a concern about misinformation he believed Starbucks provided about the Union in the Weekly Update Starbucks required employees to read. He asked for equal time for the Union to make postings. Diller said anything about posting would need to go through corporate. Whitmire also expressed his concern that Dalton was being written up for things other employees were not getting in trouble for, and that Dalton was taken out of earshot of other employees for meetings, which was inconsistent with his experience. He asked why he was not coached on the dates Dalton did not do a Covid check-in because it was his duty as the SSV to perform this task. After the meeting, Olson handed Whitmire a piece of paper and instructed him to write down what he had told Diller regarding the second half of the meeting. Whitmire did so at the manager’s desk. Whitmire also revealed himself to be the lead organizer. Diller gave some assurances that it was Whitmire’s legal right to organize and said there had been some damage to their relationship that he would need to work to repair.⁶⁴ (Tr. 388–392, 448–450; USDC3 Whitmire Dep. 12.)

After this discussion, Diller said she wanted to talk to Whitmire about Dalton’s store visits on January 27 and 31. Regarding the January 27 visit, Diller asked how Dalton had entered the store and asked Whitmire if he had performed a Covid check-in. He responded that Dalton let herself in the store and he had not performed a Covid check-in. Diller asked what Dalton was doing in the store and Whitmire responded she was there to congratulate him on being partner of the quarter, and then she waited until Gillette was off their shift and left with Gillette. (Tr. 392–394.)

For Dalton’s January 31 visit, Diller asked Whitmire how Dalton had gotten into the store, whether he had performed a Covid check-in with her, and what she did during her visit. Whitmire responded that Dalton used her key, he did not do a Covid check-in, and that Dalton was there because she needed help doing something on her phone. Diller then asked what Dalton did afterward, and Whitmire said he was busy running the floor. Diller pressed Whitmire about what Dalton was doing at the store, and he repeated he did not know because he was in and out of the back room. (Tr. 394–395.)

On February 24, DM Diller sent RD Durree an email informing her that an employee at another store was wearing a Workers United pin and he was close with Dalton. (USDC1 Exh. 46.) Durree said she’d submit it to “intake.” At hearing she testified she could not recall what she meant by that.⁶⁵ (Tr. 339–341, 344.)

On February 25, Diller asked Gillette about Dalton coming into the store on January 27 and 31. She asked them if they knew the Covid check-in policies for employees who came in off duty, and Gillette responded they were not aware of any such policy. Gillette recalled Dalton

⁶⁴ When asked, “Was that what she said verbatim?” in his deposition, Whitmire responded he wasn’t sure Diller used the word “damage” and added, “I just recall her saying I would need to do some work to . . . repair the trust.” (USDC3 Whitmire Dep. 13.)

⁶⁵ This lacks credibility given that Durree was asked about her own words. I found Durree was in generally evasive in her testimony, and she was not a credible witness particularly when it came to her knowledge of/involvement with matters concerning the Union. (See Tr. 329–332, 336–342.) She also gave untruthful testimony when she said she did not document any organizing activity at any stores, when it is clear by her own email that she submitted information about an employee wearing a union pin to intake. (Tr. 330.)

came in on January 27 to get her headphones, and that she and Gillette had made plans to go to Dutch Bros after Gillette’s shift. Diller also asked Gillette what Dalton was doing and why she was picking Gillette up, and “various questions about what Laila was doing, why Laila was doing things, what we were doing, what I was doing.” (Tr. 1044–1045.)

5

After organizing began, Diller visited the store more frequently, as often as three times per week. (Tr. 75–76, 418–420, 1232–1233.) Dalton noticed that there was always a manager at the store when she closed, when there had not been prior to organizing. (Tr. 568.)

10

7. The Ethics and Compliance investigation into Dalton

On March 2, 2022, SSV Malley and Dalton had a verbal exchange, which Malley memorialized as follows:

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Laila came in for her shift and saw that union supporting post it note she left on the partner communication board had been taken down. She was very interesting (sic) to get me to admit that either I or Kristen, another shift supervisor, had taken them down. I told her it wasn’t us. I got clarification from our store manger (sic) that only official Starbucks communication should beuo (sic) here.⁶⁶ I gave that information to Laila. She started saying how she’s not allowed to post the truth for barista’s to see. I took this opportunity to try to talk to her about the note she had written. I told her I had read that note and then I have experience with unions and then I don’t think she’s been told the whole truth. Her response was to talk loudly over me and tell me that everyone knows I am corporate and only speak corporate so she refuses to talk to me about this. I am an hourly worker just like her. Until now she has never spoken to me about the unionization effort. I have been told by other people leading the union effort that they had been told by Laila they weren’t supposed to talk to me about it. She denies this. I said I just wanna have a conversation about this. She walked away saying into the headset for everyone to hear, “I dont want to talk to you.” She did this over and over anytime I tried to speak. This made me extremely angry so I left the floor and let Nichell the store manager know what happened.⁶⁷

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(USDC1, Exh. 47.) Diller shared Malley’s description of the incident with Durree and created an incident report with Starbucks’ department of Ethics and Compliance.⁶⁸ (USDC1, Exh. 47.)

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Dalton testified she had put union material up on the board in response to numerous antiunion posters. She recalled she asked Malley if he took them down, and he said no, and later told her that Olson had taken them down.⁶⁹ She knew Malley was antiunion, so she told him she didn’t want to talk to him about it. He kept trying to talk to her and she told him she did not want

⁶⁶ Olson said she removed union sticky notes from the communications board at the store and that there was no written policy about it. (Tr. 95–98.)

⁶⁷ According to Diller, Malley reported that Dalton had repeatedly yelled at him, but this was not how Malley phrased it in his statement. (Tr. 258.)

⁶⁸ Olson testified that Malley initiated the ethics and compliance investigation, but Malley testified he did not know who initiated it. (Tr. 99, 1235.) Malley had direct knowledge so Olson’s testimony is not credited.

⁶⁹ Dalton recalled the conversation was on March 10, but the documentation shows it was March 2.

to hear his “BS” about corporate. According to Dalton, Malley became angry, slammed his headset, went to the café, and then talked on the phone. (Tr. 546–548.)

Malley spoke to Scott Rabe from Ethics and Compliance on a couple occasions. Malley reported that Dalton had said he should be ashamed of working for Starbucks at his age, and as he was leaving, she said, “bye Brandon” or “let’s go Brandon” or “something like that.” (Tr. 1208.)

On March 10, Rabe called Whitmire to investigate the reported conduct concerning Dalton. Rabe asked Whitmire if he had heard Dalton say something like, “It’s so sad that someone over the age of 40 years old is working for Starbucks,” and “Okay Brandon.” Whitmire said he had never heard these comments and he was shocked that he received this phone call because Dalton would not say these things. Rabe asked Whitmire to keep the conversation confidential. (Tr. 415–416.)

Rabe called Dalton on March 11. Dalton began recording the conversation as it was in progress. Rabe explained that he was investigating concerns about her conduct in the store. Rabe asked Dalton if she ever said it was sad that Malley worked at Starbucks because he was over 40, and if she said, “OK Brandon.” He also asked her if she went into the back room, scared a partner, and said, “Is that because I’m black?” He asked her, “Have you ever made a joke saying, ‘you can’t say that, that’s racist’ about something that you knew wasn’t racist?” Dalton said she did not understand the question and she wanted to talk to a lawyer. She then said she did not understand him asking about an “Okay Brandon” comment because nobody in the store was named Brandon, though she recognized the phrase as derogatory, meaning “FU.” Dalton said she felt attacked and set up and she did not want to answer any more questions. Rabe told her it was her choice, she could consult a lawyer, and said he planned to follow up with her. Rabe encouraged Dalton to talk to him to share her perspective, but reiterated it was her choice. He asked her not to share the conversation with other partners and reminded her of Starbucks’ nonretaliation standard. He said he would follow up with her the following Monday. (GC Exh. 4; Tr. 549.)

Shortly after her conversation with Rabe, Dalton called Ethics and Compliance to raise concerns that she was being subjected to discrimination based on race and her union activity. She was told someone would follow up, but she did not hear from anyone. (Tr. 853.)

On March 25, Rabe called Dalton again and asked her the same questions, identifying Malley as the person for the “over 40” comment and “OK Brandon” comment, and a barista named Shoshana for the “scared because I’m Black” comment. (Tr. 558–559.)

No discipline resulted from the Ethics and Compliance investigation.

8. March 11 Dalton documented coaching CAF for wearing earbuds

On March 9, 2022, the Regional Director for Region 28 approved the stipulated election agreement. (GC Exh. 8.)

On March 11, SM Olson prepared a CAF documented coaching for Dalton for wearing earbuds while working on March 2, 7, and 8, 2022.⁷⁰ Olson and DM Diller presented Dalton with the discipline on March 12. The CAF did not reference any written policy or guidance, and it did not reference or rely upon the January 25 CAF. (USDC 1 Exh. 29.) Dalton wore earbuds at work frequently. Malley had instructed her to remove them without success and had approached Olson about it. (Tr. 1186, 1225.) Dalton recalled Olson coached her on March 8 not to wear earbuds when dealing with customers. Coworkers wore earbuds when doing work such as prep and dishes.⁷¹ (Tr. 414, 554–555, 1038.)

On March 15, More Perfect Union posted a video of the discipline and posted that the NLRB filed a complaint. (GC Exh. 6.)

9. Van Boeckel’s arrival and Dalton’s March 18 CAF for not wearing facial covering

At DM Diller’s request, Van Boeckel began as a support store manager at Scottsdale & Mayo on March 14. She had been the store manager at another area store for 6.5 years. She worked night shift and closing shift while at the Scottsdale & Mayo store, and worked at least 40 hours per week. Van Boeckel was at the Scottsdale & Mayo store to support with staffing and training. Van Boeckel testified she was not informed of union activity before she started, but saw protests outside the store almost immediately after she started. Van Boeckel returned to her home store on April 25, 2022. Diller did not tell Van Boeckel why she decided to return her to her store. (Tr. 163–166.)

Prior to Van Boeckel’s arrival, a store manager generally was not present at closing. After Van Boeckel came, either Olson or Van Boeckel was present for the closing shift. (Tr. 568–569.)

On March 18, 2022, Diller created a CAF final written warning for Dalton for not wearing a facial covering during her visit to the store on January 31.⁷² The CAF document did not reference any particular written policy, but stated, “At the time of this incident it was company policy for partners in the store to wear a facial covering at all times, unless actively eating or drinking.”⁷³ (USDC2, Exh. 100d.) Diller tried to deliver the discipline on March 21, Dalton’s first day back after spring break. According to Diller, Dalton said she would not speak to her without a lawyer present. Dalton recalled telling Diller these meetings felt like a pattern and she felt harassed, and she just wanted to work her shift. Dalton said it made her nervous to talk to Diller and Olson two against one, and they agreed to talk another time. (Tr. 253, 556–558; USDC2 Exh. 100.) In any event, Diller left for vacation on March 22 with the intention of giving Dalton the CAF upon her return.

⁷⁰ Olson prepared the CAF on March 11.

⁷¹ SSV Alonso testified that there was a rule about wearing earbuds in the dress code, but the 2020 Partner Guide does not mention this as part of the dress code, and the dress code is not mentioned in the discipline. (Tr. 1129; USDC1 Exh. 107.) SSV Malley testified wearing earbuds was a health code violation without citation or reference to record evidence. (Tr. 1181.)

⁷² Although the CAF states it was prepared by Olson, Diller testified she drafted it. (Tr. 253–254.)

⁷³ Starbucks’ “Quick Reference Guide” on facial coverings sets forth some “dos and dont’s” about how to wear facial coverings. (R Exhs. 18, 19.) The CAF was only for not wearing a face covering on January 31.

Whitmire and Dalton believed that wearing a face mask was only required when partners were on the clock. (Tr. 408, 577.) SSV Alonso recalled that masks were required except when someone was eating or drinking on break, but she would only step in and tell someone to put on their mask if they went onto the floor without one.⁷⁴ (Tr. 1143, 1158.) SSV Malley believed everyone who entered the store was required to wear a mask. (Tr. 1194.)

10. Dalton’s termination for violating recording policy

Dalton was terminated on April 4, 2022, for violating the Respondent’s audio recording standard on March 23 and 26. The Notice of Separation states:

After an investigation it was determined that Laila Dalton violated the company’s audio recording standard on March 23 and March 26, 2022.

It was determined that Laila recorded conversations, that she did not participate in, at the Manager’s Desk by setting her phone to record and then leaving it upside down on the Manager’s Desk.

When asked if any of the participants in the conversation had consented to Laila recording, she said no.

Your conduct not only violates SB policy it also raises serious concerns under AZ state law and interferes with the operations of our store.

This conduct would constitute grounds for separation in and of itself even without considering your history of corrective actions.

(USDC1 Exh. 33.)

The Respondent’s recording policy states:

Video Recording, Audio Recording and Photography

Personal video recording, audio recording or photographing of other partners or customers in the store without their consent is not allowed except as protected under federal labor laws.

Starbucks installs security cameras in the stores for partner and customer safety and to monitor activities involving cash. Partners should be aware that these security cameras will capture video and/or audio recordings.

⁷⁴ Alonso waffled a bit in her testimony. In follow-up questions she said she would “probably” require someone in the back of the house who was not on a break to wear their mask, and then that if they were not clocked in she would require them to wear a mask, but did not say what she would do if they were eating or drinking. (Tr. 1158–1159.)

SM Olson did not know what the exception for protections under federal labor law in the rule meant and was not aware of any explanation employees received about this exception. (Tr. 104-106.) SM Van Boeckel said her only understanding of “except as protected under federal labor law” was it meant they could not videotape in the stores. (Tr. 197.) Nobody explained to
 5 DM Diller what the “federal labor laws” exception meant, and she never shared what she thought it meant with employees. (Tr. 263.) Senior Partner Relations Associate Colyar did not know what the exception meant and was told to consult Starbucks’ attorneys if she got a case involving audio or video recording. (Tr. 304.) SSV Alonso did not know Starbucks’ recording policy, and nobody explained the policy to her. (Tr. 1162.) When Olson asked for guidance about Dalton
 10 recording, Diller told Olson not to address it. (Tr. 107.) Diller did not know whether the recording policy permitted recording if the parties consented. Diller knew Dalton recorded their meetings, told Dalton she was okay with it, and did not tell her it was against Starbucks’ policy. (Tr. 262–266.) Dalton was not told she needed consent to record. (Tr. 579.)

15 Dalton said she was “always recording” because every single day she did not know whether it would be her last day of work. Dalton testified, “I’ll just say that I was scared and it just felt like it was my only -- it was my only evidence and I was counting down the days until they fired me. Because it seemed like every single day I walked in I had a write up, I had an investigation, I had something new that they wanted to use on me.” (Tr. 582.)
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Surveillance video was submitted into the record for March 23, 2022, from approximately 2:50 p.m. to 8:00 p.m. At 2:50, Dalton sat at the manager’s desk before placing her purse on the shelf next to the desk and leaving the area. Employees came in and out of the area. At around 3:10, Dalton came in to grab a couple sleeves of disposable cups, which were
 25 stored just across from the manager’s desk. Olson sat at the desk at around 3:15 to eat. During the roughly 25 minutes Olson remained at the desk, an employee came into the area to work, including accessing the cleaning supplies which were stored just beyond the desk. Throughout the afternoon, Olson was at the desk on and off, and employees worked in the BOH. At 4:02, an employee sat at the desk in the main chair to use the computer, with Olson pulled up alongside
 30 them in a smaller chair. They remained there for about 10 minutes, with another employee coming in and out of the area, including to put the mop and bucket away just past the desk. Throughout the afternoon, employees were in and out of the BOH.

At 5:23 p.m., Olson began a phone call at the manager’s desk. During the call, employees
 35 were in and out of the BOH, and some walked by the manager’s desk. At 5:31, Olson was still on the phone, holding it with her right hand, she picked up another phone with her left hand, but resumed the call with the phone in her right hand (which she had briefly set on the desk) at 5:33. Dalton came in and retrieved something a few seconds later. Dalton was back in the manager’s desk area between 5:36 and 5:38, remaining for over a minute. At 5:39, Dalton plugged in a
 40 phone at the manager’s desk and retrieved another. The phone she plugged in was recording. Dalton worked in the back area near the manager’s desk until 5:47, and then was in and out of the area. While she was doing inventory, Dalton overheard Olson say she was hiring a lot of people. Olson’s call ended at 6:27, and she began another call just before 6:30, which ended two minutes later. Olson left the area briefly and returned at 6:35. She picked up Dalton’s phone and
 45 took a picture of it. Dalton’s phone had been recording for over an hour. Olson did not coach Dalton for her actions at the time.⁷⁵ She reported it to Jessica Maniga, who was filling in as DM

⁷⁵ Diller instructed Olson not to address Dalton’s recordings.

for Diller while she was on vacation. (USDC2 Exhs. 101, 101c, 127, 128; USDC3 Dalton Dep. Exh.1; Tr. 564.)

Olson discussed confidential staffing issues when she was on the phone on March 23. She stated that the store manager's desk is where conversations and calls about medical requests, accommodations, performance coaching and development, and other sensitive matters occur. Olson was very upset that Dalton had recorded her at the manager's desk. (USDC2 Exh. 101.)

The surveillance video for March 26 runs from 2:50 p.m. to 5:10 p.m. As with March 23, employees can be seen working in the BOH and coming in and out of the area by the manager's desk. SM Van Boeckel was also in and out of the area, at times sitting at the desk. An employee sat at the desk at 3:32 and used the computer for about 10 minutes. At 4:16, Dalton plugged in her phone, which was recording, at the manager's desk. At 4:21, Van Boeckel called Maniga from the manager's desk to tell her about a union rally that was taking place outside the store. The call lasted a couple minutes and during part of the call an employee performed work in the back area. At 4:46, Van Boeckel took a picture of Dalton's phone to show it was recording. (USDC2 Exhs. 102, 102a, 129, 130.) During her shift on March 26, Van Boeckel had conversations with the district manager about partner issues that were not public knowledge and about which she did not want other hourly partners to know. (USDC2 Exh. 102.)

On April 2, Dalton met with Diller and another district manager, Jarod Leister. Dalton recorded the meeting. (USDC2 Exhs. 119, 120.) Diller said some concerns had come to her attention. She asked Dalton if she had ever hit "record" on her cell phone and left it at the manager's desk. Dalton said she did not recall. Diller said a cell phone was recording in the back of the house on March 23. Dalton responded, "Oh, that's because everywhere I go I record and I'm always present when I'm there because I know if you're not it's illegal."⁷⁶ Diller asked Dalton if she was part of the conversation at the manager's desk on March 23, and Dalton responded, "Yes." Dalton went on to state that she was permitted to record and the videos of them harassing her were making her famous. Diller asked if anyone asked her to record in the BOH. Dalton said she didn't recall. Diller next asked if Dalton captured any recordings that she was not present for on March 26, and Dalton said she didn't recall. Diller asked if Dalton knew it was against Starbucks' policy to record without partner consent. Dalton said they had never told her she couldn't record. Diller asked Dalton if she had reached out to a new partner Farah Hill before her first day of work, and Dalton responded that she reached out to everyone to say hi. Diller assured Dalton she would not be held accountable for any protected activity. Diller relayed that Hill was under the impression that she was not to report to work after talking to Dalton.⁷⁷ Dalton responded that she did not tell Hill not to come in for a shift. Though Dalton initially said she was always present when she was recording, she later admitted that she had recorded when she was not present. (Tr. 410, 572–574.)

In a meeting with DMs Diller and Leister on April 4, Dalton was discharged and she received the previously mentioned final written warning for not wearing a face covering on January 31 that had been created on March 18. The separation was for violating Starbucks' audio recording standard on March 23 and 26. The notice said Dalton recorded conversations she did

⁷⁶ Dalton repeatedly stated she was always in the back with her phone when it was recording because leaving it would be illegal.

⁷⁷ Hill did not testify.

not participate in when she left her phone recording on the manager’s desk, in violation of Starbucks policy, and that this conduct also raised concerns under Arizona state law. The notice stated that the recordings were grounds for separation independently, without consideration of previous corrective actions. (USDC 1, Exh. 33.) Diller did not watch the store’s surveillance
 5 footage for March 23 and 26 before issuing the notice of separation, and the discharge was not based on progressive discipline. (Tr. 267.)

11. The election and related events

10 Van Boeckel submitted incident reports on April 5 based on a union protest at the store. She also directed SSV Alonso to submit an incident report for the protest.

The mail ballot election started on April 5, with ballots due on April 19. (GC Exh. 8.) From mid-March until about mid-April, Whitmire observed more managers at the store,
 15 “popping in and out a lot more than we had before.” Tiffany Allen, the former Scottsdale & Mayo store manager, and SMs Kaitlyn from the Raintree store, Caroline from 40th and Greenway, and Taylor from 40th and Thunderbird, came to the store more frequently. They sometimes sat at the shared table with Olson and worked on their laptops or went to the backroom our outside to talk to Olson. On one occasion while the mail ballot election was
 20 pending, Tiffany, Kaitlyn, and Caroline came to the store and talked outside with Olson for about 30–45 minutes. Whitmire had not seen four managers meet at the store before other than at a district meeting. Whitmire observed that when Olson would leave, another store manager would come in and bring product, and he perceived they were checking on the store. (Tr. 419–422.)

25 At some point during the organizing campaign, Olson presented at a workplace live meeting about her experience at Scottsdale & Mayo. Prior to Olson speaking, other presenters stated that the conversation about unions was all about partnership between management and the partners directly without a union. The presenter who introduced Olson told the participants that negotiations with a union usually take more than a year to get a first contract. She then
 30 referenced “contracts” that the Union had negotiated, which could be found on the “National Labor Relations Act website or other sites that are supported by Workers United,” and said they had yet to find “a contract where Workers United actually provides better benefits or more pay than we already do to our partners.”⁷⁸ This presenter went on to discuss how union activity in some stores had created some divisiveness in the stores and the community.

35 Following her introduction, Olson discussed her training at the Scottsdale & Mayo store, becoming a store manager and promoting Dalton to SSV. Olson discussed her problems with Dalton and the issuance of the January 25 CAF. Olson recounted Dalton’s claims that she and Diller were discriminating against her because of her union activity, and Olson said, “This was
 40 the first we were hearing of any organizing.”⁷⁹ Olson said Dalton had been blatantly disrespectful, had told her and Diller she had been talking to newspapers and government offices, and had secretly recorded Olson and another manager at the manager’s desk. Olson expressed concern that her personal information had been posted on Twitter, and concern for her safety

⁷⁸ At the time of the hearing, there were no negotiated contracts between Starbucks and the Union on the NLRB website, nor were there any executed contracts in U.S. stores.

⁷⁹ This is clearly an incorrect account, as Olson and Diller knew of the organizing before the January 25 meeting.

because of the hateful calls and emails she received. Olson recounted that the organizers filed charges against her and Diller regularly. She also described organizers “grunting” and making hand signals and making it frightful to go to the store. Olson described some of the protests, stating union organizers and supporters “surround the store so that every partner looking out can see them through the window.” She added that the protesters had workers terrified to come into the store.⁸⁰

The tally of ballots showed 6 votes in favor of the Union and 8 votes against the Union, with 7 challenged ballots. The Union filed objections that essentially mirror the unfair labor practice complaint allegations.⁸¹ (GC Exh. 1(oo).)

12. Tyler Gillette accommodation and promotion requests

Barista Tyler Gillette had a personal development conversation (PDC) with SM Olson and DM Diller on January 27, 2022.⁸² Gillette had asked the previous store manager, Tiffany Allen, numerous times for an opportunity to be a barista trainer. They had also mentioned it to the supervisors and other baristas, and testified, “It shouldn’t have been a secret to Nichell Olson” that they wanted to be a barista trainer. Gillette testified that Allen had given them very clear feedback and criticism and told them exactly what she needed to see from them in order to move up. Gillette worked hard in those areas. When Gillette raised the matter with Olson after she became store manager, they perceived that Olson gave vague responses.⁸³ (Tr. 1025–1026.)

During the PDC meeting, Gillette asked again to become a barista trainer and Olson and Diller created a plan with a timeline to start the training. Gillette also mentioned that they were autistic and had sensory issues. They told Olson and Diller that when the apron rubs against the

⁸⁰ Olson did not testify concerning workers’ reaction and her own reaction to the protest, nor did any witness.

Remarkably, Diller, who reviewed Olson’s notes prior to the presentation and watched the presentation, testified she was uncertain whether Olson talked about the Union at the workplace live presentation:

Q. Going back to the Workplace Live event where Ms. Olson shared her experience at the store, she discussed the Union during that presentation, correct?

A. I’m not sure. I would have to see it again.

Q. And she discussed Ms. Dalton, Laila —

A. Yes.

Q. -- Dalton? And you actually reviewed notes from Ms. Olson prior to her giving that presentation, correct?

A. Yes.

Q. And that was shortly before she gave the presentation?

A. Yes

(Tr. 235.) This testimony clearly shows Diller being evasive and attempting to minimize any focus on union activity, and seriously harms her credibility.

⁸¹ The findings regarding objections mirror my findings regarding the unfair labor practice allegations.

⁸² Gillette asked Diller to be at this meeting. She had not previously attended their PDC meetings. This was also Gillette’s first PDC with Olson. (Tr. 1024, 1088–1089.)

⁸³ The dates of any conversations with Olson about becoming a barista trainer are not a matter of record.

back of their neck it creates stress, so they asked about altering it or not wearing it. They also asked to only wear the drive-through headset when needed and to take it off when doing tasks like dishes and prep because the noise could get overwhelming, and for permission to use an earbud for its noise canceling feature. Gillette thought Olson and Diller seemed receptive, and Olson said she had heard of other employees with disabilities getting an extra 10-minute break to wind down and recover from overstimulation. (Tr. 1024–1029.) Olson had, in the past, instructed Gillette to wear their headset. This was the first time Gillette had asked for an accommodation, though they previously had talked about their sensory issues to Olson and mentioned things they may find helpful. (Tr. 1058; USDC2, Exh. 101.)

Diller and Olson did not formally grant Gillette’s requested accommodations, and Diller explained that only partner relations could approve medical accommodation requests.⁸⁴ Diller told Gillette they should reach out to partner relations to begin the process. Diller also referred Gillette to Lyra, a Starbucks benefit that provides free mental health counseling. Gillette chose not to request accommodations through partner relations or contact Lyra. (Tr. 1065–1066; USDC2 Exh. 101; USDC3 Gillette Dep. 26–27.) Gillette testified, “I never said that I had the accommodations officially; just that there’s a very quick and easy process that needs to happen,” and that Olson was helping them with the process (Tr. 1067, 1078.)

For at least a month after this, Whitmire observed Gillette taking shorter breaks, not wearing their apron at certain times, and wearing earbuds when performing repetitive tasks. Olson told Whitmire to give Gillette more opportunities to run the floor and to give them more frequent shorter breaks. Olson did not give Whitmire instructions about the earbuds, headset, or apron. (Tr. 413–414, 440–442.) SSV Alonso did not witness Gillette out of uniform when she was acting as the keyholder, but she observed Gillette out of dress code when she was not the keyholder. (Tr. 1131–1133.) Malley frequently reminded Gillette to wear their headset and apron, and to remove earbuds. (Tr. 1182–1185.) Olson told Gillette frequently that they needed to wear their apron and headset. (Tr. 1253–1254.)

At Gillette’s request, Olson submitted an accommodation request on behalf of Gillette on February 18. She informed Diller that she had told Gillette they needed to abide by Starbucks’ dress code policy while the request was pending. (USDC1, Exh. 49.) The request for accommodation stated:

Tyler has shared that they are autistic and has sensory issues and would like an accommodation for the below listed items: less time wearing a headset - alternative to wearing an apron – bothers their neck – makes them extremely uncomfortable – bar time only 1 hour at a time – becomes overwhelmed when on bar for too long – ear buds/noise canceling – becomes overwhelmed with the constant loud noises.

That same day, Gillette, Olson, and Diller, received an automated response informing them that partner relations had received the accommodation request, stating in part:

⁸⁴ Whitmire testified that after the meeting Gillette told him that the accommodations they had asked for, including being able to wear headphones while doing repetitive tasks, not wearing the apron at certain times, and more frequent shorter breaks. (Tr. 378.) Gillette thought there must have been a miscommunication or misunderstanding between him and Whitmire. (Tr. 1067.)

We are not able to grant requests on a provisional basis while you gather the documentation so if you feel it is safe for you to continue working without accommodations in place, that is okay. If not, please contact our leave of absence Administrator . . . to discuss your leave of absence options.

(USDC2 Exh. 105a.)

McKinlee Reed, partner relations consultant, works to facilitate accommodations in the workplace, among other duties. She reports to Stephen Fox, senior partner relations manager. On February 25, Reed sent the following email to Gillette, stating in relevant part:

Thank you for contacting Partner Relations (formerly known as the PRSC) regarding your request for a workplace accommodation.

All requests for a workplace accommodation must be supported by documentation from your medical provider.

The documentation must provide enough details for me to properly evaluate your request and must further indicate whether the restrictions are permanent or temporary. Temporary restrictions should have an anticipated end date to the extent possible.

. . .

Please submit supporting medical documentation directly to me through this encrypted link no later than March 11, 2022.

The email contained the same language about provisional accommodation as the February 18 automated response. (Id.; USDC1 Exh. 27.)

On March 9, Gillette came to work very stressed, overwhelmed, and overstimulated. Olson told Gillette to wear their apron and headset in a manner they perceived as rude and abrupt. Gillette rolled their eyes and went to the BOH. Gillette put on their headset and then put on their apron, but when it touched the back of their neck it was “like a trigger.” They said a “switch flipped” in their mind and they could not process anything. DM Diller told Gillette that if they did not feel comfortable wearing an apron or headset, they would need to go home and would need to follow the dress code until their accommodations were granted. Gillette had not submitted medical documentation in support of their request for accommodation and said they did not have a primary care physician to supply the documentation. Diller directed them to Lyra again. Gillette took a paid leave of absence rather than stay at work without the accommodations. (Tr. 1039–1041; USDC3 Gillette Dep. 72–73.)

Reed followed up regarding Gillette’s accommodation request on March 18, informing Gillette that she had tried to call them, but was unable to reach them or leave a voicemail. Reed explained the interactive dialogue Starbucks uses to explore accommodations, and informed Gillette that once they provided the necessary medical documentation, partner relations would review their accommodation request. That same day, Gillette responded that they did not have a medical provider and did not have the money to secure the requested medical documentation. They added that the fact a doctor’s note was required was “incredibly ableist” and “puts Starbucks’s ignorance into perspective.” On March 28, Reed emailed Gillette saying she would

like to discuss their accommodation request and asked them to call her or text her with a good time to talk. The email contained the same language about provisional accommodations as the February 18 automated response. (USDC 2, Exh. 105a.)

On May 3, Reed again reached out to Gillette, asking if they had listened to her voicemail, and inquiring whether they still were interested in pursuing accommodations. She informed Gillette about some measures Starbucks could take without needing a formal accommodation, such as rotating positions every 90–120 minutes, transferring to a store that is café only that would not require a headset, and working with their store manager to alter the apron to an “overall style” that would not hang around their neck. On May 9, Reed noted that she had a great conversation with Gillette, and they liked the “apron idea” and would work with the store manager, they did not want to transfer, and they were currently rotating positions. Reed informed SM Olson and DM Diller about the conversation and advised them to remind Gillette they could rotate every 90–120 minutes, during busier times they could work assignments that do not require a headset but if they worked closing shift they would need to wear a headset, and they could have their apron adjusted to “overall style.” Reed also noted that Gillette would be offered a transfer to a café only store. Gillette never provided the requested medical documentation, so Reed ultimately closed their case.⁸⁵ (USDC2 Exh. 105a.)

Following Gillette’s leave of absence, they were placed back on the schedule on April 18, and worked until resigning on September 2, 2022.

13. Gillette July 1 CAF documented coaching

Gillette received a documented coaching CAF on July 1, 2022.⁸⁶ The CAF, created on June 2, stated that on May 25, 2022, Gillette was out of dress code by wearing a graphic t-shirt and not wearing an apron, and cited to the dress code pages of the Partner Guide. (GC Exh. 18.) Gillette had not been disciplined before. (Tr. 1048.)

B. Analysis—Allegations Related to Laila Dalton

1. Dalton’s protected concerted activity, union activity; Respondent’s animus

I easily find the General Counsel established Dalton engaged in protected concerted activities which Starbucks knew about. She sent management several text messages, detailed above, about her concerns with staffing, made entries in the DRB regarding staffing, and she, along with coworkers, spoke up at the January 21, 2022 meeting about working conditions. The record is clear that Dalton’s concerns were shared among other employees, and her complaints were not solely on behalf of herself.

⁸⁵ Fox later told Reed she should not have approved Gillette’s request to alter the uniform. (Tr. 140–142.) Fox testified vaguely, “the apron adjustment potentially may need to be approved. That context is a little bit broad from an approval standpoint.” Fox stated that without medical documentation, the accommodation can’t necessarily be approved. (USDC3 Fox Dep. 30.) Reed was not disciplined for providing the wrong advice to Gillette and did not tell Gillette about her error. (Tr. 150–151.)

⁸⁶ The complaint was amended to include this discipline. (GC Exh. 19, Tr. 1244–1249.)

Regarding union activity, it is undisputed that Dalton engaged in activity supporting the Union and the Respondent knew it as of January 23, 2022.

Considering animus, I find the General Counsel has met her prima facie burden. I rely primarily on the timing of Dalton’s discipline, shortly on the heels of her protected communications, along with her known union activity, as well as a plethora of other evidence of animus discussed herein, including contemporaneous unfair labor practices.⁸⁷ There is no dispute the Respondent strongly and vociferously opposed unionization at its stores.⁸⁸

2. The January 25 written warning CAF

a. Discipline

Complaint paragraphs 7(b), (h), (i), 12, and 13 allege the Respondent violated Sections 8(a)(3) and (1) of the Act by issuing Dalton a written warning CAF on January 25 because of her protected concerted and union activities, and for violating the overly broad How We Communicate rule and directives prohibiting and threatening to discipline employees for protected concerted activities.⁸⁹ Paragraph 7(j) asserts that the How We Communicate rule was used to restrict its employees’ union and protected concerted activities.

The evidence shows that SM Olson called partner relations for a consultation regarding Dalton on January 18, and the discipline issued on January 25. By that time, Dalton had engaged in both protected concerted activity and union activity. Though the CAF had been discussed prior to the Respondent knowing about Dalton’s union activity, it was not finalized as a written warning, the second level of discipline, until after such knowledge.⁹⁰

The fact that some of the conduct Dalton was disciplined for was protected also shows animus and establishes a violation under *Burnup and Sims*. Specifically, the discipline relied on DRB entries about staffing shortages as well as texts about working conditions. These communications are protected by Section 7. The record shows that when Dalton made these communications, there was widespread concern about staffing shortages and scheduling problems, and Gillette helped Dalton write the January 6 text to Olson complaining about working conditions.

⁸⁷ I find that, on the facts of this case, events occurring after this discipline are probative of animus, though I find sufficient evidence of animus without considering them. See *Con-Way Freight*, 366 NLRB No. 183, fn. 10 (2018).

⁸⁸ To the extent there is any dispute, record evidence, including “flagging” stores with union activity, the messages to vote no on the one.starbucks.com website, emails communicating Dalton’s status as a union supporter, and SM Olson’s workplace live presentation, along with the unfair labor practices at the Scottsdale & Mayo store establish animus.

⁸⁹ Paragraph 7(b) contains more than a dozen subparts, which I do not find to be independent violations, but instead to be evidence alleged to support 7(b)(1), the written warning allegation. They are not, in my view, necessary components of the complaint paragraph.

⁹⁰ The Respondent’s contention in its brief that a no-call no-show is an automatic final written warning relies solely on the testimony of a store manager in another store in another district, who admittedly was not relying on any written policy. The evidence shows an employee in Diller’s district received a written warning, not a final written warning, for two no call/no shows. (R Eh. 17; Tr. 1283.)

The Respondent contends Dalton’s DRB entries were not protected because Dalton misused the DRB by making negative, inappropriate comments. There is no evidence Dalton’s entries were “misuse” by any objective standard.⁹¹ Indeed, the DRB contains sections for “staffing and scheduling” and “key happenings.” When asked what Olson meant by “negative entries,” she struggled to explain:

Where she’s listing out for Saturday, January 8th, two person floor all day long, 3:30 to 9:30, only three people, hard close. That’s not what this is used for. This is used for a store walk. She should have been answering specific questions.⁹² And based off of what she wrote in here, she wasn’t using her tools and resources that she was given and directed to use for her shift, and she was creating a huge problem for her shift.

(Tr. 82.) When asked whether the sad face and hearts Dalton wrote on the DRB were cause for discipline, Olson responded, “It was everything that she put in here that was not how Starbucks uses the Daily Records Book. It was incorrect.” (Tr. 83.)

The employees who testified consistently stated they were never told that entries such as Dalton’s were impermissible in the DRB, and the Respondent did not present evidence to contradict this. There is no record evidence that any employee, including Dalton, was counseled for making notes about staffing or other issues in the DRB. Regarding texts, Olson and Diller’s habit of texting to communicate about work related issues plainly shows that texting was not prohibited. At the very least, texting cannot be considered “serious misconduct” given how ubiquitous it was by both management and employees.⁹³ This effectively ends the matter under *Burnup and Sims*, as much of the conduct relied upon for Dalton’s discipline was protected under the Act, and if the Respondent believed otherwise, they were mistaken and did not hold an honest belief that Dalton engaged in serious misconduct. In any event, even under a *Wright Line* analysis, the evidence establishing a violation under *Burnup and Sims*, also proves at least some of the stated reasons for Dalton’s January 25 CAF were pretext for unlawful discrimination.⁹⁴ Finally, based on this evidence, the How We Communicate policy was enforced more strictly to restrict protected communications in the DRB and texts.⁹⁵ See *Treanor Moving & Storage Co.*, 311 NLRB 371, 375 (1993); *Southern Mail, Inc.*, 345 NLRB 644, 647 (2005); *Dynamics Corp. of America*, 286 NLRB 920, 921 (1987).

Based on the foregoing, I find the General Counsel has established these complaint allegations.⁹⁶

⁹¹ Dalton’s comments in the DRB and her texts did remotely approach losing the Act’s protection.

⁹² The DRB form does not contain questions to answer.

⁹³ Gillette, Olson, and Diller all communicated by text and there is no evidence any of them were disciplined for it. Diller testified she would have counseled Olson and Dalton if she knew they had communicated about work matters via text, but this is dubious since she also texted about work.

⁹⁴ Though the Respondent presented evidence that other employees at Scottsdale & Mayo received CAFs for attendance infractions (R Exh. 16), and that other employees in Diller’s district received CAFs for attendance infractions (R Exh. 17), there is no evidence that other employees were disciplined for DRB entries or for texting.

⁹⁵ The evidence does not establish the policy was utilized to restrict union activities as related to paragraph 7(b).

⁹⁶ The General Counsel also argues the discipline rested on application of an overly broad rule under

b. Related 8(a)(1) allegations

Paragraphs 6(c) and 12 allege the January 25 CAF, by characterizing Dalton’s communications about understaffing as inappropriate and negative and citing them as a reason for discipline, promulgated an overly broad rule or directive prohibiting employees from engaging in protected concerted activities, and threatened employees with discipline for engaging in protected concerted activities. Paragraph 6(b) alleges that the Respondent began enforcing a previously unenforced rule prohibiting employees from communicating with supervisors by text message because they engaged in union and protected concerted activities.⁹⁷

In assessing whether a remark constitutes a threat, the appropriate test is whether the remark “can reasonably be interpreted by the employee as a threat.” *Smithers Tire*, 308 NLRB 72 (1992). The actual intent of the speaker or the effect on the listener is immaterial. *Smithers Tire*, 308 NLRB 72 (1992); see also *Wyman-Gordon Co. v. NLRB*, 654 F.2d 134, 145 (1st Cir. 1981) (inquiry under Sec. 8(a)(1) is an objective one which examines whether the employer’s actions would tend to coerce a reasonable employee).

Because Dalton was actually disciplined for protected activities, I find such discipline would reasonably, and indeed almost certainly, be construed as a threat of future discipline for similar conduct. Moreover, the discipline established the directive not to complain about working conditions in texts or make any comments that could be construed as negative when documenting staffing or other work-related issues on a shift in the DRB. The General Counsel has established these complaint allegations.

3. Investigation into store visits on January 27 and 31, final written warning CAF for not wearing a face covering on January 31, and interrogation

Complaint paragraphs 7(c) and (f), 12, 13, and 14 allege the Respondent violated Section 8(a)(4), (3) and (1) when, on February 16, Diller and Olson investigated Dalton’s conduct on January 27 and 31, and, on April 4, disciplined her for not wearing a face covering on January 31. The complaint further alleges, at paragraph 6(d), (f), and (g) that Olson and Diller interrogated employees about their protected concerted or union activities on February 16, February 24, and February 25.

a. Investigation and discipline

The legal standards for the alleged discriminatory investigation and final written warning CAF are set forth above.

As detailed in the statement of facts, it is clear that after SSV Malley called SM Olson on February 1 to report that Dalton had come in on January 31 to organize, and this had made SSV

Continental Group and *Double Eagle*. I decline to analyze the CAF under this paradigm for the reasons discussed in Brittney Schmitt’s discharge below, and because I have found the CAF unlawful under alternative analyses.

⁹⁷ The date of this allegation is January 21, but I am analyzing it as of January 25.

Frisone uncomfortable, Dalton's conduct on January 31 and 27 was highly scrutinized.⁹⁸ This was immediately in the wake of charges, filed on January 26, 2022, alleging discrimination against Dalton. The evidence, detailed above, very clearly shows an unrelenting effort to find out the extent of Dalton's organizing activities, and a wide-ranging intent to uncover evidence to pin misconduct on Dalton. DM Diller immediately instructed SM Olson to ask Frisone whether Dalton was talking directly to partners, whether she let herself into the store, and whether she performed a Covid check-in. Diller asked Whitmire these same questions, and, knowing organizing activities had been reported for Dalton's January 31 visit, asked Whitmire what Dalton was doing at the store on January 27, even though Olson had been there. For the January 31 visit, Diller repeatedly asked Whitmire what Dalton was doing at the store, and he repeatedly responded he did not know because he was in and out of the back room performing work.⁹⁹ Diller also repeatedly and doggedly asked Dalton what she was doing in the store that day, as detailed in the statement of facts.

Apparently, not finding justifiable violations based on Dalton's acts of visiting the store off duty, using her key to enter, performing union activities, and not doing the Covid check-in (for which the supervisors and managers were also responsible) on both January 27 and January 31, the Respondent gave Dalton a final written warning for not wearing a face covering on January 31. Tellingly, no employee, including Dalton, was asked during Diller's inquiries whether Dalton wore a face covering during her visits. Furthermore, SSV Frisone wrote a statement to Diller on February 18 stating, among other things, she believed Dalton had a face mask on that day.¹⁰⁰ Moreover, SSV Alonso testified that she would probably not tell an employee to put their mask back on until they were going back to the floor. Finally, there is no evidence that any other employees were given anything more than a casual reminder to put their face coverings on or to wear them correctly.

The Respondent contends that the surveillance video shows that Dalton, Whitmire, and Gillette spent close to an hour conversing while Whitmire and Gillette were on working time, and therefore the Respondent's decision not to discipline all three employees shows a lack of animus. First, the evidence shows that viewing the surveillance video was prompted by a report of Dalton's organizing activity on January 31 and was part of an opportunistic attempt to pin some kind of misconduct on her.¹⁰¹ In any event, there is no requirement for the Respondent to discipline anyone else for Dalton's discipline to violate the Act.

Based on the foregoing, I find the General Counsel has established these complaint allegations.

⁹⁸ It is not clear what sparked the investigation of Dalton's January 27 conduct, particularly considering Olson was there and invited her to grab a cupcake. Nothing conveyed to management indicated that Dalton acted in a threatening or intimidating manner on January 31.

⁹⁹ Whitmire did not volunteer that Dalton picked up union pins and signed her affidavit.

¹⁰⁰ I was unable to discern from the surveillance videos when and whether each employee depicted was wearing a face covering at all times in the back of the house on January 31.

The Respondent's argument in its closing brief that Frisone reported Dalton violating a face mask policy is not supported, and is in fact contradicted, by the evidence. (R Br. 53.)

¹⁰¹ I was also unable to discern from the videos whether these Gillette or Whitmire remained for almost an hour performing no work during Dalton's visit.

b. Interrogation

The Board considers the totality of the circumstances in determining whether the questioning of an employee constitutes an unlawful interrogation. *Rossmore House*, 269 NLRB 1176, 1178 fn. 20 (1984), *affd. sub nom. HERE Local 11 v. NLRB*, 760 F.2d 1006 (9th Cir. 1985). This test involves a case-by-case analysis of various factors, including those set out in *Bourne v. NLRB*, 332 F.2d 47, 48 (2d Cir. 1964): (1) the background, i.e., whether the employer has a history of hostility toward or discrimination against union activity; (2) the nature of the information sought; (3) the identity of the interrogator, i.e., his or her placement in the Respondent’s hierarchy; (4) the place and method of the interrogation; and (5) the truthfulness of the interrogated employee’s reply. See, e.g., *Sproule Construction Co.*, 350 NLRB 774 fn. 2 (2007); *Grass Valley Grocery Outlet*, 338 NLRB 877, fn. 1 (2003), *affd. mem.* 121 Fed. Appx. 720 (9th Cir. 2005). The Board also considers the timing of the interrogation and whether the interrogated employees are open and active union supporters. See, e.g., *Gardner Engineering*, 313 NLRB 755 (1994), *enfd. as modified on other grounds* 115 F.3d 636 (9th Cir. 1997); *Blue Flash Express*, 109 NLRB 591 (1954). Another factor is whether adequate assurances against reprisal were provided. See *RHCG Safety Corp.*, 365 NLRB No. 88, slip op. at 2 (2017) These factors “are not to be mechanically applied,” they represent “some areas of inquiry” for consideration in evaluating an interrogation’s legality. *Rossmore House*, *supra*, fn. 20.

Turning to the allegations, DM Diller’s meeting with Dalton shows a clear attempt to inquire about her protected activities. As to Dalton’s January 27 visit when Olson was present and there is no record of an employee complaint, Diller broadly asked, “I just want to, again, hear from you and, like, understand what went on, right?” When Dalton told her nothing happened, Diller repeatedly pried her for information. When Diller asked Dalton how long she had been in the store, Dalton told Diller she had not been at the store for long. Diller immediately said, “So not a very long time, right? Is that what you’re sharing?” Later in the interview, Diller again asked, “When you came into the store that day, then what happened?” When Dalton responded that she didn’t remember, Diller continued to pry her for information.

Applying the *Rossmore House* factors, I find the Respondent interrogated Dalton, Whitmire, and Gillette. Turning to the first factor, the background was an active union campaign during which I have found numerous unfair labor practice violations, and all 3 employees were known union supporters. The information sought was broad reaching, including repeated inquiries into what Dalton was doing at the store amid reports she had been organizing. The identity of the interrogators included the district manager, a high-level official who, prior to the union campaign, was not frequently at the store. The manner of the interrogation involved Diller repeatedly asking about Dalton’s activities even after getting responses, just not the ones she wanted. Finally, the truthfulness of the responses was mixed, as Dalton eventually said she didn’t know what she was doing at the store in the face of repeated questioning about it, and Whitmire did not disclose that he helped Dalton sign her Board affidavit. Gillette mostly answered the questions. I find these factors, considered along with the totality of the circumstances, weigh in the General Counsel’s favor.¹⁰²

¹⁰² I also note, again, that Olson was present for the January 27 visit, and Diller viewed surveillance footage for both January 27 and 31, which would provide her the information she needed to know whether Dalton let herself in, did a Covid check-in, and how much time she spent at the store, making many of her areas of inquiry unnecessary.

Based on the foregoing, I find the General Counsel has established these complaint allegations.

5 4. March 11 documented coaching CAF

Complaint paragraphs 7(d), 12, 13, and 14 allege the Respondent violated Sections 8(a)(4), (3), and (1) by issuing Dalton a documented coaching CAF for wearing earbuds.

10 As stated above, on March 12, Diller and Olson presented Dalton with a CAF documented coaching that had been prepared on March 11 for wearing earbuds while working on March 2, 7, and 8, 2022. The CAF noted that Dalton was wearing the earbuds while on the floor. Dalton recalled Olson coached her on March 8 not to wear earbuds when dealing with customers.

15 While the evidence shows that employees, particularly Gillette, have worked with earbuds in management’s presence, the evidence also shows that employees were not permitted to wear earbuds on the floor when working in proximity to customers. The record shows that Dalton frequently wore earbuds, would take them out when told to, and put them back in when management left. I find the Respondent established the corrective action was taken for legitimate reasons, and the General Counsel has not shown these reasons were pretext.¹⁰³

20

I recommend dismissal of complaint paragraph 7(d).

25 5. Ethics and Compliance investigation

Complaint paragraphs 7(e), 12, 13, and 14 allege the Respondent violated Section 8(a)(4), (3), and (1) by conducting an Ethics and Compliance investigation from March 11 to March 25, 2022, into Dalton’s conduct.

30 As detailed above, Dalton was the subject of an ethics and compliance investigation DM Diller initiated based on SSV Malley’s complaint dated March 2, 2022. The Respondent contends that the investigation was initiated by a coworker, but Malley did not testify that he initiated an Ethics and Compliance complaint for the matters at issue herein. He specifically said he did not know who initiated a complaint about the age and Brandon comments, and he did not

35 know about the Ethics and Compliance investigation until he was contacted. The evidence shows it was Diller who initiated the complaint.¹⁰⁴

The Respondent contends that management had an obligation to report the incidents Malley conveyed. The Partner Guide states, in relevant part:

40 [M]anagers have a mandatory reporting obligation under these respectful workplace policies. If a manager receives a complaint about conduct that may involve harassment, discrimination or retaliation that violates policy, observes such conduct, or otherwise

¹⁰³ This discipline was not progressive and did not consider or factor in the previous CAF which I have found to be unlawful. It also was not based on the How We Communicate policy.

¹⁰⁴ Malley testified vaguely that he “eventually” initiated a “separate investigation” but did not specify its subject matter. He also said he “added” to the investigation. (Tr. 1217–1218, 1236.)

learns of such conduct, the manager must report that information to Ethics & Compliance.

(USDC2 Exh. 107.) There is no evidence Malley reported to Diller or any manager the comments about his age or the “Brandon” comments.¹⁰⁵ What he did report is that Dalton confronted him about a union posting being removed, and proceeded to talk loudly and tell everyone Malley was “corporate” and only speaks “corporate.” She then repeatedly and loudly told Malley she did not want to talk about unionization.¹⁰⁶

A threshold issue is whether Diller perceived Malley’s March 2 report as harassment, discrimination, or retaliation for his Section 7 right not to support a union. If so, she had a duty to report it. I find Diller had reason to pass along Malley’s complaint of Dalton’s treatment of him when he tried to talk to her about the union and explain his position. This doesn’t end the inquiry, however, because the record shows disparate treatment in reporting. It is an undisputed fact that during her February 16 meeting with Diller, Dalton raised discrimination based on race and her union support. Specifically, Dalton stated, “And I’m being discriminated because I’m black. That’s how I feel. Because I am African American. The only person in this store who has been written up because nine minutes late, and I’m never late? This is because I’m Black and African American.”¹⁰⁷ She related other incidents to her race, stating, for example, that other workers who came in off duty were not scrutinized like she was. She also stated she started getting write-ups as soon as she started organizing a union. Faced with Dalton’s concerns about being treated differently because of her race and union activity, Diller did not report it to Ethics and Compliance.

Finally, Dalton provided unrefuted testimony that she reported her complaints about discrimination based on race and union activity to Ethics and Compliance shortly after her May 11 conversation with Rabe, but did not hear back.¹⁰⁸ I find the General Counsel has established the investigation was discriminatory as alleged, based on her union and protected activity and her participation in the Board’s processes.¹⁰⁹

6. May 2 interrogation

Complaint paragraphs 6(k) and 12 allege the Respondent, by Megan Diller and Jared Leister, interrogated Dalton about her protected concerted activities or union activities during her termination meeting, in violation of Section 8(a)(1).

Considering the *Rossmore House* factors articulated above, along with the totality of the circumstances, I find that DM Diller’s questioning Dalton about whether anyone asked her to record in the BOH was an unlawful interrogation about Dalton’s union activities and conversations. As to the first factor, the background, the above analysis applies, and by this point Dalton had engaged in further activities. The animus toward her is apparent in SM Olson’s workplace live video, as well as

¹⁰⁵ Malley testified about these incidents but did not say he reported them. Neither Diller nor Olson testified Malley reported these comments.

¹⁰⁶ The report is at USDC1 Exh. 47.

¹⁰⁷ This comment, as well as Dalton’s other comments regarding discrimination, are at USDC2 Exh. 115.

¹⁰⁸ The evidence shows that Diller’s report was acted upon within a matter of days.

¹⁰⁹ In addition to the charges filed by this time, Dalton signed a Board affidavit in the store on January 31.

other evidence of animus previously cited. The nature of the information sought was aimed at determining her conversations with the Union. The identity of the interrogator was Diller, this time accompanied by another district manager Dalton had never met before. The method was a 2-on-1 meeting at the store. Dalton answered that nobody had instructed her to record in the BOH, the truthfulness of which is unknown. Accordingly, I find the General Counsel has established this complaint allegation.

7. Dalton’s termination

Complaint paragraphs 7(g), (j), 12, 13, and 14 allege that, on about April 4, 2022, the Respondent discharged Dalton because of her union and other protected activities and participation in the Board’s processes, in violation of Sections 8(a)(4), (3), and (1).

An employee who makes an audio or video recording in the workplace may be engaged in activity protected by Section 7 of the Act depending on the specific facts and circumstances. The Board has found tape recordings of employer meetings with employees to be admissible as evidence, even when the surreptitious recording violates state law. See, e.g., *East Belden Corp.*, 239 NLRB 776, 782 (1978), enfd. 634 F.2d 635 (9th Cir. 1980); *Cadillac of Naperville, Inc.*, 368 NLRB No. 3, slip op. at 1 fn. 1 (2019), enfd. on point 14 F.4th 703 (D.C. Cir. 2021), cert. denied 142 S. Ct. 2650 (2022). See also *Starbucks Coffee Co.*, 372 NLRB No. 50, slip op. at 6–7 (2023)(State jurisdiction must yield to the NLRA). Surreptitious recordings made to preserve evidence for use in a future proceeding may also be protected. See *AT&T Mobility, LLC*, 370 NLRB No. 121, slip op. at 4 (2021); *Whole Foods Market, Inc.*, 363 NLRB 800, 802 fn. 8 (2015) (and cases cited therein), enfd. 691 Fed. Appx. 49 (2d Cir. 2017).

I find that Dalton’s act of placing her phone on “record” at the manager’s desk and leaving it unattended was serious misconduct not protected by the Act. The evidence shows that management knew Dalton recorded meetings at which she was present and permitted this activity.¹¹⁰ Only when it was discovered that Dalton recorded conversations to which she was not a party did the Respondent take action.¹¹¹

The parties extensively argue their points as to whether Dalton’s conduct violated state or federal law. While this may be seen as pertinent to a reviewing authority, I find it unnecessary to resolve. The scenario here, of an employee recording unattended conversations at her manager’s desk certainly provides a legitimate reason for discharging that employee regardless of the intricacies of any criminal statute or code. This is true whether or not the managers had an overall reasonable expectation of privacy while working at the desk. There can be no question the managers were at liberty to hold confidential conversations at the manager’s desk, and did so. The surveillance videos show the manager would be able to see if someone was in the back area

¹¹⁰ Whether Dalton’s previous recordings were permitted because they were determined to be within the “federal labor law” exception to Starbucks’ recording policy or for other reasons is not known. The record reflects that Diller told Olson not to address Dalton’s recordings because “they were looking into the situation.” Colyar, a senior partner relations manager, testified she sought legal advice about recording matters.

¹¹¹ That Dalton’s recordings would permit her to hear only partial conversations of someone on the phone at the manager’s desk is of no moment. In addition to these partial conversations, Dalton also recorded conversations between individuals as the surveillance footage shows individuals talking to each other at the manager’s desk.

near the desk working or taking a break. While employees coming in and out of the area may be able to hear snippets, a manager could modulate their voice or alter the conversation to exercise some control over what employees could discern. This is lost, of course, if a recording device is secretly recording everything that is said to anyone.

That the recordings on March 23 and 26 would reasonably result in termination should not have come as a surprise to Dalton, who repeatedly (and untruthfully) said she was always with her phone when she was recording because to leave it unattended would be illegal. SSV Whitmire also learned, from talking with someone at the Union, that if he was part of the conversation, then he could record.¹¹² He testified, “A lot of us were recording, and one of the things we all had discussed was that it’s okay, it’s okay to record if you’ve got the recorder on you, but . . . don’t put the recorder on a coffee maker and disappear.” Whitmire said he would expect to be fired if he put his phone on record at the manager’s desk and left and went to the front of the house. (Tr. 459–460; USDC3 Whitmire Dep. 39.) SSV Alonso’s understanding was that recording a conversation without being present would result in an employee’s termination based on company policy and common sense. (Tr. 1151–1152.) Van Boeckel expressed, “[E]verybody knows the difference between recording when somebody is present and then recording when nobody is present. That’s not legal.” (Tr. 191.)

As I have found the Respondent had a legitimate reason to discharge Dalton, I must determine whether this reason was pretext to mask retaliation for Dalton’s union or other protected activities. The record is replete with animus toward unionization generally and Daltons’ activities particularly. This does not, however, mean that the Respondent is prohibited from taking disciplinary action it would have taken absent Dalton’s protected activities. The interference with operations of the store, cited in the discipline, is crystal clear. SM Olson testified she held confidential conversations at the manager’s desk, and it is also axiomatic that managers in any industry sometimes must discuss matters that are not for employees’ consumption, such as medical issues and accommodations. Permitting recording with no party consent such as took place here would seriously thwart the store manager’s ability to deal with sensitive issues arising in the store. SM Van Boeckel and Olson’s stated concerns that they were overheard while having private conversations are credible. I find the Respondent has met the burden to prove it would have discharged Dalton regardless of her protected activity.¹¹³

Based on the foregoing, I recommend dismissal of these complaint allegations.

C. Alleged Threat of Unspecified Reprisals

Complaint paragraphs 6(e) and 12 allege the Respondent violated Section 8(a)(1) when, on about February 24, 2022, SM Olson and DM Diller stated that employees damaged trust and had to work to repair the trust and the relationship because of their union activities, which threatened unspecified reprisals.

¹¹² Whitmire share this information with Dalton. (Tr. 459.)

¹¹³ The complaint does not allege Dalton’s termination rested on application of the overly broad recording rule. Based on the reasoning set forth in the analysis of Brittney Schmitt’s termination below, I find any such allegation would fail. In any event, because the Respondent demonstrated reliance upon the cited interference with operations, the fact that violation of the recording rule, which I have found to be overly broad, was the basis for the discipline does not create liability. See *Continental Group*, above

This allegation concerns SSV Whitmire’s February 24 conversation with Olson and Diller. I credit Whitmire’s largely uncontradicted testimony, detailed above, regarding this meeting.¹¹⁴ The Respondent cites to *Foamex*, 315 NLRB 858, 862 (1994) (citing *Oklahoma Installation Co.*, 309 NLRB 776 (1992)), to assert that a statement regarding “damaged trust” does not violate the Act. As the Board’s caselaw shows, however, the context of the statements are evaluated to determine whether such statements, in essence, equate union support with disloyalty. See *HarperCollins San Francisco v. NLRB*, 79 F.3d 1324, 1330 (2d Cir. 1996) (statements equating union support with disloyalty unlawful); *Ferguson-Williams, Inc.*, 322 NLRB 695, 699 (1996) (unlawful to tell employee that her comments in defense of the union had “greatly offended” employer’s chief officers); *In Re Sea Breeze Health Care Ctr., Inc.*, 331 NLRB 1131, 1132 (2000). In *Print Fulfillment Services LLC*, 361 NLRB 1243 (2014), the Board found the following statement from the production manager to an employee who had distributed flyers during an organizing campaign threatened unspecified reprisals under Section 8(a)(1): “I’ve been debating whether I’m not--whether I’m going to say anything about this, but you know me, I say what I feel. I’m disappointed.”

Considering the context here, Diller’s statement is mitigated somewhat by the fact that Whitmire initiated the meeting and revealed himself as the lead organizer. All told, however, her statement, in the midst of an organizing campaign, that Whitmire would need to work to rebuild trust with management because of his union activities would cause a reasonable employee to believe they needed to change their behavior and fall into line. I find the General Counsel has established this complaint allegation.

D. Surveillance/Increased Supervision Allegations

1. Legal standards

To determine whether an employer engages in unlawful surveillance, the Board considers whether the employer’s conduct, under the totality of the circumstances, would reasonably tend to interfere with, restrain, or coerce employees in the exercise of their Section 7 rights. *Starbucks Coffee Co.*, 372 NLRB No. 50, slip op. at 23 (2023), citing *Sage Dining Services, Inc.*, 312 NLRB 845, 846 (1993), and *Brown Transportation Corp.*, 294 NLRB 969, 971–972 (1989).

In the face of organizing activities, employers may violate the Act if they, “do something ‘out of the ordinary’ to give employees the impression that it is engaging in surveillance of their protected activities.” *Loudon Steel, Inc.*, 340 NLRB 307, 313 (2003); See also *Partylite Worldwide, Inc.*, 344 NLRB 1342 (2005); *Arrow Automotive Industries*, 258 NLRB 860 (1981), enfd. 679 F.2d 875 (4th Cir. 1982); *Sprain Brook Manor Nursing Home*, 351 NLRB 1190 (2007). The Board’s analysis thus focuses on whether the observations were ordinary or represented unusual behavior. *Aladdin Gaming, LLC*, 345 NLRB 585 (2005), rev. denied 515 F.3d 942 (9th Cir. 2008). Even unusual observation or enhanced surveillance will not violate the Act, however, where the employer shows it was instituted for legitimate reasons, such as

¹¹⁴ As noted above, there is a quibble over whether Diller said the exact word “damage” but this is not a significant issue since Whitmire consistently testified she told him he would need to work to rebuild trust. This implies some sort of deterioration of the relationship. The Respondent also argues Whitmire’s credibility is damaged because he recorded the meeting but did not produce a recording. Whitmire brought the recording to his deposition, but it was inaudible. (Tr. 457-459; USDC3 Whitmire Dep. 15.)

security. *Lechmere, Inc.*, 295 NLRB 92 (1989); *enfd.* 914 F.2d 313 (1st Cir. 1990), *revd.* on other grounds 502 U.S. 527 (1992).

2. Diller

Complaint paragraph 6(a) and 12 allege that on about January 21, 2022, District Manager Diller surveilled employees because of their union and protected concerted activity and created the impression of surveillance in violation of Section 8(a)(1).

Because the record establishes DM Diller knew of organizing activity as of January 23, this allegation will be analyzed as of that date. The evidence shows that Diller was at the Scottsdale & Mayo store more frequently after union organizing began. Malley, Dalton, Whitmire, and Gillette all provided testimony to this effect. Diller’s attendance at the January 25, 2022 shift supervisor meeting was unusual, as was her working on the floor for a couple hours on January 27.¹¹⁵ This is the same day Olson reported to Diller that Dalton visited the store off duty. I find the General Counsel has established that Diller’s increased presence at the store in the wake of the organizing campaign created the impression of surveillance in violation of Section 8(a)(1).

3. Van Boeckel

Complaint paragraphs 6(j), and 12 allege the Respondent violated Section 8(a)(1) by, since March 14, 2022, creating the impression of surveillance or more closely supervising or monitoring employees by stationing support managers at the store and scheduling store managers to be at the store during all operational hours.¹¹⁶

This allegation concerns SM Van Boeckel’s presence at the store as a second fulltime store manager from March 14 until April 25. The evidence shows that there was rarely a store manager present for most of the closing shift, when Dalton and Whitmire worked, until Van Boeckel was assigned as fulltime supplemental store manager at Scottsdale & Mayo.¹¹⁷

The Respondent cites to *Wal-Mart, Inc.*, 339 NLRB 1187, 1188 (2003), to support its position that the conduct at issue was not surveillance. The context here is meaningfully distinguishable from *Wal-Mart* on a couple of fronts. First, in *Wal-Mart*, the managers’ stepped-up presence was part of an established program of coaching while walking around. Here, there is no evidence that Starbucks had an established program of assigning two fulltime managers to a store. Second, the purpose of the stepped-up presence in *Wal-Mart* was to run a counter campaign, also an established practice at Wal-Mart. Here, Van Boeckel testified she wasn’t even aware of organizing activity at Scottsdale & Mayo when she started, and she was there only to provide staffing support.

The Respondent also contends that Van Boeckel was sent to the store to assist Olson because she was a new manager and a witness in pending federal court litigation. (R Br. 106.)

¹¹⁵ The testimony about these two occurrences is unrefuted.

¹¹⁶ The evidence fails to show there was store manager coverage for every minute of every day the store was open. I consider this allegation as one of increased presence.

¹¹⁷ The Respondent concedes this point. (R Br. 54–55.)

This contention does not find adequate support in the record.¹¹⁸ Finally, the timing of Van Boeckel’s fulltime assignment, from 6 days after the stipulated election agreement was approved, until shortly after the election, strongly supports this allegation. I therefore find the General Counsel has met her burden of proof.

4. Other store managers

Complaint paragraphs 6(l), (12), and (13) allege the Respondent violated Section 8(a)(3) and (1)¹¹⁹ when from about mid-March to mid-April 2022, the Respondent more closely supervised, monitored, or created the impression of surveillance by increasing the presence of managers from other stores.

The evidence about this allegation comes from Whitmire, who testified that other store managers came to the store more frequently and met with SM Olson, and on one occasion shortly before the election four managers met with Olson for 30–40 minutes. He also noticed that when Olson would leave the store, other store managers more frequently came by to deliver products. Whitmire’s testimony is unrefuted. Regarding the delivery of products, I find this fails under *Wal-Mart*, as there was an established practice of store managers delivering products. However, no practice of other store managers coming and working alongside Olson, or of multiple store managers meeting for an extended time outside the facility, was established. I find, therefore, the General Counsel has proved this complaint allegation.

E. Tyler Gillette Allegations

1. Grant of benefits

Complaint paragraphs 8(c), 12, and 13 allege the Respondent violated Sections 8(a)(3) and (1) when, on or around January 27, 2022, Gillette was granted requested accommodations and advancement opportunities.

Unlike most 8(a)(1) allegations, analysis of a claim that benefits were promised, announced, or granted to coerce employees in their choice of bargaining representative is motive-based. *Network Dynamics Cabling, Inc.*, 351 NLRB 1423, 1424 (2007). The granting of benefits to employees during union organizational activity “is not per se unlawful” where the employer can show that its actions were governed by other factors. *American Sunroof Corp.*, 248 NLRB 748, 748 (1980), modified on other grounds 667 F.2d 20 (6th Cir. 1981).

To establish such a claim, the General Counsel must first prove, by a preponderance of the evidence, “that employees would reasonably view the grant of benefits as an attempt to

¹¹⁸ The only evidence the Respondent points to is from SSV Alonso, who testified it was her understanding that Olson was not at the store on undetermined dates for an undetermined time because she was dealing with the court case with the union supporters. (Tr. 1114–1115.) Neither Diller nor Olson stated this was the reason for Van Boeckel’s fulltime assignment for over a month, and Alonso testified that during Van Boeckel’s assignment, Olson continued to report to the store and work as a store manager. Olson’s declaration was signed on May 16, and her deposition was on May 23, 2022. (USDC2 Exh. 101; USDC3 Olson Dep.) Olson’s testimony at the 10(j) proceeding was on June 8.

¹¹⁹ This allegation is analyzed only under Section 8(a)(1).

interfere with or coerce them in their choice on union representation.” *Southgate Village Inc.*, 319 NLRB 916 (1995). If the General Counsel meets this burden, the employer must demonstrate a legitimate business reason for the timing of the benefit. One way to do this is to show the benefit was “part of an already established Company policy and the employer did not deviate from the policy upon the advent of the union.” *American Sunroof, supra*; see also *Real Foods Co.*, 350 NLRB 309, 310 (2007); *Holly Farms Corp.*, 311 NLRB 273, 274 (1993), *enfd.* 48 F.3d 1360 (4th Cir. 1995), *affd.* 517 U.S. 392 (1996); *Jewish Home for the Elderly of Fairfield County*, 343 NLRB 1069, 1087–1090 (2004).

Regarding granting Gillette’s request to be a barista trainer, the Respondent has demonstrated a legitimate reason for the timing. The previous store manager Allen had provided suggestions and critical feedback to Gillette and instructed them what they needed to work on, and Gillette had done that work. Gillette’s first PDC meeting with his new store manager, Olson, was on January 27, and that was when the plan to promote Gillette to barista trainer was put into place. Though Gillette testified that Olson had previously been vague when they had asked to be a barista trainer, their own testimony about this was likewise vague, devoid of dates or any specific responses from Olson. As the PDC meeting was a logical and reasonable place for Olson and DM Diller to discuss Gillette’s career goals with them, I find the General Counsel has not established that Gillette’s promotion to barista trainer violated the Act.

Concerning accommodations, Gillette admittedly knew no accommodations had been officially granted. That said, the evidence shows that after the meeting, Gillette was permitted to take more frequent shorter breaks, and SSV Whitmire was instructed to allow this. With regard to not wearing the apron or headset, and wearing earbuds, these accommodations were not granted, but Gillette was told they could alter their uniform. As this was the first time Gillette had requested accommodations, as well as his first PDC meeting with Olson, I find the Respondent has provided a legitimate reason for the timing of permitting Gillette more frequent breaks and alteration of their uniform.¹²⁰

2. Allegations related to the reasonable accommodation process

Complaint paragraphs 8(d)-(f), 12, 13, and 14 allege the Respondent violated Section 8(a)(4), (3), and (1), by requiring Gillette to submit medical documentation regarding previously granted accommodations on February 25, 2022, rescinding previously granted accommodations On March 9, and placing Gillette on an indefinite and unpaid leave of absence on March 10.

As noted above, the only accommodations previously granted were shorter and more frequent breaks, and permission to alter the apron. With regard to the apron allegation, the evidence does not show Gillette ever tried to alter their apron or was told they could not. Regarding breaks, the evidence, particularly SSV Whitmire’s instructions from SM Olson to permit this, also shows this accommodation was granted and the evidence fails to show it was taken away. The weight of the evidence shows that, while Gillette sometimes got away with wearing earbuds and not wearing an apron or headset, SSVs and Olson had, in the past,

¹²⁰ Though Fox testified the apron alteration accommodation should not have been granted, this was never conveyed to Gillette, and an altered apron was never cited as discipline or even part of a coaching conversation.

instructed Gillette to put on their apron and headset and remove earbuds. As these accommodations were not granted, they could not have been taken away.

The evidence shows Gillette was instructed on the process to request reasonable accommodation for their disabilities. After they failed to make a request, Olson took the initiative by submitting the initial request on February 18, stating that Gillette requested less time wearing a headset, an alternative to wearing an apron, an hour at a time on the bar, and earbuds or something to block out loud noises. Reed from partner relations responded promptly on February 25, asking for medical documentation, and notifying Gillette that accommodations were not granted while the request was pending. Again, because the accommodations of wearing a noise canceling device and not wearing an apron or headset were not granted, the request for medical documentation was not to support previously granted accommodations.¹²¹

Finally, on March 10, Gillette was given the option of complying with the Respondent's requirements to wear an apron and headset and to not wear earbuds, or to take a leave of absence pending their accommodation request. Gillette never submitted documentation in connection with their accommodation request, and Reed closed the case. The evidence shows Olson and Reed were patient and helpful with Gillette, providing them with guidance and numerous opportunities to comply with the Respondent's lawful reasonable accommodation process.

Based on the foregoing, I recommend dismissal of these complaint allegations.

3. Gillette's July 1 documented coaching CAF

Complaint paragraphs 8(g), 12, 13, and 14 allege the Respondent violated Section 8(a)(4), (3), and (1) by issuing Gillette a documented coaching CAF on July 1, 2022. The CAF, created on June 2, stated that on May 25, 2022, Gillette was out of dress code by wearing a graphic t-shirt and not wearing an apron, and cited to the dress code pages of the Partner Guide. (GC Exh. 18.) Gillette had not been disciplined before. (Tr. 1048.) SM Olson had previously counseled Gillette for violating the dress code when they wore cutoff shorts to work. Gillette admitted being out of dress code, but explained they had slept away from home the previous night and would have been late had they gone home to get pants. Olson advised Gillette that, especially now that they were a barista trainer, they needed to set a good example of following the dress code.¹²² (R Exh. 14; Tr. 1076–1077.) Given Olson's repeated instructions to Gillette and her previous coaching meeting with them about being out of dress code, I find the Respondent has offered a legitimate justification for the CAF.

I find the timing, however, is indicative of unlawful motivation. Though the infractions occurred on May 25, the CAF was not presented to Gillette until July 1, shortly after Gillette testified at the 10(j) hearing in connection with this matter. The Respondent offered no reason for this delay of over one month for a simple written warning CAF for Gillette being out of dress

¹²¹ An employer generally is permitted, under the Americans with Disabilities Act, to request medical documentation. See 29 CFR 1630.9 appendix.

¹²² I note that both Olson and Gillette spoke politely and professionally to each other during this entire meeting.

code during a single shift. Accordingly, I find the General Counsel has established the Respondent violated the Act as alleged.¹²³

V. The Subpoena Allegations

Complaint paragraphs 6(n), 12, and 14 allege that, on about May 11, 2022, the Respondent, by its outside counsel, through the issuance of subpoenas to Laila Dalton, Bill Whitmire, Tyler Gillette and Alyssa Sanchez, interrogated employees about their protected activities and/or union activities in violation of Section 8(a)(4) and (1). Complaint paragraphs 6(q), 12, and 14 allege that, on about June 6, 2022, the Respondent, by its outside counsel, through discovery dispute procedures over subpoenas issued to Dalton, Whitmire, Gillette, and Sanchez, threatened employees with court interventions if they failed to produce their oral and written communications with the Union.

A. Facts

The subpoenas at issue requested, among other information:

All documents that you have sent to, or received from, any representative of the Union since January 1, 2022, relating in any way to the claims involved in this case.

All documents reflecting, or relating in any way to, any conversations you have had with any representative of the Union since January 1, 2022, relating to the claims involved in this case.¹²⁴

(GC Exh. 58.) The Union and the employees' private counsel both voiced objections to these requests and counsel filed objections with the district court arguing the requests sought discovery of employees' discussions with union representatives or discussions among themselves about organizing, interfering with their protected rights. Counsel for the employees refused to provide the information. (GC Exhs. 59–60.) On May 27, the Respondent sent letters to each employee (through counsel), disagreeing with the objections, and stating, "Given the NLRB's request for expedited relief, we must immediately seek court intervention if you are unwilling to cooperate." On June 6, Starbucks filed a summary of the discovery dispute and asked for the court's intervention. The district court declined to act on the discovery dispute due to lack of time.

B. Analysis

There is no dispute that the subpoenas were served pursuant to a discovery plan authorized by the federal district court in the 10(j) proceeding. The district court's procedures, not the Board's, governed this discovery process. The issue before me is not one of process or procedure, however, but instead concerns whether these particular document requests made pursuant to the 10(j) proceeding constitute unfair labor practices under the Act. Jurisdiction over

¹²³ Because I have found the timing shows an 8(a)(4) violation, I decline to comprehensively analyze this allegation separately under Section 8(a)(3). Given the extent of the animus evidence, recounted herein, as well as Gillette's documented and protected concerted activities, however, I also find an 8(a)(3) violation and an independent 8(a)(1) violation.

¹²⁴ Other matters in dispute were resolved by the parties.

that question rests solely with the Board. *Myers v. Bethlehem Shipbuilding Corp.*, 303 U.S. 41, 48 (1938); *NLRB v. C&C Plywood Corp.*, 385 U.S. 421, 428 (1967).

As to the Section 8(a)(1) allegations, I find the factual situation is analogous to similar subpoena requests decided by Administrative Law Judge Charles Muhl in *Starbucks Corp.*, Case 03–CA–304675, 2023 WL 3478197 (2023).¹²⁵ For the reasons stated in his decision, I find the framework in *Guess?, Inc.*, 339 NLRB 432 (2003), applies. As Judge Muhl noted, “At this moment, *Guess?* applies to ‘a separate proceeding’ and the 10(j) proceeding is separate from this one.” *Id.* This language is plain and without qualification, and it is for the Board to clarify if the current factual situation falls outside the *Guess?* framework.¹²⁶

Guess? involves a three-part analysis. First, the request must be relevant. Second, if the request is relevant, it must not have an illegal objective. Third, if the request is relevant and does not have an illegal objective, the employer’s interest in obtaining the information must outweigh the employees’ confidentiality interests under Section 7 of the Act.

As to relevance, some of the information requested would potentially be relevant to the Respondent’s defenses to the General Counsel’s case, including the employees’ engagement in union activities and the dates of those activities, as the General Counsel concedes.¹²⁷ By contrast, however, some of the requested information was not relevant. Notably, during the 10(j) proceeding, the presiding judge found it to be irrelevant whether the Union knew Dalton was recording at work. (USDC Tr. 89–90.) The General Counsel concedes there is no evidence of an illegal objective.¹²⁸

In any event, the requests are extremely broad, and quite obviously encompass privileged information about employees’ confidential communications with the Union and with each other about protected activity. See *Wright Electric, Inc.*, 327 NLRB 1194, 1195 (1999), *enfd.* 200 F.3d 1162 (8th Cir. 2000); *Veritas Health Servs., Inc. v. NLRB*, 671 F.3d 1267, 1274 (D.C. Cir. 2012). I find these confidentiality concerns outweigh the Respondent’s interests in obtaining the information. As such, I find the requests violate Section 8(a)(1) as alleged. As the allegation to seek intervention if the information was not forthcoming, this was all part of the same procedure, which admittedly was expedited at the Board’s request. I do not find an independent violation

¹²⁵ In Judge Muhl’s case, unlike here, the district court had rejected the argument that communications from employees to the NLRB or to the Union were privileged. The other primary difference is the requests at issue here are broader.

¹²⁶ I do have concerns over potential that an attorney’s discovery requests in a federal court proceeding can violate 8(a)(1) given the various factual scenarios that can be encompassed. It allows the Board to find violations based on the very same discovery request a district court judge who has denied a privilege-based motion to quash has ruled permissible.

In a huge number of cases that come before the Board, the parties file petitions to revoke asserting subpoena requests are overly broad and seek privileged information. Is every subpoena request that arguably seeks union communications a violation of Section 8(a)(1)? As Chairman Battista observed in his dissent in *Guess?*, “[It] is one thing for the Board to quash a subpoena, it is quite another thing for the Board to condemn as unlawful the seeking of the subpoena.”

¹²⁷ GC Br. 116.

¹²⁸ The Union asserts the Respondent had an illegal objective by seeking information that was likely submitted to the Board during its investigation. Given that this was a separate subpoena request that the parties came to agreement upon, this argument is unconvincing.

based on the Respondent’s stated intent to use the district court’s enforcement mechanisms promptly, especially given that the enforcement request that ensued was too late for the judge to consider. A stated intent to utilize a district court’s procedures is not an unlawful threat.

Accordingly, I find the General Counsel has established the substantive subpoena requests violated Section 8(a)(1), but the Respondent’s notification to the employees of its intent to use the court’s procedures to enforce them did not.

I recommend dismissal of the Section 8(a)(4) allegations. The attorneys’ determination of whether to issue subpoenas and what to request in subpoenas involves legal strategy and a deliberative process. Proving intentional discrimination on counsel’s part would seem necessarily to intrude upon privileged matters. Moreover, the General Counsel’s argument to support this allegation illustrates why the 8(a)(4) analysis is a misfit. Not surprisingly, the General Counsel argues timing, as timing is certainly relevant in most intentional discrimination cases. Specifically, the General Counsel asserts, “Given that the subpoenas were issued contemporaneously with the employees’ Board activities and cooperation with the Region in litigation against Respondent, there is a strong timing inference of unlawful motive in its requests.” But in 10(j) proceedings this will virtually always be the case. It is the nature of the beast.

VI. The Indian School & 107th Store

A. Facts

1. Background and early organizing

Lakeisha (Keisha) Johnson was the store manager at Starbucks’ Indian School & 107th store from January–August 2022.¹²⁹ The district manager was Trixie Leuck until about April, when Alyssa Wilson became the district manager. Shift supervisors included Daija Jones and Adriana Ramirez. Millyana Romero was promoted to shift supervisor on April 11, 2022.

During the relevant time period, the store’s café was closed and customers were served at the drive-through. A robbery occurred at the store in January 2022. In February, there was a shooting in the parking lot next to the store, after which the store was closed for 2 weeks. After the shooting, SM Johnson and DM Leuck conducted a meeting to discuss safety and security. The employees requested bulletproof glass.¹³⁰ (Tr. 906, 911–913, 949.)

Barista Naomi Martinez learned about the Union in September 2021 and reached out to them to ask about the organizing process. (Tr. 943–944.) The organizing committee consisted of Martinez, Shae Harvey, Leslie Gonzalez, Adriana Ramirez, Savannah Vega, and Aaron Coffey. They collected cards in February. On February 28, employees sent a letter to Kevin Johnson, then CEO of Starbucks, stating their intent to form a union and setting forth their workplace concerns. The concerns raised included previous harassment, a policy on mark outs, and

¹²⁹ As of the time of the hearing, Johnson had been discharged.

¹³⁰ Based on conversations with Leuck, Wilson understood the glass had been ordered before the petition was filed but it was on back order. (Tr. 1407.) The record does not reflect, however, that the glass was ordered right after the meeting, as Respondent asserts in closing brief. (R Br. 40.)

Starbucks’ failure to make changes, including installing bulletproof glass, following the in-store robbery and shootout in the parking lot. The letter’s signatories were Martinez, Vega, Coffey, Ramirez, and anonymous partners. The letter was posted on the Union’s Twitter page on March 1. (GC Exhs. 11, 12.) SM Johnson saw the Dear Kevin letter on Twitter when a family member notified her about it. (Tr. 888–889.) The Union filed a petition for representation on March 1. Martinez distributed union pins to everyone at the store. Barista Millyana Romero regularly wore her union pin at work. (Tr. 964.)

After the petition, Johnson received information about the one.starbucks.com website and participated in a call with corporate along with other petitioned-for stores. Johnson also had conversations about the Union with DMs Leuck and Wilson. (Tr. 871–873, 878–881.) She received a document about a unionized store in Canada called the Douglas Street store, and instructions on voting. (Tr. 894–895.) The first page provided information about the collective-bargaining agreement at the Douglas Street store. Regarding wages, the document stated the employees received a one-time wage increase that “just barely covered union dues and fees Although Starbucks recently announced an historic wage increase, the increase will not apply to unionized partners whose wages are governed by the Douglas Street collective bargaining agreement.” It further described unpaid union and bereavement leave, and paid leave for domestic violence. With regard to picking up shifts, it stated:

Can partners at the Douglas Street store pick up shifts at other stores? Can borrowed partners work at Douglas Street to support call-outs?

No. Partners are not able to swap or pick up shifts with any other store and vice versa. The collective bargaining agreement states that “members of the bargaining unit will work exclusively at the Douglas Street location. Work customarily performed by the employees in the bargaining unit shall not be done by persons excluded from the scope and jurisdiction of this Agreement.”

The second page of the document gave step-by-step instructions on how to vote, and concluded with, “Even if you signed a card or wore a pin, you can still vote NO.” (GC Exh. 13.) Johnson retained the first page and showed it to partners who had questions about collective bargaining. She posted the second page on the store’s refrigerator in the BOH (Tr. 896.)

2. Store Manager Johnson’s meetings with employees

At DM Wilson’s instruction, Johnson met with employees either one on one or in groups of two in the store’s café to discuss unionizing during the first week of March. The purpose of the meetings was to ensure the partners were informed that the store petitioned and to understand that they would vote yes or no. Johnson testified the only “talking points” she used was the one.Starbucks.com website. (Tr. 905–908.) She also, however, relied on a letter Starbucks sent to unionizing stores. (Tr. 915.)

On March 3, Martinez asked to speak with Johnson, and they talked in the café. Martinez told Johnson the union organizing effort was not personal.¹³¹ Johnson asked Martinez about the harassment in the Dear Kevin letter and said she was sorry that had happened with another

¹³¹ Martinez said she wanted to make sure Johnson’s feelings weren’t hurt as she was a new manager.

manager, but it did not involve her. They discussed the food and drink mark out policy for employees, which permitted free drinks while working and seven food items per week. Martinez said the policy had become limited because employees could no longer pick up a drink on their day off, and said the policy had been better during Covid. Johnson suggested a workaround of ordering a large drink with no ice and taking some home for the next day. Martinez and Johnson discussed the robbery and shooting, and Johnson said she was trying to get the bulletproof glass the employees had requested but Covid had caused supply chain issues.¹³² After discussing the letter, Johnson told Martinez she was disappointed and hurt they did not talk to her before they filed because she heard they discussed it with their previous manager, which made it hard not to take things personally. Martinez said she was sorry they could not talk to her about it but they wanted to feel safe because they did not have protections for their jobs. Johnson said she had done her own research on Twitter about the union movement and saw that sores in Buffalo were asking for \$30 as their base wage. Johnson said employees could ask for that, but in return they would lose ASU or some other benefit.¹³³ (Tr. 946–951.)

Later that day, Johnson met with SSV Ramirez, who recorded the meeting.¹³⁴ Johnson mentioned she received the Dear Kevin letter and that she knew Ramirez was part of the petition, and said she wanted some insight on that. She asked, “What compelled you to want to do it?” Johnson immediately added that she was not a union buster, and she was a middle person. Ramirez responded that it was a good chance to be part of something bigger than herself. Johnson noted the Dear Kevin letter referenced some Covid things from before she was there and asked if anyone had ever talked to them about the harassment. Ramirez said it was something that happened way before Johnson started as store manager. Johnson next mentioned the mark outs and Ramirez described the problem. Johnson asked Ramirez about the shooting and robberies and said she took offense, was frustrated, and her feelings were hurt personally because she did not pressure anyone to come back to work. Johnson then asked Ramirez if she felt pressured to return to work, and Ramirez responded, “[T]here was no pressure to come back, but at the same time it’s like, ‘Don’t come to – be ready when you’re ready to come back but don’t take too long.’” Johnson raised the issue of bulletproof glass and said it was something they were doing but it wasn’t happening as fast as they would like. Ramirez expressed that it should have happened sooner before they got to the point where there was a shooter, noting she had raised these concerns with management.

Johnson told Ramirez that she would still be the store manager and Leuck would still be the district manager if the store unionized.¹³⁵ Johnson said it did not change the way she and Leuck felt about employees, but it was hard not to take it personally because she had been trying so many things to make sure she put her employees first before herself. Johnson said unionizing would not change her as a leader, but it would change the way she had to lead them, and they would not be able to have conversations “like this” anymore. Johnson said she would not be able

¹³² Martinez and Ramirez did not know whether Starbucks had ordered the bulletproof glass at this point. (Tr. 975, 998.)

¹³³ Martinez received a text on March 3 from coworker Miller reporting that Johnson had told him that people with more seniority would get a SSV position if the store unionized. (GC Exh. 17.)

¹³⁴ In the transcript of the meeting at GC Exh. 15, Johnson is Female Speaker 1 and Ramirez is Female Speaker 3. (Tr. 992.) Ramirez sent the recording to Martinez. (Tr. 994.)

¹³⁵ At the time of the hearing, Johnson was no longer the store manager and Leuck was no longer the district manager. (Tr. 915.)

to change their availability. Johnson also mentioned the store in Buffalo and said that they hadn't gotten together on some things. She said that if you want \$30 an hour, now you have no ASU. She added, "In that -- not saying that's going to happen, but those are things that I've seen that has happened." Johnson said that Leuck had signed them up for the Lyft program and they were
 5 waiting for confirmation and more information. She added there were no hard feelings, but the union drive took her by surprise because she felt like they talked about everything, but this was not talked about. She said it felt like people were whispering, and "for me, if I believe in something and I'm truly believing in something, I'm not going to whisper about it." She added, "So, that -- so, this -- it doesn't make me feel good, and I'm -- if people are whispering and
 10 talking about it, just be -- if you're going to talk about it, then just -- let's all talk about it." Johnson said she learned employees had talked to the previous store manager and said, "We can just talk about it, I don't want anyone just -- it like being a secret." (Tr. 915-927, 995; GC Exhs. 14, 15.)

15 Prior to listening to Ramirez' recording at the hearing, Johnson testified that she did not tell employees she saw names on the letter. Johnson initially testified that it was Ramirez, not her, who brought up the mark outs. She also initially said she did not ask why they wrote the letter or wanted to unionize, or that she felt like employees were whispering. She did not recall saying that she did not want employees to keep union organizing a secret. She further testified
 20 she did not bring up stores in Buffalo or tell employees that if they wanted \$30 per hour they might not have ASU or other benefits. (Tr. 910-919, 925.)

Johnson also met with Romero on March 3. Johnson asked some icebreaker questions and talked to Romero about wanting to become a shift supervisor. Johnson asked if Romero had
 25 read the Dear Kevin letter and Romero testified that she had not even though she had. Johnson asked if Romero agreed with the letter even though Romero had just told her she hadn't read it. Johnson said the letter had mentioned the robbery and shooting and asked if she had done a good job making them feel safe going back to work. Johnson then told her that unions work on a points system and if you get a certain number of points you can be fired, and that the union based
 30 promotions on seniority. Johnson brought up a barista named Cass and said that even though Cass had not been working toward being a shift supervisor, she could be promoted before Romero because unions work based on seniority. Romero was scared after this conversation because she really wanted to be a shift supervisor. She texted Martinez afterward and said Johnson had tried to convince her to vote no by talking about how people who had worked there
 35 longer would become shift supervisor before she would. (Tr. 1436-1439; GC Exh. 17.)

Johnson held meetings with other employees in the lobby over the next couple of weeks. (Tr. 953.) She told employees she could not have store meetings unless the employees' representative was present, stating that this was based on information provided to her in a letter
 40 Starbucks sent to unionizing stores. She told employees that promotions would be based on seniority if employees unionized, based on information Starbucks sent her on how the union works. (Tr. 915-916.)

On March 6, Martinez hosted a meeting with about 10 employees at her house to discuss
 45 the union drive and to debunk some of what management had said. Romero helped Martinez set up the meeting. They discussed their conversations with Johnson about the Union and determined the meetings were all similar.

On March 8, a coworker informed Martinez that Johnson had called her a “union plant” and said Martinez was only thinking of herself. (Tr. 954; GC Exh. 16.) When asked if she told employees that Martinez was a plant, Johnson said, “No. She told me . . . [t]hat she was a union organizer.” When asked if she told employees that Martinez was a union organizer, she
 5 responded, “They knew she was a union organizer. So if I did, then I did, but I don’t recall saying that.” When asked if she told employees that Naomi was not thinking about the team but about herself, she said she did not recall, but she could have. (Tr. 928.)

On March 8, Savannah Dorton, a barista, texted Martinez a message about her meeting
 10 with Johnson about the Union. Dorton reported that Johnson said she was angry and offended and did not want to be their leader anymore, and if they wanted to talk to her, she would not be there for them. Johnson made a similar comment about the drink mark out as the one she made to Martinez. (GC Exh. 16.)

15 3. Millyana Romero background facts

On March 23, Store Managers Lacey Mendoza and Stacy Cody led a virtual training camp for baristas in the district on Zoom from 4–6 p.m. Romero was not at work that day, but she attended the training. Her internet connection went out about 40 minutes into the meeting,
 20 and she was unable to reconnect. At 4:42 she texted her coworker Tommy Runion, told him her internet had just gone out, and asked him if he would take notes. She tried to get back on the call but was unsuccessful. (Tr. 1445, 1480; GC Exh. 37.) Romero did not inform Johnson about her internet cutting out. (Tr. 1467.)

Romero had recorded her time for the meeting the previous day in the daily record book (DRB).¹³⁶ She did not work on March 24 or for a couple days after the meeting. When she returned, Johnson asked to meet with Romero as she was getting ready for her shift. Johnson informed her that the person hosting the meeting had reported she left early, and she had recorded her time incorrectly which was time theft. Johnson said she would adjust it this time,
 30 but next time it would be a write up. Johnson edited Romero’s time to reflect an hour.¹³⁷ (Tr. 1447–1448, 1477; GC Exh. 38; R Exh. 20.)

Johnson brought the matter to DM Wilson’s attention, and she followed up with the store managers that led the call. SM Mendoza told her Romero had left the call. (Tr. 1375, 1394.)

35 Wilson instructed Johnson to follow up with partner relations. (Tr. 1427.)

On April 5, Romero had put in an order for a drink at the end of her shift and was waiting for it in the back room. She forgot to clock out while she was waiting but when she realized this, she clocked out immediately, about 8 minutes late. (Tr. 1451–1452.) Johnson reported to Wilson
 40 that Romero had stayed in the back room after her shift talking to other partners and did not clock out until after her conversations.¹³⁸

¹³⁶ When looking at Romero’s entry in the DRB at the hearing, Wilson was asked whether Romero filled it out on March 23. She responded, “I don’t know.” (Tr. 1419.)

¹³⁷ Romero did not observe Johnson making this adjustment. (Tr. 1478.)

¹³⁸ This was investigated but Romero was not disciplined. (Tr. 1398.)

The application for the shift supervisor position opened at the end of March, and Romero was promoted to shift supervisor on April 11.

On April 15, Carol Dawkins from partner relations emailed Johnson about the concerns she had reported in her store. Dawkins provided her number and asked Johnson to call her. The investigative notes set forth Johnson's description of Romero's conduct on March 23 and April 5, and are followed by, "SS Milly is part of the union organizing in the store. SS Milly is taking notes on every time SM makes her uncomfortable or doesn't say hello when she walks in the store. DM, RD, and lawyer are all aware." The requested resolution is noted as "Guidance for time theft, union activity." (GC Exhs. 30, 36.)

On April 26, DM Wilson emailed SM Johnson some policies from the Partner Guide which "best fit our situation for this separation." The referenced separation was Romero's. The policies were "Correcting Time Records" and a policy about pay.¹³⁹ Wilson also informed Johnson of some errors and the need to be more specific with the "first violation of the trainer camp." Johnson responded that she would make the changes. (Tr. 1378–1379; GC Exh. 36.)

On April 28, SSV Daija Jones was the keyholder.¹⁴⁰ She sent Romero to lunch at around 1:00 p.m. Romero clocked out at 1:13, and Jones wrote down the time to keep track of Romero's break time. Toward the end of Romero's lunch break, Adriana Ramirez, who was taking over as the keyholder SSV at 2:00, came in. Romero and Ramirez discussed how the day was, that things were slow, and they discussed miscellaneous things about the shift. After about 5 minutes, Romero returned to the floor. Jones had not instructed her to return to the floor earlier. Ramirez informed Romero that Jones would be leaving at 2:00 even though she was scheduled until 4:00. Jones clocked out at 2:00. In Romero's experience, workers engage in small talk at work when things are slow. Jones did not discuss any issue about the lunch break with Romero. As a shift supervisor, if Romero saw an employee talking to a coworker, she would remind them to get back on task. (Tr. 1452–1457.)

SM Johnson reported to DM Wilson that Romero clocked back in from her break at 1:43 but did not return to the workroom floor until 2:00 on April 28.¹⁴¹ Wilson instructed Johnson to investigate. (Tr. 1400.) Wilson did not do an independent investigation. (Tr. 1376.) Wilson's understanding was that Romero was in the back room. (Tr. 1412.) She was not aware of any other employees disciplined for clocking in but not being ready to work.

On May 5, SSV Jones emailed SM Johnson, "On 4/28 I witnessed another SSV abuse the work clock and not properly clock in and out of work on time. As the key holder I know when I delegate breaks and around what time coworkers should be back on the floor after breaks." Johnson requested more information, so on May 13, Jones emailed her a statement describing in more detail Romero's lunch break. She wrote that she sent Romero on her break at 1:13. The closing supervisor, who was supposed to start at 2:00 came in early and Romero did not return to the floor until 2:00, when the closing supervisor was also clocking into work. (R Exh. 29.) Jones testified, incorrectly, that Romero clocked back in at 2:00. (Tr. 1901.)

¹³⁹ Neither of these policies were referenced in Romero's separation notice.

¹⁴⁰ Jones did not support the Union and openly stated that she did not think union were necessary. (Tr. 1456.)

¹⁴¹ Wilson recounted her understanding of the situation, but it was thirdhand. (Tr. 1399.)

Wilson said if employees were talking and not working while clocked in, she would not instruct them to get back to work but would assign tasks. She has encountered this but did not recall if she issued discipline. (Tr. 1412–1413.)

Nobody asked Romero about this incident. (Tr. 1455.) Nobody reviewed the surveillance video in the store. (Tr. 1416.)

4. The Union prevails in the election

The mail ballot election took place from April 5 to April 19. The tally of ballots occurred on May 5, and the Union prevailed by a vote of 17 to 3. (GC Exh. 9.) The Union was certified as the collective-bargaining representative for the baristas and shift supervisors on May 27. Romero, who attended the ballot count, posted about winning the election on social media. (Tr. 1457.)

5. Romero's discharge

On June 2, Wilson and Johnson met with Romero and gave her a Notice of Separation for violating Starbucks' recording time worked standard on March 23 and April 28. The cited provisions of the policy state:

The following rules must be adhered to on a daily basis:

- A partner must not punch in until ready to begin work.
- A partner must not punch in prior to the start of the scheduled shift, unless instructed to do so by a shift supervisor, shift manager, assistant store manager or store manager.
- A partner must not perform any work during a rest break.
- A partner must punch out at the beginning of every meal break and punch back in upon returning to work after the meal break.
- A partner must punch out immediately upon completing a shift.

The separation notice described the violations as follows:

- On 3/23/2022 Milly Romero was scheduled for two-hour left (sic) virtual training camp and left the virtual meeting 40 minutes into the meeting and did not notify the SM or the leaders that hosted the meeting of her early departure. Milly later recorded her time worked for the complete 2-hour meeting when she was present for only 40 minutes.
- On 4/28/2022 Milly clocked out for her meal break at 1:13pm, she clocked back in at 1:43 but did not arrive onto the floor until 2pm. When questioned, Milly said she was still on her meal break but had clocked in at 1:43pm.

(GC Exh. 34; USDC2 Exh. 107.)

DM Wilson met with Romero to issue the discharge. She introduced herself to Romero, showed her the notice of separation, and read it to her. (Tr. 1385.) Wilson did not recall Romero disputing the violations in the separation meeting. (Tr. 1409.) Romero signed the separation

notice and returned her keys. Romero had never received discipline prior to her termination. (Tr. 1477.) Romero was a member of the Union’s bargaining committee at the time of her separation. (Tr. 1462–1463.)

5 Johnson notified the workers on shift that Romero no longer worked at Starbucks. This notification was unusual. (Tr. 965–966, 1462.) Later on June 2, Wilson sent Durree and her partner relations manager an email about the separation meeting. (GC Exh. 35.) Romero’s discharge was done in consultation with the Respondent’s legal team, which was not the case for every discharge. (Tr. 1380–1381.)

10 The Union was not notified of Romero’s separation or provided with an opportunity to bargain over it. (Tr. 1383.)

15 SM Johnson transferred to another store in August. This was in part due to Martinez writing “union strong” on their tip jars, which was not permitted, and made Johnson feel like “whatever agenda she had was going to happen.” (Tr. 931–932.)

B. Analysis

20 1. Alleged interrogation

Complaint paragraphs 6(h)(1) and 12 allege the Respondent violated Section 8(a)(1) when, around the first week of March, Johnson interrogated employees about their protected concerted activities or union activities.

25 The legal standards articulated above apply to this allegation. Ramirez’ recording is irrefutable proof that Johnson, just after the organizing drive went public, asked her what compelled employees to seek union representation, and inquired about topics in the Dear Kevin letter. Other employees provided similar testimony about their meetings, which Ramirez’ recording corroborates. Johnson asked Romero whether she agreed with the Dear Kevin letter.¹⁴² The questioning took place during individual meetings with employees, such as in Ramirez, Martinez, and Romero’s cases, or in meetings with two employees, and was conducted by the store manager. Most of the employees answered Johnson’s questions but Romero denied reading the Dear Kevin letter even though she had read it because she wanted a promotion to shift supervisor. Johnson did not provide assurances against reprisal.

35 Even low-keyed or friendly interrogation, designed to discover the extent of union organization and the basis for it, is unlawful. See *NLRB v. Laredo Coca Cola Bottling Co.*, 613 F.2d 1338 (5th Cir. 1980), cert. denied 449 U.S. 889 (1980). Considering the totality of the circumstances, I find the General Counsel has established this complaint allegation.

40 2. Alleged promise of benefits

¹⁴² This testimony is unrefuted. In any event, where employee testimony about the meetings conflicts with Johnson’s, the employee testimony is credited. Johnson’s credibility about the meetings was severely impeached when she denied making numerous comments that the recording later reflected she had, in fact, made. Johnson’s statement that her entire understanding of the Respondent’s views on unionization was that partners have the right to vote also lacks credibility.

Complaint paragraphs 6(h)(2) and 12 allege the Respondent violated Section 8(a)(1) when Johnson promised benefits by stating she was looking into installing bulletproof glass and signing the store up for Starbucks' Lyft program.

I recommend dismissal of this complaint allegation. The requests about bulletproof glass and signing the store up for the Lyft program came out of the meeting with employees in February, following a robbery and shooting. Johnson's mere mention that these responses to safety concerns were already in the works does not constitute a promise of benefits. She did not say or imply that these measures would be in jeopardy if the stores unionized or otherwise placed any conditions on them.

3. Alleged threats

a. Unspecified reprisals

Complaint paragraphs 6(h)(3) and 12 allege that, by stating her feelings were hurt and that she took offense to the Dear Kevin letter, Johnson threatened unspecified reprisals in violation of Section 8(a)(1).

As detailed in the statement of facts, Johnson took issue with the portion of the letter suggesting employees had felt pressure to come into work following the shooting because she had provided options not to return or to transfer to ensure employees felt safe. Given the context, I find a reasonable employee would feel that concerted complaints about management's efforts to keep employees safe would cause offense and be viewed as harmful. I therefore find the General Counsel has established this complaint allegation.

b. Loss of benefits

Complaint paragraphs 6(h)(4) and 12 alleged that Johnson threatened the loss of benefits in response to employees' union activities, in violation of Section 8(a)(1).¹⁴³

Tentative language about adverse consequences can be coercive, particularly where the employer's prediction is not based on objective facts or the nature of the collective-bargaining process. *Daikichi Sushi*, 335 NLRB at 623–624 (holding it was not a defense that the employer phrased its prediction that the plant could close if employees unionized “as a possibility rather than a certainty”), enfd. 56 Fed. Appx. 516 (D.C. Cir. 2003); see also *Holy Cross Hospital*, 370 NLRB No. 16, slip op. at 1 fn. 3 (2020) (employer unlawfully threatened that if employees unionized, the employer's leave policies might become less generous and its shift scheduling less flexible); *Metro One Loss Prevention Services Group*, 356 NLRB 89 (2010) (employer unlawfully threatened that an employee's pay rate could get worse if the union came in); compare *Jefferson Smurfit Corp.*, 325 NLRB 280 fn. 3 (1998) (employer's statement that benefits “could go either way as a result of collective bargaining” was lawful). An employer may lawfully communicate to its employees “carefully phrased” predictions about “demonstrably

¹⁴³ This complaint allegation specifically references threats regarding breaks, healthcare benefits, and Lyft benefits. The General Counsel did not establish these portion of complaint paragraph 6(h)(4) and I recommend their dismissal.

probable consequences beyond [the employer’s] control” that unionization will have on the company, provided the predictions are based on objective facts. *NLRB v. Gissel Packing Co.*, above at 618, (1969). However, if the employer predicts, without any supporting objective facts, that it may or may not take action solely on its own initiative for reasons unrelated to economic necessities and known only by the employer, then the employer’s prediction is a threat of retaliation that violates Section 8(a)(1) of the Act. *Daikichi Sushi*, supra.

The record here is clear that Johnson conveyed a wage increase may threaten ASU benefits.¹⁴⁴ She stated, “Also things like if you needed to change your availability, that’s something I can’t do anymore,” and that they would not be able to have direct conversations anymore or meet without a union representative present. Johnson admittedly said that promotions will be seniority based if the employees unionized, consistent with Romero’s testimony. (Tr. 916.) Johnson did not explain the bargaining process or even reference bargaining. I find the General Counsel has met her burden of proof for this allegation.

The Respondent contends that Johnson’s comments were protected by Section 8(c). However, as the Board explained in *NY Paving*, 371 NLRB No. 139, slip op. at 4 (2022):

Section 8(c) provides that expressing views, arguments or opinions “shall not constitute or be evidence of an unfair labor practice . . . if such expression contains no threat of reprisal or force or promise of benefit.” 29 U.S.C. § 158(c); see also *Chamber of Commerce v. Brown*, 554 U.S. 60, 67 . . . (2008). Thus, while Section 8(c) protects an employer’s noncoercive statements of opposition to unions or unionization, it does not protect an employer’s explicit or implicit threats of reprisal or predictions of future consequences resulting from protected union conduct. This is particularly true where the employer’s implicit threat concerns a matter within the employer’s control. As I have found the statements at issue coercive, this argument fails.

c. Futility of organizing

Complaint paragraphs 6(h)(7) and 12 allege Johnson threatened employees with futility in engaging in union activities by stating management would still be the same if they unionized, in violation of Section 8(a)(1).

While statements suggesting unionizing would be futile can violate the Act, I find, considering the context of Johnson’s comment here, the General Counsel has not met her burden of proof. Johnson told Ramirez that she would still be the store manager and Leuck would still be the district manager if the store unionized, but it would not change the way she and Leuck felt about their employees. This is not a statement of futility by any reasonable construction. I recommend dismissal of this complaint allegation.

d. Termination

¹⁴⁴ Though she conveyed that the loss of ASU benefits could happen, but she didn’t know if it would, I find that in the context of the meeting where other statements about the impact of a union were made, it was coercive.

Complaint paragraphs 6(h)(8) and 12 allege that Johnson threatened employees with termination based on a disciplinary system the union would establish if employees unionized.

Romero’s testimony that Johnson told her that unions work on a points system and if you get a certain number of points, you could be fired, is unrefuted. Moreover, I found Romero to be a highly credible witness. Her responses were forthcoming and not at all evasive, even on cross examination. She testified in a calm and direct manner, and did not appear to be embellishing her responses. I find the General Counsel has established this complaint allegation.

4. Alleged promulgation of rule

Complaint paragraphs 6(h)(5) and 12 allege that Johnson promulgated an overly broad rule or directive that employees were not to keep their union activities secret, in violation of Section 8(a)(1).

Johnson said the union drive took her by surprise because she felt like they talk about everything, but the union effort wasn’t talked about, it didn’t make her feel good that employees talked to the former store manager but not her, and she did not like it being a secret. I find this would reasonably be construed as a directive to tell the store manager about union activities in violation of the Act, and the General Counsel has proved this allegation.

5. Alleged disparagement or denigration

Complaint paragraphs 6(h)(6) and 12 allege that Johnson disparaged or denigrated employees who had engaged in union activities, in violation of Section 8(a)(1).

An employer may violate the Act when it denigrates the union in the eyes of employees. See *Lehigh Lumber Co.*, 230 NLRB 1122 (1977). The employer’s freedom under Section 8(c) of the Act to disparage, criticize, or denigrate a union stops when the comments threaten employees or otherwise impinge upon Section 7 rights. *Children’s Center for Behavioral Development*, 347 NLRB 35 (2006). However, “[w]ords of disparagement alone concerning a union or its officials are insufficient for finding a violation of Section 8(a)(1).” *Sears, Roebuck & Co.*, 305 NLRB 193 (1991).

This allegation concerns communications Martinez received from a coworker stating Johnson had called her a “union plant” and said Martinez was only thinking of herself. When asked if she said Martinez was “union plant,” Johnson said, “No. She told me . . . [t]hat she was a union organizer.” She then could not recall whether she told employees Martinez was a union organizer, and she did not recall saying that Martinez was not thinking about the team but about herself, but she could have said this. (Tr. 928.)

The alleged remarks are double hearsay and cannot be relied upon unless corroborated. See *Auto Workers Local 651 (General Motors)*, 331 NLRB 479, 481 (2000) (an employee’s uncorroborated testimony that a second employee told her that he heard a supervisor call her a “voodoo sister” was unreliable hearsay and could not support a finding that the supervisor was in fact hostile to her). Johnson, however, did not deny that she may have said Martinez was not thinking about the team but about herself. In *Park N Fly, Inc.*, 349 NLRB 132, 132–133 (2007), the Board found a supervisor’s statement to a union organizer that the company did not need a

“damn union” and that he was nothing but a damn “troublemaker,” was an opinion protected by Section 8(c) and insufficient to violate Section 8(a)(1).¹⁴⁵ Any comment by Johnson here likewise does not rise to the level of a violation. I recommend dismissal of this complaint allegation.

5

6. Alleged directive and threat

Complaint paragraphs 6(i) and 12 allege that, during the last 2 weeks in March, Johnson directed employees to vote yes or vote no, and stated employees couldn’t not vote in the upcoming election, and this language threatened employees with unspecified reprisals for not voting.

10

The General Counsel argues that Johnson made such comments in late March, but cites to no testimony or other evidence to support this argument. The only testimony on this point that I could discern from the record came from Ramirez, as follows:

15

Q. And you were never personally instructed that you had to participate in the election, right?

A. She was instructed, saying that we had to vote.

20

Q. What were her exact words?

A. I’m not sure on her exact words.

Q. And you knew the company was encouraging everybody to vote, correct?

A. I believe so.

Q. And the comment that Ms. Johnson made was with respect to that.

25

A. I believe so.

(Tr. 997.) Martinez testified she understood that she had a right to decide to vote or not to vote. (Tr. 978.) The evidence is too uncertain and thin to substantiate this allegation and I recommend its dismissal.

30

7. Romero’s termination

Complaint paragraphs 8(i), 12, and 13, allege the Respondent discharged Millyana Romero in violation of Section 8(a)(3) and (1).

35

Before analyzing this allegation, it is necessary to resolve a factual dispute over when Romero initially entered her training hours for the March 23 training. Romero, as the only person with direct knowledge, provided unrefuted testimony that she initially entered the training time from 4 p.m. to 6 p.m. on March 22.¹⁴⁶ The Respondent asserts, “overwhelming evidence” proves the entry occurred on March 24, pointing to the DRB.¹⁴⁷ It is apparent from the face of the DRB

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¹⁴⁵ Cf. *Perth Amboy Hospital*, 279 NLRB 52, 55–56 (1986)(disparaging comment in meeting in front of all employees violated 8(a)(1). The General Counsel here did not establish whether anyone other than the coworker was present.

¹⁴⁶ Wilson testified she did not know what date Romero made the entry and she did not have direct or detailed knowledge about when or how Romero made entries in the DRB.

¹⁴⁷ The Respondent also points to testimony but none of it establishes the date of Romero’s original time entry.

that the initial entries are not always chronological.¹⁴⁸ Though the second date on Romero’s entry, to the right of her initials, is March 24, this does not refute that the original entry for the training was made on March 22. As described above, I found Romero to be highly credible, and I credit her testimony on this point.

The *Wright Line* analysis governs this allegation. I find the General Counsel has established a prima facie case. Romero was a known union supporter, and at the time of her separation was on the Union’s bargaining committee. The requisite animus is established through the conduct supporting the 8(a)(1) violations at the store, detailed above. The Respondent contends that DM Wilson’s decision to promote Romero to supervisor on April 11 while she was a known union adherent undercuts any allegations of animus. It was actually Johnson who made the decision to promote Romero, and it is clear that the decision to terminate her came from much higher authority.¹⁴⁹ In any event, Romero’s promotion does not negate the evidence of animus established in the record.

The Respondent’s stated rationale was that Romero was terminated for incorrectly recording her time in violation of its recording time worked standard, despite previous warnings. The pivotal question, then, is whether the Respondent would have terminated Romero even absent her union activity. The evidence shows that Romero’s union activity was featured on the partner relations file Dawkins created, noting the request from the store was for “Guidance for time theft, union activity,” and documenting that Romero was part of the union organizing in the store. This is direct evidence Romero’s union activity was considered in the guidance regarding her discipline. The delay of more than a month from knowledge of the offense and Romero’s discharge also indicates pretext. See *New Haven Register*, 346 NLRB 1131, 1143 (2006)(suspension on January 7, 2005 for events that occurred on December 23–24, 2004); *Metro-West Ambulance Service, Inc.*, 360 NLRB 1029, 1029–1030 (2014)(delay of more than a month).

Certain anomalies also point to pretext. The notice of separation lists two incidents of misconduct, on March 23 and April 28. It is clear, however, that the Respondent was aiming to discharge Romero even before the April 28 incident. April 26 correspondence between DM Wilson and SM Johnson discusses which policies “best fit our situation for this separation,” referring to Romero. Although Johnson reported the April 4 incident of Romero talking with coworkers in the back room before clocking out, it was not cited in her notice of separation, nor was she disciplined in any way at the time. This leads me to infer the April 4 incident did not sufficiently hold up to be cited as discipline. The March 23 incident alone could not be used to justify separation, particularly considering Romero received no discipline for it as a standalone violation, and Johnson had told her she would be written up the “next time.” The April 4 incident was obviously not considered as a qualifying event for the forewarned writeup.

This leads to the April 28 incident. There is no dispute that, on that day, Romero clocked out for 30 minutes. When she clocked back in, the undisputed evidence shows she talked with the incoming SSV about how things had been at the store and other work-related matters. While their conversation also included nonwork matters, this was commonplace at the store. SSV Jones

¹⁴⁸ The initial date for the employee above Romero’s entry is March 24, and the one below it is March 21. (R Exh. 20.)

¹⁴⁹ Tr. 1391.

did not instruct her to return to the floor earlier, nor was evidence presented that she was expected to be in the front at any specific time. Jones had written down the time Romero had clocked out, a clear indication her actions were being highly scrutinized. There is no contention that Romero left the store or attended to a personal matter. If Romero was considered to be off task, the evidence establishes this generally resulted in the supervisor or manager telling them to get back on task or assigning them a task.¹⁵⁰

I find the General Counsel has met her burden to prove that Romero was terminated based on her protected union activities in violation of Section 8(a)(3) and (1).

8. Failure to bargain over Romero's termination.

Complaint paragraphs 8(i) and (15) allege the Respondent failed to provide the Union with notice and an opportunity to bargain over Romero's termination.

The General Counsel and the Respondent agree that under extant Board law, failure to provide notice and an opportunity to bargain over Romero's discharge was not unlawful. The General Counsel seeks to overrule the Board's decision in *Care One at New Milford*, 369 NLRB No. 109 (2020). The General Counsel's arguments are for the Board to address, as administrative law judges are required to apply existing Board precedent. Accordingly, consistent with *Care One*, I will recommend dismissal the allegation's dismissal.

VII. The Power & Baseline Store

A. Facts

During the relevant time period, Christina Youkers was the store manager of the Power & Baseline store as of February 8, 2022. She had previously been assistant store manager. The district manager was Cassie Levu. Taylor Brennan was a barista.¹⁵¹ About 33 employees worked at the store.

In November 2021, the Union filed a petition for election at the store. The Union was certified as the collective-bargaining representative for baristas and shift supervisors on March 7, 2022. Brennan supported the union drive by wearing a pin and a union shirt, and by participating in group chats and bi-weekly Zoom meetings.¹⁵² When Youkers was the assistant store manager, she had asked Brennan to put something in the Union's group chat. (Tr. 1599–1600.)

On February 6, Youkers texted Brennan to tell her the store had just posted a shift supervisor position if she wanted to apply. Brennan responded she already applied, and Youkers

¹⁵⁰ The Respondent points to a notice of separation issued to an employee named Isaac. (R Br. 82.) I am unable to read much of Isaac's notice of separation due to the poor quality of the copy. However, it is clear he was separated for violation of the Respondent's time and attendance standard, and that it was for arriving at work late and then intentionally falsifying time records. This is meaningfully different from Romero's conduct.

¹⁵¹ As discussed below, she was promoted to a shift supervisor position at another store.

¹⁵² Almost every employee wore a union pin and other employees wore shirts. (Tr. 1621–1622.)

replied, “Yasss!!!”¹⁵³ (R Exh. 21.) Youkers told other baristas about the posting as well. (Tr. 1549.) Brennan did not get the position, but management worked with her on next steps. On March 9, Brennan became a barista trainer. When she was subsequently promoted to shift supervisor at another store, Youkers and another store manager made the selection. (R Exh. 21; Tr. 1551–1553.)

Managers and employees communicate with each other by text about picking up shifts, not being able to come in for a shift, feeling sick, and other matters. If a partner cannot come in for a shift, they must call the store first, but can follow up with a text. The store has a GroupMe chat called Power Rangers Store Chat that includes everyone at the store. Employees use it for various reasons, including picking up shifts. (GC Exh. 48; Tr. 1508, 1524–1526, 1536.) On April 21, Brennan posted in the GroupMe chat asking if anyone could cover her shifts on May 5 and May 7, and offered to switch with someone for April 27 and May 4. Another employee agreed to take her May 7 shift, but nobody in the chat responded about the May 5 shift. Brennan released her shifts for both dates in the app on April 21, despite only having coverage for May 7. (GC Exh. 48; Tr. 1630–1632.)

At DM Levu’s direction, on May 3, Youkers conducted an all-staff meeting. The purpose was to go over specific policies and “reset” or “clarify” the policies for the district because there had been some misinterpretations of them. The policies covered were attendance and punctuality, anti-retaliation/anti-harassment, dress code, and relationships with other Starbucks partners/close relationships. Youkers handed out the policies and instructed employees to sign and date them.¹⁵⁴ This was the first store meeting to go over policies and/or sign policies Youkers or Brennan could recall. (Tr. 1513–1517, 1603–1604; GC Exh. 40.)

Bargaining sessions occurred on May 4 and July 8. Youkers and Levu were present for management. Brennan and some other baristas attended for the Union. Youkers saw Brennan at the bargaining session on July 8. (Tr. 1509–1511, 1602–1603.)

Irregular attendance includes obtaining coverage for one’s scheduled shifts multiple times in a row. (Tr. 1563.) On March 4, Youkers called Brennan to discuss shifts she missed on March 2, 3, and 4. She reviewed the attendance policy and asked Brennan if they needed a leave of absence. (R Exh. 22; Tr. 1564.) Brennan did not recall ever talking about a leave of absence with Youkers. (Tr. 1626.)

Partners use a partner hours app that shows their schedules. They could swap shifts through the app. Brennan’s partner hours app showed she was not scheduled on May 4 or 5. (GC Exh. 46.) On May 4, Brennan texted Youkers, “I have a question, on the schedule it says I work from 6:30–11 tomorrow but on my app it says I’m not scheduled and I can’t remember if I gave my shift up or not. Is there a way to check?”¹⁵⁵ Youkers responded, “Let me see if I can see anything on my end. What time does it say?” Brennan replied, “On the paper schedule it says 6:30–11” and Youkers replied, “I see Melissa is working a 6:30–11 tomorrow.” Brennan then

¹⁵³ It is undisputed that at all times, Youkers and Brennan have maintained a good relationship.

¹⁵⁴ Youkers also said they went over the How we Communicate policy, but this was not included among the policies Brennan was required to sign.

¹⁵⁵ Store managers have greater access in the partner hours app.

asked, “Oh, okay, so I don’t come in?” and Youkers answered, “No you must have given your shift away.” (GC Exh. 42.)

5 Youkers was bargaining and not in the store on May 4. (Tr. 1559.) The following day, when Youkers went into the store, she found the 6–11:30 shift was not filled. She learned that Melissa and another barista had agreed to switch shifts, and when this was approved they went into the system to release their shifts for each other to pick up, Brennan had also released her shift without authorization. As Youkers described, “So Melissa picked up Taylor’s shift by accident, not knowing that there were two shifts in that system to be picked up when there only should have been one” (Tr. 1560.)

15 At 6:30 a.m. on May 5, SSV Casey Stumfig called Brennan and asked where she was. Brennan told her Melissa had taken her shift and that Youkers had confirmed it. Stumfig said Melissa took another person’s shift, not Brennan’s. Brennan went to the store as quickly as possible but was about an hour late. (Tr. 1608–1609.)

20 Brennan was scheduled to work on May 10. She woke up extremely ill and believed she would not pass the Covid coach. At 1:56 a.m., she texted the opening supervisor, Shannen Kelly, “Hey shannen i know it’s really late but I am not going to make it in today I’m really not feeling well.” She testified that she also called the store at 4 a.m., which was before the store opened, but nobody answered. (GC Exh. 47; Tr. 1611.) In her Board affidavit, Brennan stated, “I set an alarm for 4 a.m. with the intention of calling the store, but I slept through the alarm because I was sick and did not wake up until 6 a.m., and by that time it was too late to call the store.” (Tr. 1633.) Brennan acknowledged that her recollection was better at the time she gave her affidavit, so the established facts regarding Brennan’s actions the morning of May 10 are those stated in her affidavit.¹⁵⁶ (Tr. 1637.)

30 On May 10, Youkers created a final written warning corrective action form (CAF) for Brennan for violating the Attendance and Punctuality policy. (GC Exh. 41.) Someone from Starbucks’ partner resources center had instructed her she needed to have discipline approved by legal after the store became certified. (Tr. 1528.) On May 10, Alonya Colyar, senior partner relations manager, sent Youkers and the interim DM an email to schedule time to meet about concerns regarding Brennan and two other baristas. (R Exh, 23.) Colyar also sent an email to Youkers on May 10 informing her she had scheduled them for a legal consult that Thursday. (R Exh. 24.) On May 12, Youkers sent Colyar a draft of Brennan’s final written warning. (GC Exh. 43.) Colyar sent back a final approved copy the same day with instructions to send a signed copy to her within 48 hours. (R Exh. 26.)

40 The CAF stated Brennan had shown irregular attendance over the past six weeks. The CAF noted that the SM had a coaching conversation with her a month ago and during a store meeting on May 2,¹⁵⁷ Brennan had signed the time and attendance policy when the SM reviewed expectations with all partners. The discipline cited the following incidents:

¹⁵⁶ Had Brennan called the store at any time, including when she eventually woke up, even if she was not able to make contact, this would have been a reasonable attempt to contact the manager or the partner leading the shift, in line with policy. (USDC2 Exh., 107.)

¹⁵⁷ This is a typo and should be May 3. (Tr. 1520.)

5/5/2022 - BAR Taylor failed to communicate that they were looking for coverage for their shift, resulting in a gap in coverage and being an hour late to scheduled shift.

5/10/2022 - BAR Taylor did not follow proper call out protocol for their shift, resulting in a no call no show.

(GC Exh. 41.)

On May 20, Youkers pulled Brennan aside after her shift and presented her with the CAF. Brennan explained that she understood the no call no show, but she did not understand why May 5 was included. After Brennan explained that Youkers had told her not to come in on May 5, Brennan said she still needed to give her the final written warning. Youkers explained that employees are no longer permitted to give away shifts on the app, but that was not the case on May 5. (Tr. 1606.) Youkers and Brennan signed the CAF on May 20.

Youkers followed up with Colyar, telling her Brennan understood and took responsibility for the attendance issues. (GC Exh. 44.) The “virtual coach,” which Youkers consulted, recommends a final written warning for no call no shows. (R Exh. 25; Tr. 1575, 1583.)

On February 23, 2022,¹⁵⁸ Youkers issued a final written warning to employee Chase for calling out but not finding coverage on eight dates between April 7 and April 22, and a no call no show on April 24. On May 16, Youkers issued a notice of separation to employee Ilse, following a previous written warning and a previous final written warning for attendance violations. The notice of separation referenced that she had signed off on the T&A policy during the May 3 all partner meeting. The infractions cited were being 2 minutes late on May 5, and 4 minutes late on May 12. (GC Exh. 45.) Brennan observed one employee who was not disciplined in early 2022 for a no call no show. She did not remember the date or who they keyholder was on the day in question. (Tr. 1613, 1634.)

On May 25, Youkers posted in the GroupMe chat to inform employees they were no longer using the partner hours app to “release” or “swap” shifts to help with confusion when shift swapping. She then provided instructions on what they should do, including posting in the group chat if they needed a shift covered. She reminded employees that the call out policy for a sudden illness or issue was the same and they should call the store with as much notice as possible. She added, “You can text me as a way to keep me updated if you want but this is not required. Texting me as the only method of communicating call out/shift changes is not the correct method.” (GC Exh. 49.)

B. Analysis

1. Stricter rules enforcement

Complaint paragraphs 6(m) and 12 allege the Respondent violated Section 8(a)(1) when on May 3, 2022, Youkers began more strictly enforcing policies, including its attendance policy.

¹⁵⁸ It appears this date may be a typo, as April 23 certainly makes more sense.

An employer violates Section 8(a)(1) by more strictly enforcing rules in response to employees' support for and activities on behalf of a union. See *Shamrock Foods Co.*, 366 NLRB No. 107, slip op. at 12 (2018), enfd. 799 Fed.Appx. 752 reh'g en banc denied (D.C. Cir. 2019).

5 The General Counsel argues that the Respondent more strictly enforced its policies on employees by requiring them to sign off on individual policies at the May 3 meeting and by disciplining employees, including Brennan.¹⁵⁹ Brennan's discipline is discussed directly below, as is the contention of stricter enforcement of the attendance policy in particular. As to the meeting itself, its timing is the only thing that may suggest it was related to the Union. When
10 considered along with Youker's testimony, which is unrefuted and credited, that similar meetings were conducted by store managers district wide because there had been some miscommunications about the policies, I find the evidence is insufficient to prove a violation of Section 8(a)(1). I recommend dismissal of this complaint allegation.

15 2. Brennan's final written warning

Complaint paragraphs 8(h), (j), and 13 allege that on May 20, 2022, the Respondent violated Section 8(a)(3) and (1) when it issued a final written warning to Brennan because she
20 formed, joined, or assisted the Union and engaged in concerted activities, and to discourage employees from engaging in these activities.

Wright Line applies to this complaint allegation. Brennan engaged in union activity, including serving on the bargaining committee and participating in bargaining sessions, and the Respondent knew about it.¹⁶⁰ As to animus, the General Counsel points only to timing. See
25 *Masland Industries*, 311 NLRB 184, 197 (1993) ("Timing alone may suggest anti-union animus as a motivating factor in an employer's action."); *Intertape Polymer Corp.*, supra.¹⁶¹ I do not find the timing, on the facts of this case, is sufficient, without more, to establish unlawful motivation. There was no evidence presented that Youkers, or any manager connected to the Power &
30 Baseline store, was hostile to the Union or to Brennan's union activity.¹⁶² Though once the store was unionized evidence shows attendance violations had to go through the legal department, this does not establish animus. I agree with the reasoning of Judge Gollin in *Starbucks Corp.*, Case 19–CA–295708, 2024 WL 68035 (2024), cited by the Respondent, stating:

35 Requiring consultation with higher-level management and/or human resources before taking adverse actions after employees unionize may be for lawful business reasons, including avoiding violations committed by lower-level supervisors unfamiliar with the

¹⁵⁹ The General Counsel presented no argument as to how any other employee's discipline was more strictly enforced and its argument on this allegation as a whole is very insubstantial. (GC Br. 123.) In its analysis regarding Brennan's final written warning, the General Counsel argues that Respondent's attendance policy was "more strictly enforced against her (and likely other employees) . . ." (GC Br. 150.)

¹⁶⁰ As noted in the statement of facts, Youkers saw Brennan at the July session.

¹⁶¹ See GC Br. 150. The Charging Party points to the one.starbucks.com website which states, "'Why do we believe voting 'No' is best for partners?'" along with Starbucks' public opposition to unionization of its stores. "Why do we believe voting 'No' is best for partners?" Under extant Board law, this does not establish animus. *United Site Services of California, Inc.*, 369 NLRB No. 137, slip op. at 14 fn. 68 (2020).

¹⁶² The record does not contain any unfair labor practice charges, much less findings, based on management's actions during the union campaign.

rights and responsibilities that arise once there is a collective-bargaining relationship, and not in-and-of-itself evidence of animus or pretext.

Even if the requisite animus was present, the record establishes that Brennan, by releasing her shift on the partner scheduling app without getting coverage, was at least partially at fault for creating the attendance confusion on May 5. Had she not done that, there would have been no discrepancy between the written schedule and the app. The facts establish that Brennan did not call or show up for her shift on May 10, even after she woke up. Brennan testified she knew of an employee who was not disciplined for a no call no show, but she could not recall the date or the supervisor involved, and did not testify as to the basis for her knowledge. Documentation shows Brennan was previously coached about attendance, that at least one other employee received a final written warning following a no call no show, and this was recommended by the virtual coach. There is simply not sufficient evidence tying Brennan's discipline to her union activities. I recommend dismissal of this allegation.

VIII. The Southern & McClintock Store

A. Facts

During the start of the relevant time period, JC Campbell was the store manager at Southern & McClintock. Beginning on May 6, 2022, Paul Elkins became the store manager until he went on paternity leave at the end of May. Sophia Orthner served as proxy store manager, taking over when Elkins went on paternity leave, until early June 2022. She simultaneously was store manager at another store. Christian Greene was the assistant store manager and Jessica Elliott was the district manager. Campbell hired Brittney Schmitt as a shift supervisor in January 2022. Schmitt had previously worked at another Starbucks in New York.

The Southern & McClintock store has a café but not a drive-through. About 20 partners worked there during the relevant time period. It is near a high school and serves as a community hub for the neighborhood. (Tr. 1943–1944.)

SSV Schmitt learned about the Union by following the organizing efforts in Buffalo on Twitter. In February 2022, Schmitt and another partner started talking about organizing the store. They formed a committee with some other partners and began handing out authorization cards in mid-March. After failing to secure a sufficient number of authorization cards, the Union declined to file a petition for representation at the store. (Tr. 1742–1745.)

Schmitt created an incident report on March 8 about a customer who came to the store and talked about how grateful she was for “Nazi science” as well as other disturbing comments. This made Schmitt and their coworker fearful. (GC Exh. 55.) Schmitt asked the customer to leave because the store was closing. After about 10 minutes, the customer left. (Tr. 1774–1775.)

Toward the end of March, all but two employees of the store met at the Yuca Tap Room in Tempe to discuss the Union. Schmitt and a couple other employees led the meeting. Shortly afterward, Schmitt was informed that a fellow shift supervisor had told SM Campbell that Schmitt was the union organizer. Management quickly posted antiunion materials in the back of the house, and when Schmitt wrote things she disputed on the materials, management posted laminated versions. (Tr. 1745–1748.)

On April 1, Maia Carlson, a barista, sent SM Campbell an email, thanking her for meeting with her the previous day. She recounted that on her first closing shift with Schmitt, they (Schmitt) had trouble closing the safe, and she observed them shoving the safe door and kicking the safe while yelling expletives with increasing intensity. Carlson also reported that on March 27, after customers had left, she heard Schmitt loudly banging metal and yelling expletives. (R Exh. 31.)

On April 12, management created a final written warning corrective action form (CAF) for Schmitt for leaving a deposit bag containing \$582.93 by the pastry case overnight on March 30, in violation of the safety and security policy.¹⁶³ (GC Exh. 54.) DM Elliott and SM Campbell presented Schmitt with it on the patio on April 15. Schmitt asked if they could see the surveillance video from the date of the incident, and Elliott said no. Schmitt asked why it took them so long to give them the CAF and asked if they thought the timing was interesting, given her recent “outing” as the union organizer. Elliott told them it was their right to have discussions about the Union. (Tr. 1572–1573.)

Around this time, Schmitt began searching for another job, but intended to stay at Starbucks and work fewer hours. The primary reason they started looking for another job was due to labor cuts that were happening at all Starbucks stores, and they could not live off 25 to 30 hours per week. (Tr. 1757–1758.)

On May 4, Alexandria Clark, a barista who worked with Schmitt, sent SM Campbell an email reporting that she felt uncomfortable with Schmitt’s use of “serious vulgar language” and “somewhat scary behavior” when things did not go their way. Clark said she did not feel like she was in a safe environment when she worked with Schmitt. Clark gave an example of Schmitt loudly cursing and saying vulgar words as they were closing after a hard shift. Clark also reported that Schmitt had called a fellow shift supervisor named Anna a “cunt” and that was very uncomfortable for her to hear. (R Exh. 28; Tr. 1682.) Clark testified:

And [they weren’t] very happy with a specific shift,¹⁶⁴ another shift that we were working with, and [they] called her a cunt out loud. And I didn’t know what to say to that. I was just stunned because I’ve never had another person -- another shift, somebody that you’re supposed to look up to, who’s supposed to be responsible and just keep the environment positive, to say that about somebody else because they weren’t happy with that specific person. And that was just one of the things [they’d] say. [They] would just also say cuss words on the floor too.

(Tr. 1833.) Clark had previously raised Schmitt’s behavior with Campbell. (Tr. 1832.)

In Schmitt’s experience, partners swore regularly in the back room. (Tr. 1778.) Clark likewise observed that baristas used curse words in the back of the house. (Tr. 1838.) Greene observed that most profanity at the store occurred when management was not present. (Tr. 1852.) As detailed above, Starbucks’ mission and values include “creating a culture of warmth and

¹⁶³ This CAF is not challenged in the complaint.

¹⁶⁴ Shift supervisors are casually referred to as “shifts.”

belonging, where everyone is welcome.” (USDC2 Exh. 107.) According to Elkins, cursing on the floor (or anywhere) is not consistent with Starbucks’ mission and values. (Tr. 1651.)

On May 10, SM Elkins sent DM Elliott an email reporting that on May 6 (Elkins’ first day), when he had instructed SSV Sabrina to say “darn it” instead of “damn it,” Schmitt said, “She didn’t say that, she just meant that a beaver was damming a river.” He also reported that on May 9, he coached Schmitt not to say the word “shit.” (GC Exh. 50.) Schmitt recalled saying “stuff” instead of “shit” and did not recall Elkins counseling them about profanity. (Tr. 1815.) Elliott called partner relations and reported to Alissa Stone that she had received a report that Schmitt was slamming dishes and kicking the safe, called another partner a “cunt” and said “shit” multiple times. Elliott added that Schmitt had been pretty vocal about wanting to unionize. (GC Exh. 56.)

The customer about whom Schmitt had filed the March 8 incident report returned to the store on May 12, and screamed and acted belligerently toward a partner named Brianna. Brianna was very upset and came into the back room. While consoling Brianna, Schmitt, referring to the customer, said, “She’s a fucking bitch.” Elkins told Schmitt to watch their mouth. (Tr. 1667, 1776–1778.)

On May 18, Schmitt noticed that their hours had gone down to zero and asked ASM Greene about it. Greene responded that they would need to open up their availability to get hours. Schmitt said they would open up their availability if they could see the camera footage related to the CAF. (Tr. 1763.) Schmitt knew at this point that they were getting a new job that would be 40 hours per week. Later that day, at a shift supervisor meeting, Schmitt told everyone they were resigning. (Tr. 1796–1799.) Greene confirmed with Schmitt after the meeting that they were giving their two-week notice. (Tr. 1856.)

On May 19, Schmitt told Elkins they had gotten a new job and wanted to change their availability and remain a supervisor but only work 2 days per week. Elkins recalled telling Schmitt that was unacceptable due to store business meetings. (Tr. 1687.) Schmitt then said they wanted to step down to barista and Elkins said they could talk about that. Schmitt said they were willing to do the 2-hour clean play on Sundays, which is a block of time for deep cleaning the store. (Tr. 1579, 1687, 1692; R Exh. 27.) Schmitt recalled that Elkins again indicated it would not be a problem but told them Elliott would be in later that day and they could talk. (Tr. 1579.)

Later that day, DM Elliott and SM Elkins met with Schmitt. The managers started the meeting by asking how we communicate, and Schmitt responded by saying the company had fallen behind and were not as forward thinking as they thought, but eventually answered, “respectfully and honest.” Elliott said they had received reports that Schmitt had spoken disrespectfully to partners and had referred to one of them as a “cunt.” When asked if they said that, Schmitt responded, “I don’t think so,” but acknowledged they had used the word. Elkins reported that Schmitt denied saying this and then said they couldn’t remember if they’d said it. Elkins and Elliott then referenced an incident of Schmitt using the word “fuck” in reference to a customer in the back room. According to Elkins, Schmitt replied that the back room was a “safe” space and they were allowed to cuss in the back, just not in the front. Elkins corrected Schmitt and told them there was an open investigation. Schmitt said they did not want to make a written statement. (GC Exh. 51.) Schmitt recalled Elliott told them they would need to start an

investigation before they would work on Schmitt’s availability. When Schmitt offered to step down to barista, Elliott said they would need to open up their availability. (Tr. 1761–1762.)

5 On May 31, Schmitt sent ASM Greene a letter of resignation. Schmitt said they were resigning because of Starbucks’ deplorable actions regarding the union and because their interactions with DM Elliott were unpleasant and they felt like they were being “pushed out.” Schmitt went on to voice complaints about their availability requests and that they and their coworkers felt nervous and uneasy at the store. Schmitt said the third reason for their resignation was because a partner had been acting very passive-aggressive toward them and others since they
10 were exposed as a union organizer. (GC Exh. 52.)

Schmitt came to the store about 15–20 minutes late for their 3:00 shift on May 31, which was their last day of work.¹⁶⁵ ASM Greene stepped in to cover the gap so that the previous shift supervisor would not have to stay late. SM Orthner was at the Southern & McClintock store that
15 afternoon. (Tr. 1865.)

Schmitt arrived wearing a Workers United shirt with a large logo, black nail polish, and had paint or dye on their body and clothes.¹⁶⁶ The dress code states, in pertinent part, “Starbucks
20 partners are expected to present a clean, neat and professional appearance when starting every shift. Clothing must fit properly and be clean, hemmed, wrinkle-free, in good repair, and safe and appropriate for a food service environment.” The dress code also provides that shirts, sweaters, and jackets may have only a small manufacturer’s logo, and that nail polish or artificial nail coverings are not permitted in the interest of food safety. (USDC2 Exh. 107.)

25 When Schmitt got to the store, in response to a comment about their shirt from a coworker, they loudly said, “What are they going to do, fire me? It’s my last day.” (Tr. 1724, 1765–1767.) The café was full, and Orthner observed that Schmitt’s comment caused customers to turn their heads. (Tr. 1725.) After a few minutes, Orthner asked Schmitt if they were going to clock in. Orthner told Schmitt they were out of dress code and asked if Schmitt had something
30 they could change into. Schmitt asked if they could have a minute, Orthner said they could, and to come talk to her when they were ready. (Tr. 1700–1704, 1725–1731, 1765–1767, 1866.) Schmitt recalled saying, in response to Orthner telling her that her coming in and stating, “What are they going to do, fire me? It’s my last day,” did not create a sense of warmth and welcome, “Well that’s shitty. Is Jessica [Elliott] going to create a sense of warmth and welcome too,
35 because I haven’t felt that anytime she’s come in?” (Tr. 1768.) Greene recalled Schmitt telling Orthner it was pretty shitty that Starbucks had her managing two stores. (Tr. 1869.)

When Schmitt returned, Orthner noticed they looked upset and asked to speak with them. Schmitt asked, “Are you going to fucking fire me?” Customers were present and in earshot and
40 Orthner observed they looked shocked. Orthner said that wasn’t the conversation they were having, and asked if Schmitt could change to comply with the dress code, which required changing shirts, removing the paint from their body and clothes, and removing the nail polish.

¹⁶⁵ When Schmitt did not show up at 3:00, Greene called them, and Schmitt said they were coming but they were running late.

¹⁶⁶ Schmitt denied having paint on their skin or clothes. (Tr. 1804.) Orthner testified that Schmitt had paint on their clothes and body. (Tr. 1700.) Greene recalled, “They had hand dye all over their hands.” Tr. 1866.)

Schmitt spoke on the phone with the Union’s attorney for about 10 minutes on the patio, and when they came back they had changed to comply with the dress code.¹⁶⁷ Orthner asked, “Are you going to show up as a leader today on the floor?” and Schmitt responded, “Yes. I’m retracting my two-week notice.” Orthner said she would need to check with Elliott about retracting the resignation. Elliott later informed Orthner they were moving forward with separation and Schmitt could not retract their resignation. (Tr. 1703–1711, 1731–1733, 1872.)

DM Elliott forwarded the notice of separation to Orthner, who decided to meet with Schmitt about it on the patio because her previous conversations with Schmitt that day had disturbed customers. (Tr. 1669, 1770.) The notice stated:

This document serves as Schmitt’s notice of separation. Schmitt used inappropriate language while on the clock and in the store when speaking with a store manager on multiple occasions.

This happened during a conversation in the back of the house with the SM and another partner on 5/12, where Schmitt used inappropriate language in a disparaging way in reference to a customer. DM, Jessica Elliott, and SM, Paul Elkins had a conversation with Schmitt on 5/19 to ensure Schmitt knew the expectations of how we communicate at Starbucks. Schmitt then used inappropriate language again, today, 5/31, during a conversation with the store manager.

This behavior violates our Mission and Values to communicate with dignity and respect.

(GC Exh. 53.) Orthner, Elliott, partner relations, and the legal team had input into Schmitt’s separation. (Tr. 1699.) Schmitt signed it and thanked Greene for being a great assistant store manager. Schmitt left and, as they were leaving, yelled, “Don’t forget to unionize.” (Tr. 1715, 1736.)

The virtual coach recommends separation for using profanity or making inappropriate gestures in the front of the house. Elliott also considered that Schmitt was already on a final written warning for mishandling cash. (R Exh. 33; Tr. 1942, 1952.)

Orthner had issued discipline for violations of the Mission and Values policy but not at the Southern & McClintock store. Following Schmitt’s separation, two employees at the store were disciplined for language. One was issued a written warning for cursing on the floor in a nonconfrontational manner by stating “Oh shit” while telling another partner a story with no customers present. The other was issued a written warning for saying “shit” while speaking with ASM Greene in the back of the house.¹⁶⁸ (R Exh. 32; Tr. 1715–1716.) An employee in the same district named Admire was separated from Starbucks on February 14, 2022, for violating the Mission and Values and code of conduct for using vulgar words, including the “N word,” saying

¹⁶⁷ Schmitt had another shirt in their car.

¹⁶⁸ Though after-the-fact discipline can at times be considered in assessing animus, I do not find these two written warnings helpful in deciding motivation for Schmitt’s termination as the factual scenarios comprising them differ in significant ways from Schmitt’s conduct. See *Con-Way Freight*, 366 NLRB No. 183 (2018).

“fuck off,” and calling a customer “dirty as hell” on February 4, 2022. (R Exh. 30; Tr. 1955–1956.)

B. Analysis

1. Enforcement of dress code policy

Complaint paragraphs 6(o) and 12 allege the Respondent violated Section 8(a)(1) when, about May 31, 2022, it enforced its overly broad dress code policy.

For the reasons stated above, I found that the shirt rule is overly broad. I therefore find its enforcement on May 31 by instructing Schmitt to change shirts violated Section 8(a)(1) as alleged.¹⁶⁹ See *MEK Arden, LLC v. NLRB*, 755 Fed. Appx. 12, 18 (unpub.) (D.C. Cir. 2018), enfg. 365 NLRB No. 109 (2017).

2. Enforcement of overly broad How We Communicate policy

Complaint 6(p) and 12 allege the Respondent violated Section 8(a)(1) when, about May 31, 2022, it enforced its overly broad How We Communicate policy.

The policy states, in pertinent part, “Partners are expected to communicate with other partners and customers in a professional and respectful manner at all times. The use of vulgar or profane language is not acceptable.” I adopt the reasoning and decision in *Starbucks Corp.* 2023 WL 5140070 (2023), where Judge Rosas found the rule was “[o]verly broad, vague, and is susceptible to application against Section 7 activity, especially during nonwork time” and that the Respondent failed to show that it was unable to advance its interests with a “more narrowly tailored rule.”

In closing brief, the General Counsel argues one incident of this rule’s unlawful enforcement occurred during SM Elkins and DM Elliott’s May 19 conversation with Schmitt. The conduct the General Counsel points to is asking Schmitt, “How do we communicate with fellow partners?” and Schmitt responding, after initially saying the company had fallen behind and was not as forward thinking as they thought they were, “Respectfully and honest.” (GC Br. 124.) The General Counsel asserts that Schmitt’s notice of separation which discussed Schmitt’s prior counseling about “expectations of how we communicate at Starbucks” on May 31 was another violation.

The reference in the separation notice is discussed in conjunction with Schmitt’s discharge, directly below. As to the May 19 interaction, I do not find asking Schmitt how they communicate at Starbucks was enforcement of the rule to restrict the exercise of Section 7 rights. Schmitt was being counseled about her reference to a coworker as a “cunt” and referring to a customer as a “fucking bitch,” neither of which, in the context in which they uttered them, was protected. Starbucks did not violate the Act by counseling Schmitt to watch their language on

¹⁶⁹ Because validity of dress code is subject to a different legal paradigm and does not rely on *Stericycle*, it does not suffer from the same flaw as some of the other allegations analyzed herein.

May 19, particularly considering reports that other partners were uncomfortable with it.¹⁷⁰ I therefore recommend dismissal of this complaint allegation.

3. Schmitt's termination

Complaint paragraphs 7(m), (n), (o), (p), 12, and 13 allege the Respondent violated Sections 8(a), (3), and (1) by discharging Schmitt because of their protected concerted activities and/or union activities, and that by discharging Schmitt the Respondent applied its Mission and Values rule and How We Communicate policy to restrict Schmitt's protected activities.

a. Protected concerted activity

Schmitt's March 8 incident report documenting a customer's antisemitic comment and other behavior that made her and coworkers feel uncomfortable was, without question, protected concerted activity. The General Counsel argues that Schmitt's referring to the customer as a "fucking bitch" or similar language when consoling her coworker was also protected because employees have a mutual interest in not being discriminated against or mistreated by customers. I agree that such a mutual interest exists, but I do not find Schmitt calling the customer a "fucking bitch" aided or protected the coworker or anyone else.¹⁷¹ The General Counsel asserts that Schmitt's question to SM Orthner on the workroom floor asking, "Are you going to fucking fire me?" and saying "That's shitty" were protected because they were uttered to protest enforcement of the Respondent's overly broad dress code.¹⁷² (GC Br. 147.) I agree that comments made while protesting a rule or policy, whether overly broad or otherwise, are generally protected.

An employee's right to engage in protected activity must be balanced against an employer's need to maintain order, discipline, and respect in its workplace. See *Piper Realty Co.*, 313 NLRB 1289, 1290 (1994). The Board has found that "an employee's outburst against a supervisor in a place where other employees could hear it would tend to affect workplace discipline by undermining the authority of the supervisor." *Kiewit Power Constructors Co.*, 355 NLRB 708, 709 (2010), enfd. 652 F.3d 22 (D.C. Cir. 2011); *Daimler Chrysler Corp.*, 344 NLRB 1324, 1329 (2005).

I find that Schmitt's conduct on May 31 did not retain protection under the highly specific and unique facts of this case. It is clear Schmitt came to the store on May 31 fully intending for it to be their last shift. They had given their two-week notice on May 18, having secured a fulltime job elsewhere. They came in late, wearing nail polish, some kind of paint or dye, and a Workers United T-shirt, and upon arrival said loudly to a coworker in the full café,

¹⁷⁰ For the reasons discussed regarding Schmitt's termination, I also find that allegations regarding enforcement of an overly broad rule during a time when different legal standards applied go beyond *Stericycle's* reach and present fundamental due process concerns.

¹⁷¹ Even if this was protected concerted activity, Schmitt was not disciplined for it at the time. The evidence shows that but for their conduct on May 31, Schmitt would not have been discharged.

¹⁷² Enforcement of the overly broad dress code in terminating Schmitt is not alleged in the complaint, and Schmitt's notice of separation does not mention their being out of dress code on May 31.

“What are they going to do, fire me? It’s my last day.”¹⁷³ This indicates they had no genuine interest in continuing to work at Starbucks. Rather, the intention of their actions was to create strife and incite the Respondent. Orthner, in a nonconfrontational manner, asked Schmitt if they planned to change into dress code and work. This was a legitimate inquiry given Schmitt’s entrance, and was aimed at figuring out if Schmitt honestly intended to work their final shift. Orthner’s inquiry about whether Schmitt intended to conform to the dress code partially concerned the T-shirt, but also partially concerned the nail polish and paint or dye, which are undisputedly not allowed. After a few minutes following a call with the Union counsel, Schmitt returned to the café and asked Orthner, “Are you going to fucking fire me?” and disingenuously attempted to rescind their resignation. Given Schmitt’s comment to their coworker when she entered the store, which clearly indicated they were goading the Respondent into firing them, I find Schmitt asking Orthner, in the café, “Are you going to fucking fire me?” was aimed at undermining management’s authority. It was not “animal exuberance” and its motives were not grounded in mutual aid or protection. See *Kiewit Power*, above at 710; *Prescott Industrial Products Co.*, 205 NLRB 51, 51–52 (1973)(improper motive a distinguishing factor).

For the foregoing reasons, I find that Schmitt was not discharged for her actions during the course of protected activity.¹⁷⁴ I also find that, by its conduct of discharging Schmitt, the Respondent did not apply the How We Communicate rule or its Mission and Values policy to restrict its employees’ protected activity, as alleged in complaint paragraphs 7(n) and (o). See *Copper River of Boiling Springs*, 360 NLRB 459, 481 (2014)(Notion that a rule regulating conduct disruptive to employees and guests cannot be applied when an employee says “Fuck” the employer in the presence of employees and guests is absurd).

Though I have adopted a previous decision finding certain specified provisions in the How We Communicate rule regarding partner communications with other partners and customers to be overly broad, I find mere application of this rule cannot be used against the Respondent considering the Board’s language regarding remedies in *Stericycle*, and fundamental due process concerns. Though *Stericycle*, supra., applies retroactively, it was decided on August

¹⁷³ I credit Orthner and Greene’s testimony that Schmitt had paint or dye on their hands. I found both to be credible witnesses based on their respective forthcoming demeanors. Greene’s testimony Schmitt using graffiti remover to remove their nail polish and scrubbing the dye off their hands was specific and compelling. Where Schmitt’s testimony conflicts with Orthner and Greene’s, I credit Orthner and Greene. Though there were minor discrepancies between them about details regarding precisely when and where certain events occurred, I do not find realistic to expect witnesses to recall in detail the minutiae of what occurred given the passage of time between the conduct and the hearing.

¹⁷⁴ I find consideration of the caselaw cited in this decision is a better fit here than a rigid application of the four-factor test in *Atlantic Steel*, 245 NLRB 814 (1979), under the facts of this case. Because Schmitt was discharged for their comments to management, however, I note that I would have come to the same conclusion under *Atlantic Steel*, giving significant weight to the place of the discussion as well as the mixed nature of the subject matter, some of which concerned legitimate instructions. The nature of the outburst, while relatively mild, involved offensive language in front of customers, and caused disruption of the customer experience.

In *NLRB v. Starbucks Corp.*, 679 F.3d 70, 80 (2d Cir. 2012), the Court of Appeals for the Second Circuit held that the *Atlantic Steel* test “is not applicable to determining section 7 protection for an employee who, while discussing employment issues, utters obscenities in the presence of customers” and remanded the case to the Board “to consider what standard it will apply in that context.” On remand, the Board did not articulate such standards, and instead decided the case under a *Wright Line* analysis.

2, 2023, over a year after Schmitt’s termination. At the time, the How We Communicate policy would not likely have been found overly broad under *Boeing Co.*, 365 NLRB No. 154 (2017), the applicable precedent at the time.¹⁷⁵ *Stericycle*, slip op. at 1, considered only “whether an employer’s work rule that does not expressly restrict employees’ protected concerted activity under Section 7 . . . is facially unlawful under Section 8(a)(1) of the Act.” It did not directly speak to retroactive application of an overly broad rule to discipline or discharge an employee. Of utmost significance, a primary justification for retroactive application of *Stericycle* was the minimal impact of the remedy resulting in “no particular injustice.” The Board stated, “[T]o the extent that a rule in a pending case is now found facially unlawful, even if it would have been upheld under *Boeing*, the remedy will be an order to rescind the rule, leaving the employer free to replace the rule with a more narrowly tailored substitute.” *Id.* slip op at 13. Reinstatement and backpay were clearly not among the remedies the Board intended to require in *Stericycle*.

In any event, the portion of the rule found overly broad under *Stericycle* concerned communications with other partners and customers. Other portions of the How We Communicate rule, not alleged to be unlawful, concern communications with management. Though Schmitt’s previous conduct was cited in the notice of separation, Schmitt was ultimately discharged for violating the Mission and Values policy, which is not alleged to be facially unlawful. The previous language and conduct was the subject of coaching, but Elliott provided unrefuted testimony that the “extremely inappropriate language in front of customers” was the reason for the discharge, with the recent final written warning for cash mishandling serving to affirm her decision. (Tr. 1952.) Schmitt was ultimately discharged for her communications with Orthner, a manager, not for a violation of the part of the How We Communicate rule found to be overly broad.

b. Wright Line analysis

The complaint alleges the Respondent discharged Schmitt because of her union activity and protected concerted activity. *Wright Line*, supra, applies to this allegation. As detailed above, I find the Respondent was not motivated by animus for union activity in discharging Schmitt. It is undisputed that Schmitt engaged in union activity and the Respondent knew it. For the reasons above, however, assuming the General Counsel established a prima facie case of discrimination based on union activity, I find the Respondent met their burden to prove Schmitt would have been discharged even absent their union activities. The only comparative employee in the same district who used profanity in the store in front of customers was also discharged. The General Counsel does not point to evidence that the Respondent tolerated profanity in the café store while customers were present to overhear such comments.

Based on the foregoing, I recommend dismissal of the complaint allegations regarding Schmitt’s termination.

¹⁷⁵ To the extent it matters, I would find the How We Communicate rule would have fallen into “Category 1” under *Boeing*, as it is akin to “harmonious interactions and relationships” rule the Board discussed in that decision. *Boeing*, slip op. at 3–4. As the parties have, understandably, not presented evidence or argument about the How We Communicate under *Boeing*’s standards, I decline to analyze the rule under that precedent beyond determining its category, which is apparent from the rule’s face and language.

CONCLUSIONS OF LAW

The Rules and Related Allegations—All Stores

1. By maintaining the following overly broad work rules in its Partner Guide, the Respondent has violated Section 8(a)(1) of the Act:
 - A Respectful Workplace is Everyone’s Responsibility
 - Dress Code and Personal Appearance
 - Personal Telephone Calls and Mail
 - Social Media
 - Video Recording, Audio Recording and Photography
 - Confidentiality
 - Conflicts of Interest
 - Media Inquiries
 - Requests for Partner Information
 - How We Communicate¹⁷⁶
 - Conflict Resolution
 - Corrective Action
 - Back cover rule prohibiting unauthorized distribution, use, or photocopying the Partner Guide.
2. By maintaining an overly broad Mutual Arbitration Agreement, the Respondent has violated Section 8(a)(1) of the Act.
3. By maintaining an overly broad Community Board Standards in its Store Operations Manual, and promulgating and maintaining an unlawfully overly broad update to these standards in its April 25, 2022, Weekly Update, the Respondent has violated Section 8(a)(1) of the Act.
4. By promulgating and maintaining an overly broad Back of House Posters, Notices and Communications rule in its Store Operations Manual, and promulgating and maintaining an overly broad update to this rule in its August 22, 2022, Weekly Update, the Respondent has violated Section 8(a)(1) of the Act.
5. By promulgating and maintaining an overly broad confidentiality provision in its January 16, 2023, Weekly Update, the Respondent has violated Section 8(a)(1) of the Act.
6. By maintaining the following overly broad work rules in its Standards of Business Conduct, the Respondent has violated Section 8(a)(1) of the Act:

¹⁷⁶ I adopted the reasoning set forth in *Starbucks Corp.*, above, 2023 WL 5140070 (2023). That decision includes an order to rescind the How We Communicate policy at specified stores and to post notices at the stores involved in that case. Because I find that an order at all stores where the Partner Guide was maintained is the appropriate remedy, this decision will include an order regarding this rule.

- How We Treat One Another
- Political Activities

- 5 7. By impliedly promising benefits and improved working conditions in order to discourage employees from supporting the Union or engaging in union activities, or to encourage employees to decertify their elected collective-bargaining representative, the Respondent has violated Section 8(a)(1) of the Act.
- 10 8. By impliedly threatening to withhold benefits in order to discourage employees from supporting the Union or engaging in union activities, the Respondent has violated Section 8(a)(1) of the Act.
- 15 9. By implying Starbucks could make unilateral changes regardless of whether its employees were represented by a collective-bargaining agreement, the Respondent has violated Section 8(a)(1) of the Act.
- 20 10. By implying Starbucks will refuse to bargain with the Union, the Respondent has violated Section 8(a)(1) of the Act.
- 25 11. By implying it would be futile for employees to be represented by a collective-bargaining representative, the Respondent has violated Section 8(a)(1) of the Act.

Scottsdale & Mayo Store

- 25 12. By issuing a corrective action form to Laila Dalton on January 25, 2022, the Respondent has violated Section 8(a)(3) and (1) of the Act.
- 30 13. By characterizing communications about understaffing as inappropriate and negative and citing them as a reason for discipline, the Respondent promulgated an overly broad rule prohibiting employees from engaging in protected concerted activities, and threatened discipline for engaging in protected concerted activities in violation of Section 8(a)(1) of the Act.
- 35 14. By enforcing a previously unenforced rule prohibiting employees from communicating with supervisors by text message, the Respondent has violated Section 8(a)(1) of the Act.
- 40 15. By investigating Laila Dalton’s off-duty visits to the store and issuing Dalton a corrective action form on April 4, 2022, for not wearing a face covering, the Respondent has violated Section 8(a)(4), (3), and (1) of the Act.
- 45 16. By interrogating employees about their protected concerted activities and union activities, the Respondent has violated Section 8(a)(1) of the Act.
17. By conducting an Ethics and Compliance investigation into Laila Dalton’s conduct, the Respondent has violated Sections 8(a)(4), (3), and (1) of the Act.

18. By stating that employees had damaged trust and would need to work to repair trust, the Respondent has threatened unspecified reprisals in violation of Section 8(a)(1) of the Act.

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19. By creating the impression that their union activities were under surveillance through increased management presence at the store, the Respondent has violated Section 8(a)(1) of the Act.

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20. By issuing Tyler Gillette a documented coaching for being out of dress code, the Respondent has violated Section 8(a)(4), (3), and (1) of the Act.

21. By issuing subpoenas to Laila Dalton, Tyler Gillette, Bill Whitmire, and Alyssa Sanchez, the Respondent has violated Section 8(a)(1) of the Act.

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Indian School & 107th Store

22. By interrogating employees about their union activities, threatening employees with unspecified reprisals, loss of benefits, and termination, the Respondent has violated Section 8(a)(1) of the Act.

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23. By promulgating an overly broad rule or directive that employees should not keep their union activities secret, the Respondent has violated Section 8(a)(1) of the Act.

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24. By discharging Millyana Romero, the Respondent has violated Section 8(a)(3) and (1) of the Act.

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Southern & McClintock Store

25. By enforcing its overly broad dress code policy, the Respondent has violated Section 8(a)(1) of the Act.

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All Stores

26. The above unfair labor practices affect commerce within the meaning of Section 2(6) and (7) of the Act.

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REMEDY

Having found that the Respondent has engaged in certain unfair labor practices, I shall order it to cease and desist therefrom and to take certain affirmative action designed to effectuate the policies of the Act.

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The Rules and Related Allegations–All Stores

Having found the Respondent maintained overly broad rules and policies in its 2020 and 2023 Partner Guide, its Store Operations Manual, Weekly Updates, and Standards of Business Conduct, and through certain directives, the Respondent shall be ordered to cease and desist from maintaining these rules and rescind these rules and advise employees in writing that the unlawful rules are no longer being maintained.

Having found the Respondent maintained an overly broad Mutual Arbitration Agreement, the Respondent shall be ordered to cease and desist from maintaining it, and to rescind the Mutual Arbitration Agreement and notify its employees in writing that the unlawful agreement is no longer being maintained.

I have also found that, through various rules and directives detailed herein, the Respondent has, on a corporatewide basis at its U.S. stores, impliedly promised benefits to discourage employees from supporting the Union or engaging in union activities and/or to encourage them to decertify the Union, threatened to withhold benefits to discourage employees from supporting the Union or engaging in union activities, implied it could make unilateral changes regardless of union representation, implied it would refuse to bargain with the Union, and implied that it would be futile to be represented by a collective-bargaining representative. The Respondent shall be ordered to cease and desist from this conduct, and rescind these rules and directives, including the dress code rules in the 2023 Partner Guide and January 16, 2023 Weekly Update (Section I.G above), footnotes 1, 4, 6, 7, and 8 in the 2023 Partner Guide (Section I.H above), certain portions of the 2023 Partner Guide’s preface and other language at the beginning of the section, Time Away from Work and Total Rewards: Starbucks Benefits Overview (Section I.J above). These communications strike at the heart of organizing activity and were clearly intended to nip any organizing activity in the bud and thwart existing activity in a broad-based and systemic manner.

Where an employer maintains rules on a companywide basis, the appropriate remedy is to order the employer to post an appropriate notice at all of its facilities where the rule has been or is in effect. See *Target Corp.*, 359 NLRB 953, 955 (2013); *Guardsmark, LLC v. NLRB*, 475 F.3d 369, 381 (D.C. Cir. 2007). Accordingly, for the specified companywide rules and policies in the Respondent’s 2020 and 2023 Partner Guide, its Store Operations Manual, Weekly Updates, and Standards of Business Conduct, and through certain directives found to be overly broad, as well as for the Mutual Arbitration Agreement, the Respondent shall be ordered to post the attached notice marked as “Appendix A” in all of the stores where these rules were maintained.

The Respondent’s broad-based corporatewide attack on its employees’ right to choose union representation convinces me that the following enhanced remedies, requested by the General Counsel, are also appropriate.¹⁷⁷ In order to fully dissipate the effects of the Respondent’s widespread and egregious interference with employee rights and in view of its liberal use of its various online platforms to apprise partners nationwide of its messaging, including the promises, threats, and statements of futility and intent to thwart bargaining, I will recommend that Respondent be ordered to post the standard Board notice, as well as the Board’s Explanation of Rights poster, at each of its U.S. corporate-owned stores for one full year and

¹⁷⁷ I note that had maintenance of rules been the only violations, I would not have ordered enhanced remedies.

additionally be ordered to electronically distribute, via its Partner Hub, these two documents electronically to all partners working in its U.S. corporate-owned stores.

I additionally find the Respondent’s conduct is sufficiently widespread and serious such that a notice reading and a broad order are warranted to dissipate the chilling effect of the violations on its partners’ willingness to exercise their Section 7 rights.¹⁷⁸ See *Gavilon Grain, LLC*, 371 NLRB No. 79, slip op. at 1 (2022); *Noah’s Ark*, 372 NLRB No. 80 (2023). The complaint requests an order requiring the Respondent to post on its Partner Hub a video recording (including audio) of a high-level Respondent official at Respondent’s Corporate or Nationwide level (an individual in a position such as Chief Executive Officer or Vice President of Human Resources) reading the Notice to Employees and Explanation of Rights in the presence of a Board agent, and, upon request of the Union, a representative of the Union, or, at the Respondent’s option, post on its Partner Hub a video recording (including audio) of a Board agent reading the Notice to Employees and Explanation of Rights in the presence of a high-level Respondent official at Respondent’s Corporate or Nationwide level (an individual in a position such as Chief Executive Officer or Vice President of Human Resources) in the presence of a Board agent and, upon request of the Union, a representative of the Union. I find such an order is a just and appropriate remedy.

Finally, based on the Respondent’s proclivity for violating the Act, the cease-and-desist order will be broad, *Hickmott Foods*, 242 NLRB 1357 (1979).

The Scottsdale & Mayo and Indian School & 107th Stores

When an employer commits at least two unfair labor practices at multiple locations within the same geographical area, the Board orders posting of a common notice at each location “when it finds ‘considerable similarity in the nature of the unfair labor practices’ committed at the different locations.” *Wal-Mart Stores*, 350 NLRB 879, 885 (2007) (quoting *Albertson’s, Inc.*, 307 NLRB 787 (1992), enf. denied per curiam 8 F.3d 20 (5th Cir. 1993)). In addition to the common violations above, the Respondent at both the Scottsdale & Mayo and the Indian School & 107th stores disciplined/discharged known union supporters in violation of Section 8(a)(3) and (1), and threatened and interrogated them, and promulgated unlawful rules in violation of Section 8(a)(1). As such, a combined notice is appropriate.

Having discriminatorily discharged employee Millyana Romero, the Respondent shall be ordered to cease and desist from this conduct, and to restore the status quo ante by offering her reinstatement and making her whole for any loss of earnings and other benefits. Backpay shall be computed in accordance with *F. W. Woolworth Co.*, 90 NLRB 289 (1950), with interest at the rate prescribed in *New Horizons*, 283 NLRB 1173 (1987), compounded daily as prescribed in *Kentucky River Medical Center*, 356 NLRB 6 (2010).

In addition, in accordance with the Board’s decision in *Thryv, Inc.*, 372 NLRB No. 22 (2022), the Respondent shall compensate Romero for any direct or foreseeable pecuniary harms incurred as a result of the unlawful adverse actions against her, including reasonable search-for-

¹⁷⁸ By this point, numerous Board and ALJ decisions have found the Respondent committed unfair labor practices at stores throughout the country. I take administrative notice of the cases cited in Judge Anzalone’s September 28, 2023, decision, supplemented by additional decisions issued since that time.

work and interim employment expenses, if any, regardless of whether these expenses exceed interim earnings. Compensation for these harms shall be calculated separately from taxable net backpay, with interest at the rate prescribed in *New Horizons*, supra, compounded daily as prescribed in *Kentucky River Medical Center*, supra.

The Respondent shall file a report with the Social Security Administration allocating backpay to the appropriate calendar quarters. The Respondent shall also compensate Romero for the adverse tax consequences, if any, of receiving one or more lump sum backpay awards covering periods longer than one year, *Latino Express, Inc.*, 359 NLRB 518 (2012).

Having issued a corrective action form to Laila Dalton on January 25, 2022, for engaging in protected concerted activities and union activities, the Respondent shall be ordered to cease and desist from this conduct and restore the status quo ante by rescinding the CAF final written warning issued to her and making appropriate changes to her personnel files and/or other files it maintains in any form. Having unlawfully investigated Laila Dalton's off-duty visits to the store and issuing Dalton a corrective action form on April 4, 2022, for not wearing a face covering, the Respondent will be ordered to cease and desist from this conduct and restore the status quo ante by rescinding the written warning CAF and removing it and any reference to the unlawful investigation and ensuing CAF from its files. Having unlawfully engaged in an Ethics and Compliance investigation into Laila Dalton, the Respondent shall be ordered to cease and desist from this conduct and remove any reference to it from its files.

Having found the Respondent issued a discriminatory documented coaching CAF to Tyler Gillette for being out of dress code, the Respondent shall be ordered to cease and desist from this conduct and remove any reference to it from its files.

Having found that, by characterizing communications about understaffing as inappropriate and negative and citing them as a reason for discipline, the Respondent promulgated an overly broad rule prohibiting employees from engaging in protected concerted activities, and threatened discipline for engaging in protected concerted activities in violation of Section 8(a)(1) of the Act, the Respondent shall rescind this rule and notify employees, in writing that the rule has been rescinded and will not be relied upon to discipline employees. Having found the Respondent promulgated an overly broad rule or directive that employees should not keep their union activities secret, the Respondent shall be ordered to cease and desist from this conduct and notify its employees, in writing, that this rule has been rescinded.

Having found that the Respondent enforced a previously unenforced rule prohibiting employees from communicating with supervisors by text message, interrogated employees about their protected concerted activities and union activities, threatened unspecified reprisals, loss of benefits, and termination, and created the impression that employees' union activities were under surveillance, the Respondent shall be ordered to cease and desist from this conduct.

Having found the Respondent unlawfully issued subpoenas to Laila Dalton, Tyler Gillette, Bill Whitmire, and Alyssa Sanchez, the Respondent shall be ordered to cease and desist from this conduct. While normally withdrawal of the subpoenas would be an appropriate remedy, the 10(j) proceedings for which they were issued have concluded, the subpoenas no longer have any effect, and the issue is therefore moot.

The Respondent will also be ordered to post the notice attached as “Appendix B” as well as the Board's Explanation of Employee Rights poster, at each of the two stores, distribute them electronically, and have read them aloud to employees at each of the stores by a district manager or regional director in the presence of a Board agent. See *Absolute Healthcare d/b/a Curaleaf Arizona*, 372 NLRB No. 16 (2022) (notice reading appropriate where high-level management officials openly participated in a widely disseminated course of unlawful conduct). Finally, based on the Respondent’s proclivity for violating the Act, the cease-and-desist order will be broad, *Hickmott Foods*, 242 NLRB 1357 (1979).

The Southern & McClintock Store

Having found the Respondent enforced its overly broad dress code policy, the Respondent shall be ordered to cease and desist from this conduct, and to post the notice attached at “Appendix C.”

On these findings of fact and conclusions of law and on the entire record, I issue the following recommended order.¹⁷⁹

ORDER

The Respondent, Phoenix, Arizona, and Tempe, Arizona, its officers, agents, successors, and assigns, shall

At all U.S. corporate-owned stores:

1. Cease and desist from

(a) Maintaining unlawful rules in its Partner Guide, including provisions of the following rules:

- A Respectful Workplace is Everyone’s Responsibility
- Dress Code and Personal Appearance
- Personal Telephone Calls and Mail
- Social Media
- Video Recording, Audio Recording and Photography
- Confidentiality
- Conflicts of Interest
- Media Inquiries
- Requests for Partner Information
- How We Communicate¹⁸⁰

¹⁷⁹ If no exceptions are filed as provided by Sec. 102.46 of the Board’s Rules and Regulations, the findings, conclusions, and recommended Order shall, as provided in Sec. 102.48 of the Rules, be adopted by the Board and all objections to them shall be deemed waived for all purposes.

¹⁸⁰ I adopted the reasoning set forth in *Starbucks Corp.*, above, 2023 WL 5140070 (2023). That decision includes an order to rescind the How We Communicate policy at specified stores and to post

- Conflict Resolution
- Corrective Action
- Back cover rule prohibiting unauthorized distribution, use, or photocopying the Partner Guide.

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(b) Maintaining an overly broad Mutual Arbitration Agreement.

(c) Maintaining overly broad work rules in its Standards of Business Conduct, including provisions of the following rules:

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- How We Treat One Another
- Political Activities

(d) Maintaining overly broad Community Board Standards in its Store Operations Manual.

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(e) Promulgating and maintaining an overly broad update to the Community Board Standards in its Weekly Update.

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(f) Promulgating and maintaining an overly broad Back of House Posters, Notices and Communications rule in its Store Operations Manual.

(g) Promulgating and maintaining an overly broad update to the Back of House Posters, Notices and Communications rule in its Weekly Update.

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(h) Promulgating and maintaining an overly broad confidentiality provision in its Weekly Update.

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(i) Impliedly promising benefits in order to discourage employees from supporting the Union or engaging in union activities or to encourage employees to decertify their elected collective-bargaining representative.

(j) Impliedly threatening to withhold benefits in order to discourage employees from supporting the Union or engaging in union activities.

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(k) Implying Starbucks can make unilateral changes regardless of whether its employees were represented by a collective-bargaining agreement.

(l) Implying Starbucks will refuse to bargain with the Union.

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(m) Implying it would be futile for employees to be represented by a collective-bargaining representative.

notices at the stores involved in that case. Because I find that an order at all stores where the Partner Guide was maintained is the appropriate remedy, this decision will include an order regarding this rule.

(n) In any other manner restraining or coercing employees in the exercise of the rights guaranteed them by Section 7 of the Act.

2. Take the following affirmative action necessary to effectuate the policies of the Act.

(a) Rescind the provisions of the following rules in the Partner Guide found to be overly broad:

- A Respectful Workplace is Everyone’s Responsibility
- Dress Code and Personal Appearance
- Personal Telephone Calls and Mail
- Social Media
- Video Recording, Audio Recording and Photography
- Confidentiality
- Conflicts of Interest
- Media Inquiries
- Requests for Partner Information
- How We Communicate¹⁸¹
- Conflict Resolution
- Corrective Action
- Back cover rule prohibiting unauthorized distribution, use, or photocopying the Partner Guide.

(b) Electronically furnish employees with an insert for the current Partner Guide that (1) advises that these unlawful provisions have been rescinded, or (2) provides lawfully worded provisions to replace the unlawful provisions; or publish and distribute to employees a revised 2023 Partner Guide that (1) does not contain the unlawful provisions, or (2) provides lawfully worded provisions.

(c) Rescind the overly broad provisions of the Mutual Arbitration Agreement.

(d) Furnish employees with an insert for the current Mutual Arbitration Agreement that (1) advises that these unlawful provisions have been rescinded, or (2) provides lawfully worded provisions; or publish and distribute to employees a revised Mutual Arbitration Agreement that (1) does not contain the unlawful provisions, or (2) provides lawfully worded provisions.¹⁸²

(e) Rescind the overly broad work rules in its Standards of Business Conduct, including provisions of the following rules:

¹⁸¹ I adopted the reasoning set forth in *Starbucks Corp.*, above, 2023 WL 5140070 (2023). That decision includes an order to rescind the How We Communicate policy at specified stores and to post notices at the stores involved in that case. Because I find that an order at all stores where the Partner Guide was maintained is the appropriate remedy, this decision will include an order regarding this rule.

¹⁸² It is unclear from the record whether the arbitration agreements are maintained in paper form, electronic form, or some hybrid depending on when signed. The remedy in any given employee’s case should reflect the form of distribution and signature.

- How We Treat One Another
- Political Activities

- 5 (f) Electronically furnish employees with an insert for the current Standards of Business Conduct that (1) advises that these unlawful provisions have been rescinded, or (2) replaces the unlawful provisions with lawfully worded provisions; or publish and distribute to employees revised Standards of Business Conduct that (1) does not contain the unlawful provisions, or (2) provides lawfully worded provisions.
- 10 (g) Rescind the overly broad Community Board Standards in its Store Operations Manual and the overly broad update to the Community Board Standards in the Weekly Update.
- 15 (h) Rescind the overly broad Back of House Posters, Notices and Communications rule in its Store Operations Manual and the overly broad update to the Back of House Posters, Notices and Communications rule in the Weekly Update.
- 20 (i) Rescind the overly broad confidentiality provision in its Weekly Update.
- 25 (j) For subparts (g), (h), and (i) directly above, electronically furnish employees with an insert for the unlawful provisions in the Store Operations Manual and Weekly Updates that (1) advises that these unlawful provisions have been rescinded, or (2) replaces the unlawful provisions with lawfully worded provisions; or publish and distribute to employees a revised Store Operations Manual and Weekly Updates that (1) do not contain the unlawful provisions, or (2) provide lawfully worded provisions.
- 30 (k) Rescind the provisions in the 2023 Partner Guide and Weekly Updates that impliedly promise to improve working conditions if employees refrain from supporting the Union or engaging in union activities or to encourage employees to decertify their elected collective-bargaining representative, and notify employees in writing that this has been done.¹⁸³
- 35 (l) Rescind footnotes 1, 4, 6, 7, and 8 of the 2023 Partner Guide and notify employees in writing that this has been done.
- 40 (m) Rescind the language in the Preface of the 2023 Partner Guide and language preceding the section entitled Time Away from Work and Total Rewards: Starbucks Benefits Overview in the 2023 Partner Guide and notify employees in writing this has been done.
- (n) Within 14 days after service by the Region, post at each of its U.S. based company-owned stores copies of the attached notice marked “Appendix A” and the Board’s

¹⁸³ The order does not recommend replacing the language, as its mere presence is the problem, implying a necessary contrast between stores with union activity/representation and stores without. The same holds true for the remainder of the allegations involving the 2023 Partner Guide.

Explanation of Employee Rights poster.¹⁸⁴ Copies of the Notice, on forms provided by the Regional Director for Region 28, after being signed by the Respondent's authorized representative, and the Explanation of Employee Rights shall be posted by the Respondent and maintained for 365 consecutive days in conspicuous places including all places where notices to employees are customarily posted. In addition to physical posting of paper notices, the notices shall be distributed electronically, such as by email, posting on an intranet or an internet site, and/or other electronic means, if the Respondent customarily communicates with its employees by such means. Reasonable steps shall be taken by the Respondent to ensure that the notices are not altered, defaced, or covered by any other material. In the event that, during the pendency of these proceedings, the Respondent has gone out of business or closed any of the facilities involved in these proceedings, the Respondent shall duplicate and mail, at its own expense, a copy of the notice to all current employees and former employees employed by the Respondent at any time since September 9, 2021.

- (o) Within 14 days after service by the Region, post on its Partner Hub a video recording (including audio) of a high-level Respondent official at the Respondent's Corporate or Nationwide level (an individual in a position such as Chief Executive Officer or Vice President of Human Resources) reading the Notice to Employees and Explanation of Rights in the presence of a Board agent, and, upon request of the Union, a representative of the Union, or, at the Respondent's option, post on its Partner Hub a video recording (including audio) of a Board agent reading the Notice to Employees and Explanation of Rights in the presence of a high-level Respondent official at the Respondent's Corporate or Nationwide level (an individual in a position such as Chief Executive Officer or Vice President of Human Resources) in the presence of a Board agent and, upon request of the Union, a representative of the Union.
- (p) Within 21 days after service by the Region, file with the Regional Director a sworn certification of a responsible official on a form provided by the Region attesting to the steps that the Respondent has taken to comply.

At its Scottsdale & Mayo and Indian School & 107th Store:

- 1. Cease and desist from
 - (a) Discharging, disciplining, investigating, or otherwise discriminating against any employee for their protected concerted activities or for supporting Workers United or any other union.

¹⁸⁴ The Board's poster is located at [employee-rights-under-the-nlra-poster-two-page-85-x-11-versionpdf-2022.pdf](https://www.nlrb.gov/employee-rights-under-the-nlra-poster-two-page-85-x-11-versionpdf-2022.pdf) (nlrb.gov).

If this Order is enforced by a judgment of a United States court of appeals, the words in the notice reading "Posted by Order of the National Labor Relations Board" shall read "Posted Pursuant to a Judgment of the United States Court of Appeals Enforcing an Order of the National Labor Relations Board."

- (b) Promulgating an overly broad rule by characterizing communications about understaffing or other working conditions as inappropriate and negative.
- 5 (c) Promulgating a directive that employees should not keep their union activities secret and should notify management about them.
- 10 (d) Threatening employees with discipline, unspecified reprisals, loss of benefits, and termination for engaging in protected concerted activities and for activities supporting the Union.
- (e) Enforcing a previously unenforced rule prohibiting employees from communicating with supervisors and managers by text message.
- 15 (f) Interrogating employees about their protected concerted activities and union activities.
- (g) Creating the impression that employees' union activities are under surveillance.
- 20 (h) Issuing coercive subpoenas to employees that seek their protected communications, including their communications with the Union and communications with other employees about protected activities.
- 25 (i) In any other manner restraining or coercing employees in the exercise of the rights guaranteed them by Section 7 of the Act.
- 2. Take the following affirmative action necessary to effectuate the policies of the Act
- 30 (a) Within 14 days from the date of the Board's Order, offer Millyana Romero full reinstatement to her former job or, if that job no longer exists, to a substantially equivalent position, without prejudice to her seniority or any other rights or privileges previously enjoyed.
- 35 (b) Make Millyana Romero whole for any loss of earnings and other benefits suffered as a result of the discrimination against her in the manner set forth in the remedy section of this decision.
- 40 (c) Within 14 days from the date of the Board's Order, remove from its files any reference to Millyana Romero's unlawful discharge, and within 3 days thereafter notify her in writing that this has been done and that the discharge will not be used against her in any way.
- 45 (d) Preserve and, within 14 days of a request, or such additional time as the Regional Director may allow for good cause shown, provide at a reasonable place designated by the Board or its agents, all payroll records, social security payment records, timecards, personnel records and reports, and all other records, including an electronic copy of such records if stored in electronic form, necessary to analyze the amount of backpay due under the terms of this Order.

- (e) Within 14 days from the date of the Board’s order, rescind the Corrective Action Forms issued to Laila Dalton on January 25, 2022, and April 24, 2022, and remove any reference to them in any form, and within 3 days notify her in writing this has been done and the Corrective Action Forms will not be used against her in any way.
- (f) Within 14 days of the date of the Board’s order, rescind and delete any reference to the unlawful investigation into Laila Dalton’s off-duty visits to the store and rescind any reference to the Ethics and Compliance investigation in any form, and within 3 days notify her in writing this has been done and that the investigations will not be used against her in any way.
- (g) Within 14 days of the Board’s Order rescind Tyler Gillette’s documented coaching issued on July 1, 2022, and remove any reference to it in any form, and within 3 days notify them in writing this has been done and that the documented coaching will not be used against them in any way.
- (h) Within 14 days after service by the Region, post at its stores at Scottsdale & Mayo in Phoenix Arizona, and its Indian School & 107th in Avondale, Arizona, copies of the attached notice marked “Appendix B” and the Board’s Explanation of Employee Rights poster.”¹⁸⁵ Copies of the notice, on forms provided by the Regional Director for Region 28, after being signed by the Respondent’s authorized representative, and the Explanation of Employee Rights shall be posted by the Respondent and maintained for 60 consecutive days in conspicuous places including all places where notices to employees are customarily posted. In addition to physical posting of paper notices, the notices shall be distributed electronically, such as by email, posting on an intranet or an internet site, and/or other electronic means, if the Respondent customarily communicates with its employees by such means. Reasonable steps shall be taken by the Respondent to ensure that the notices are not altered, defaced, or covered by any other material. In the event that, during the pendency of these proceedings, the Respondent has gone out of business or closed either facility involved in these proceedings, the Respondent shall duplicate and mail, at its own expense, a copy of the notice to all current employees and former employees employed by the Respondent at any time since January 21, 2022.
- (i) Within 14 days after service by the Region, hold a meeting or meetings, scheduled to ensure the widest possible attendance, at which the attached notice at Appendix B is to be read to employees by a Board agent in the presence of a responsible management official and an agent of the Union if the Union so desires.
- (j) Within 21 days after service by the Region, file with the Regional Director a sworn certification of a responsible official on a form provided by the Region attesting to the steps that the Respondent has taken to comply.

¹⁸⁵ If this Order is enforced by a judgment of a United States court of appeals, the words in the notice reading “Posted by Order of the National Labor Relations Board” shall read “Posted Pursuant to a Judgment of the United States Court of Appeals Enforcing an Order of the National Labor Relations Board.”

At its Sothern & McClintock Store:

1. Cease and desist from

(a) Enforcing its overly broad dress code policy.

(b) In any like or related manner restraining or coercing employees in the exercise of the rights guaranteed them by Section 7 of the Act.

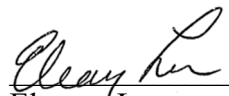
2. Take the following affirmative action necessary to effectuate the policies of the Act

(a) Within 14 days after service by the Region, post at its store at Southern & McClintock in Tempe, Arizona, copies of the attached notice marked "Appendix C."¹⁸⁶ Copies of the notice, on forms provided by the Regional Director for Region 28, after being signed by the Respondent's authorized representative, shall be posted by the Respondent and maintained for 60 consecutive days in conspicuous places including all places where notices to employees are customarily posted. In addition to physical posting of paper notices, the notices shall be distributed electronically, such as by email, posting on an intranet or an internet site, and/or other electronic means, if the Respondent customarily communicates with its employees by such means. Reasonable steps shall be taken by the Respondent to ensure that the notices are not altered, defaced, or covered by any other material. In the event that, during the pendency of these proceedings, the Respondent has gone out of business or closed the facility involved in these proceedings, the Respondent shall duplicate and mail, at its own expense, a copy of the notice to all current employees and former employees employed by the Respondent at any time since May 31, 2022.

(b) Within 21 days after service by the Region, file with the Regional Director a sworn certification of a responsible official on a form provided by the Region attesting to the steps that the Respondent has taken to comply.

For each of the above categories of store(s), as well as for the allegations regarding the Power & Baseline store in Mesa, Arizona, IT IS FURTHER ORDERED that the complaint is dismissed insofar as it alleges violations of the Act not specifically found.

Dated, Washington, D.C. June 7, 2024


Eleanor Laws
Administrative Law Judge

¹⁸⁶ If this Order is enforced by a judgment of a United States court of appeals, the words in the notice reading "Posted by Order of the National Labor Relations Board" shall read "Posted Pursuant to a Judgment of the United States Court of Appeals Enforcing an Order of the National Labor Relations Board."

APPENDIX A

NOTICE TO EMPLOYEES

Posted by Order of the
National Labor Relations Board
An Agency of the United States Government

The National Labor Relations Board has found that we violated Federal labor law and has ordered us to post and obey this notice.

FEDERAL LAW GIVES YOU THE RIGHT TO

Form, join, or assist a union
Choose representatives to bargain with us on your behalf
Act together with other employees for your benefit and protection
Choose not to engage in any of these protected activities.

WE WILL NOT interfere with, restrain, or coerce you in the exercise of the above rights.

WE WILL NOT maintain overly broad work rules in our Partner Guide, including the following rules:

- A Respectful Workplace is Everyone's Responsibility
- Dress Code and Personal Appearance
- Personal Telephone Calls and Mail
- Social Media
- Video Recording, Audio Recording and Photography
- Confidentiality
- Conflicts of Interest
- Media Inquiries
- Requests for Partner Information
- How We Communicate¹⁸⁷
- Conflict Resolution
- Corrective Action
- Back cover rule prohibiting unauthorized distribution, use, or photocopying the Partner Guide.

WE WILL NOT maintain an overly broad Mutual Arbitration Agreement.

¹⁸⁷ I adopted the reasoning set forth in *Starbucks Corp.*, above, 2023 WL 5140070 (2023). That decision includes an order to rescind the How We Communicate policy at specified stores and to post notices at the stores involved in that case. Because I find that an order at all stores where the Partner Guide was maintained is the appropriate remedy, this decision will include an order regarding this rule.

WE WILL NOT maintain overly broad Community Board Standards in our Store Operations Manual and **WE WILL NOT** promulgate and maintain an overly broad update to these standards in our Weekly Updates.

WE WILL NOT promulgate and maintain an overly broad Back of House Posters, Notices, and Communications rule in our Store Operations Manual, and **WE WILL NOT** promulgate and maintain an overly broad update to this rule in our Weekly Updates.

WE WILL NOT promulgate and maintain an overly broad confidentiality provision in our Weekly Updates.

WE WILL NOT maintain overly broad work rules in our Standards of Business Conduct, including the following rules:

- How We Treat One Another
- Political Activities

WE WILL NOT through promulgation and maintenance of provisions in our 2023 Partner Guide and Weekly Updates impliedly promise improved terms of employment and working conditions if employees refrain from supporting the Union or engaging in union activities or to encourage employees to decertify their elected collective-bargaining representative.

WE WILL NOT through issuance of footnotes in the 2023 Partner Guide impliedly threaten to withhold benefits to employees who engage in protected concerted activity and/or who are represented by a collective-bargaining agreement.

WE WILL NOT through promulgation and maintenance of language in our 2023 Partner Guide imply that we can make unilateral changes to your terms and conditions of employment regardless of whether you are represented by a collective-bargaining representative.

WE WILL NOT through promulgation and maintenance of language in our 2023 Partner Guide imply that we will refuse to bargain with your collective-bargaining representative regarding changes to the terms and conditions of your employment.

WE WILL NOT through promulgation and maintenance of language in our 2023 Partner Guide implicitly threaten that it would be futile for you to be represented by a collective-bargaining representative.

WE WILL Rescind the provisions of the following rules in the Partner Guide found to be overly broad:

- A Respectful Workplace is Everyone's Responsibility
- Dress Code and Personal Appearance
- Personal Telephone Calls and Mail
- Social Media
- Video Recording, Audio Recording and Photography
- Confidentiality

- Conflicts of Interest
- Media Inquiries
- Requests for Partner Information
- How We Communicate¹⁸⁸
- Conflict Resolution
- Corrective Action
- Back cover rule prohibiting unauthorized distribution, use, or photocopying the Partner Guide.

and **WE WILL** electronically furnish you with an insert for the current Partner Guide that (1) advises that these unlawful provisions have been rescinded, or (2) provides lawfully worded provisions to replace the unlawful provisions; or publish and distribute to you a revised Partner Guide that (1) does not contain the unlawful provisions, or (2) provides lawfully worded provisions.

WE WILL rescind the overly broad provisions of the Mutual Arbitration Agreement and **WE WILL** furnish you with an insert for the current Mutual Arbitration Agreement that (1) advises that these unlawful provisions have been rescinded, or (2) provides lawfully worded provisions; or publish and distribute to you a revised Mutual Arbitration Agreement that (1) does not contain the unlawful provisions, or (2) provides lawfully worded provisions

WE WILL Rescind the overly broad work rules in our Standards of Business Conduct, including provisions of the following rules:

- How We Treat One Another
- Political Activities

and **WE WILL** electronically furnish you with an insert for the current Standards of Business Conduct that (1) advises that these unlawful provisions have been rescinded, or (2) replaces the unlawful provisions with lawfully worded provisions; or publish and distribute to you revised Standards of Business Conduct that (1) does not contain the unlawful provisions, or (2) provides lawfully worded provisions.

WE WILL rescind the overly broad Community Board Standards in our Store Operations Manual and the overly broad update to the Community Board Standards in the Weekly Update; **WE WILL** rescind the overly broad Back of House Posters, Notices and Communications rule in its Store Operations Manual and the overly broad update to the Back of House Posters, Notices and Communications rule in the Weekly Update; **WE WILL** rescind the overly broad confidentiality provision in the Weekly Update; and **WE WILL** electronically furnish employees with an insert for the unlawful provisions in the Store Operations Manual and Weekly Updates that (1) advises that these unlawful provisions have been rescinded, or (2) replaces the unlawful provisions with lawfully worded provisions; or publish and distribute to employees a

¹⁸⁸ I adopted the reasoning set forth in *Starbucks Corp.*, above, 2023 WL 5140070 (2023). That decision includes an order to rescind the How We Communicate policy at specified stores and to post notices at the stores involved in that case. Because I find that an order at all stores where the Partner Guide was maintained is the appropriate remedy, this decision will include an order regarding this rule.

revised Store Operations Manual and Weekly Updates that (1) do not contain the unlawful provisions, or (2) provide lawfully worded provisions.

WE WILL rescind the provisions in the 2023 Partner Guide and Weekly Updates that impliedly promise to improve working conditions if employees refrain from supporting the Union or engaging in union activities or to encourage employees to decertify their elected collective-bargaining representative, and **WE WILL** notify employees in writing that this has been done.

WE WILL rescind footnotes 1, 4, 6, 7 and 8 of the 2023 Partner Guide, that impliedly threaten to withhold benefits from employees who engage in protected activity and/or who are represented by a collective-bargaining representative, and **WE WILL** notify employees in writing that this has been done.

WE WILL rescind the language in the Preface of the 2023 Partner Guide and language preceding the section entitled Time Away from Work and Total Rewards: Starbucks Benefits Overview in the 2023 Partner Guide and **WE WILL** notify employees in writing that this has been done.

WE WILL NOT in any other manner interfere with, restrain, or coerce you in the exercise of the rights guaranteed you by Section 7 of the Act.

STARBUCKS CORPORATION

(Employer)

Dated _____

By _____

(Representative)

(Title)

The National Labor Relations Board is an independent Federal agency created in 1935 to enforce the National Labor Relations Act. It conducts secret-ballot elections to determine whether employees want union representation and it investigates and remedies unfair labor practices by employers and unions. To find out more about your rights under the Act and how to file a charge or election petition, you may speak confidentially to any agent with the Board's Regional Office set forth below. You may also obtain information from the Board's website: www.nlrb.gov.

2600 North Central Avenue, Suite 1800, Phoenix, AZ 85004-3099

(602) 640-2160, Hours: 8:15 a.m. to 4:45 p.m.

The Administrative Law Judge's decision can be found at <https://www.nlrb.gov/case/28-CA-289622> or by using the QR code below. Alternatively, you can obtain a copy of the decision from the Executive Secretary, National Labor Relations Board, 1015 Half Street, S.E., Washington, D.C. 20570, or by calling (202) 273-1940.



THIS IS AN OFFICIAL NOTICE AND MUST NOT BE DEFACED BY ANYONE

THIS NOTICE MUST REMAIN POSTED FOR 60 CONSECUTIVE DAYS FROM THE DATE OF POSTING AND MUST NOT BE ALTERED, DEFACED, OR COVERED BY ANY OTHER MATERIAL. ANY QUESTIONS CONCERNING THIS NOTICE OR COMPLIANCE WITH ITS PROVISIONS MAY BE DIRECTED TO THE ABOVE REGIONAL OFFICE'S

COMPLIANCE OFFICER, (602) 640-2146.

APPENDIX B

NOTICE TO EMPLOYEES

Posted by Order of the
National Labor Relations Board
An Agency of the United States Government

The National Labor Relations Board has found that we violated Federal labor law and has ordered us to post and obey this notice.

FEDERAL LAW GIVES YOU THE RIGHT TO

Form, join, or assist a union
Choose representatives to bargain with us on your behalf
Act together with other employees for your benefit and protection
Choose not to engage in any of these protected activities.

WE WILL NOT interfere with, restrain, or coerce you in the exercise of the above rights.

WE WILL NOT discharge, discipline, investigate, or otherwise discriminate against you for engaging in protected concerted activities or for supporting Workers United or any other union.

WE WILL NOT promulgate an overly broad rule by characterizing communications about understaffing or other working conditions as inappropriate and negative and **WE WILL NOT** discipline you for violating such a rule.

WE WILL NOT promulgate a directive that employees should not keep their union activities secret and should notify management about them.

WE WILL NOT threaten you with discipline, unspecified reprisals, loss of benefits, and termination for engaging in protected concerted activities and for activities supporting Workers United or any other union.

WE WILL NOT enforce a previously unenforced rule prohibiting you from communicating with supervisors and managers by text message and **WE WILL NOT** discipline you for violating this rule.

WE WILL NOT coercively interrogate you about your protected concerted activities and union support or activities.

WE WILL NOT create the impression that your union activities are under surveillance.

WE WILL NOT issue coercive subpoenas to you that seek protected communications, including your communications with the Union and communications with other employees about protected activities.

WE WILL within 14 days from the date of this Order, offer Millyana Romero full reinstatement to her former job or, if that job no longer exists, to a substantially equivalent position, without prejudice to her seniority or any other rights or privileges previously enjoyed.

WE WILL make Millyana Romero whole for any loss of earnings and other benefits resulting from her discharge, less any net interim earnings, plus interest compounded daily, and **WE WILL** compensate her for the adverse tax consequences, if any, of receiving a lump sum backpay award, and **WE WILL** file with the Regional Director for Region 28, within 21 days of the date the amount of backpay is fixed, either by agreement or Board order, a report allocating the backpay award to the appropriate calendar years.

WE WILL, within 14 days from the date of this Order, remove from our files any reference to the unlawful discharge of Millyana Romero, and **WE WILL**, within 3 days thereafter, notify her in writing that this has been done and that the discharge will not be used against her in any way.

WE WILL within 14 days from the date of this Order, rescind and remove from our files any reference to the unlawful corrective actions issued to Laila Dalton on January 25, 2022, and April 24, 2022, and **WE WILL**, within 3 days thereafter, notify her in writing that this has been done and that the corrective actions will not be used against her in any way.

WE WILL within 14 days from the date of this Order, rescind and delete any reference to the unlawful investigation into Laila Dalton's off-duty visits to the store and rescind any reference to the Ethics and Compliance investigation in any form, and **WE WILL**, within 3 days thereafter notify her in writing this has been done and that the investigations will not be used against her in any way.

WE WILL within 14 days from the date of this Order, rescind and remove from our files any reference to the unlawful corrective action issued to Tyler Gillette, and **WE WILL** within 3 days thereafter notify them in writing this has been done and that the corrective action will not be used against them in any way.

WE WILL NOT in any other manner restrain or coerce you in the exercise of your rights guaranteed by Section 7 of the Act.

STARBUCKS CORPORATION

(Employer)

Dated _____ By _____
(Representative) (Title)

The National Labor Relations Board is an independent Federal agency created in 1935 to enforce the National Labor Relations Act. It conducts secret-ballot elections to determine whether employees want union representation and it investigates and remedies unfair labor practices by employers and unions. To find out more about your rights under the Act and how to file a charge or election petition, you may speak confidentially to any agent with the Board's Regional Office set forth below. You may also obtain information from the Board's website: www.nlrb.gov.

2600 North Central Avenue, Suite 1800, Phoenix, AZ 85004-3099

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COMPLIANCE OFFICER, (602) 640-2146.

APPENDIX C

NOTICE TO EMPLOYEES

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FEDERAL LAW GIVES YOU THE RIGHT TO

Form, join, or assist a union
Choose representatives to bargain with us on your behalf
Act together with other employees for your benefit and protection
Choose not to engage in any of these protected activities.

WE WILL NOT interfere with, restrain, or coerce you in the exercise of the above rights.

WE WILL NOT enforce an overly broad dress code policy prohibiting union insignia against you.

WE WILL NOT in any like or related manner restrain or coerce you in the exercise of the rights guaranteed by Section 7 of the Act.

STARBUCKS CORPORATION

(Employer)

Dated _____ By _____
(Representative) (Title)

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